

Making America Again

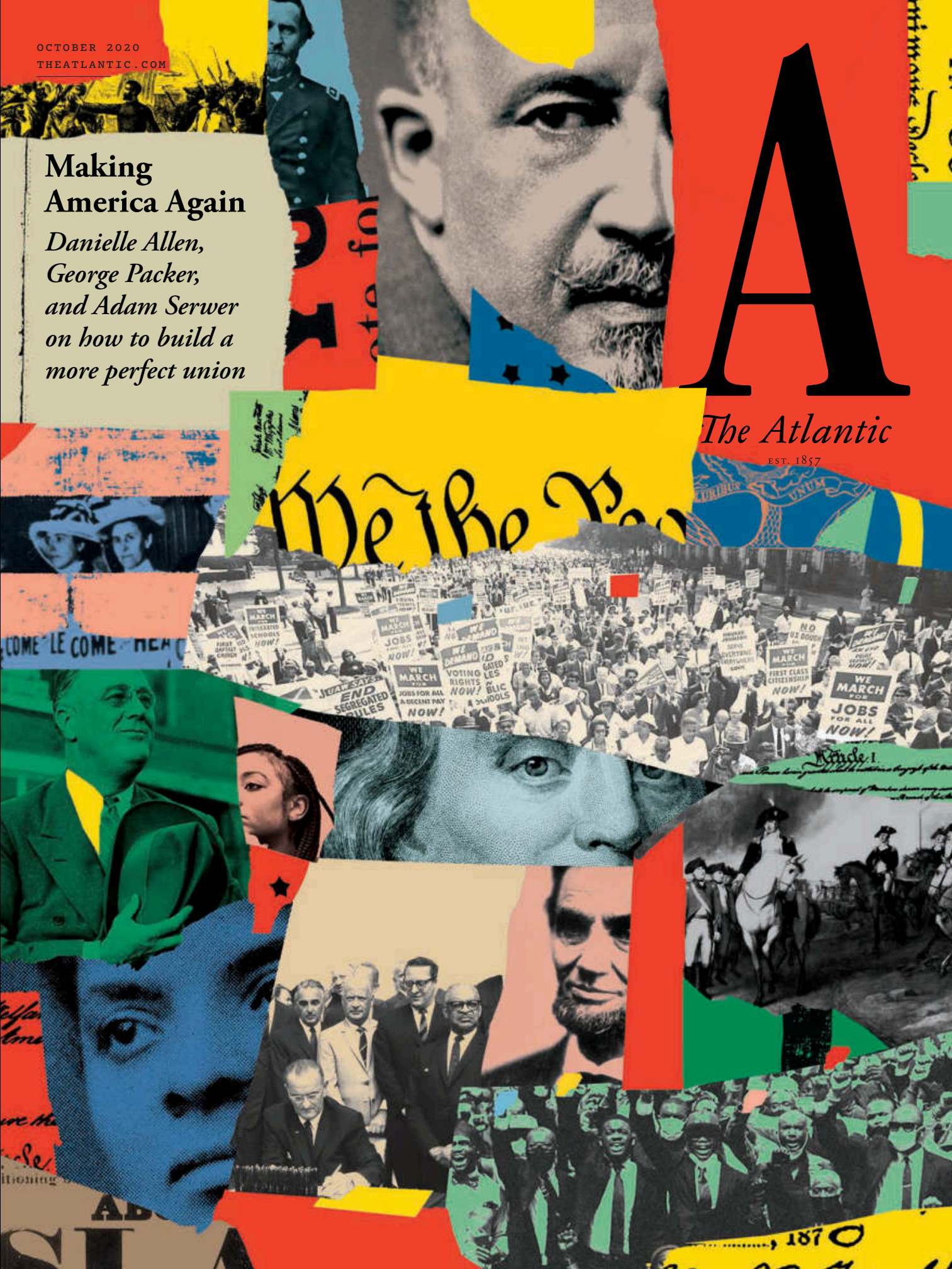
*Danielle Allen,
George Packer,
and Adam Serwer
on how to build a
more perfect union*

A

The Atlantic

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We the People





3235 MOVEMENT



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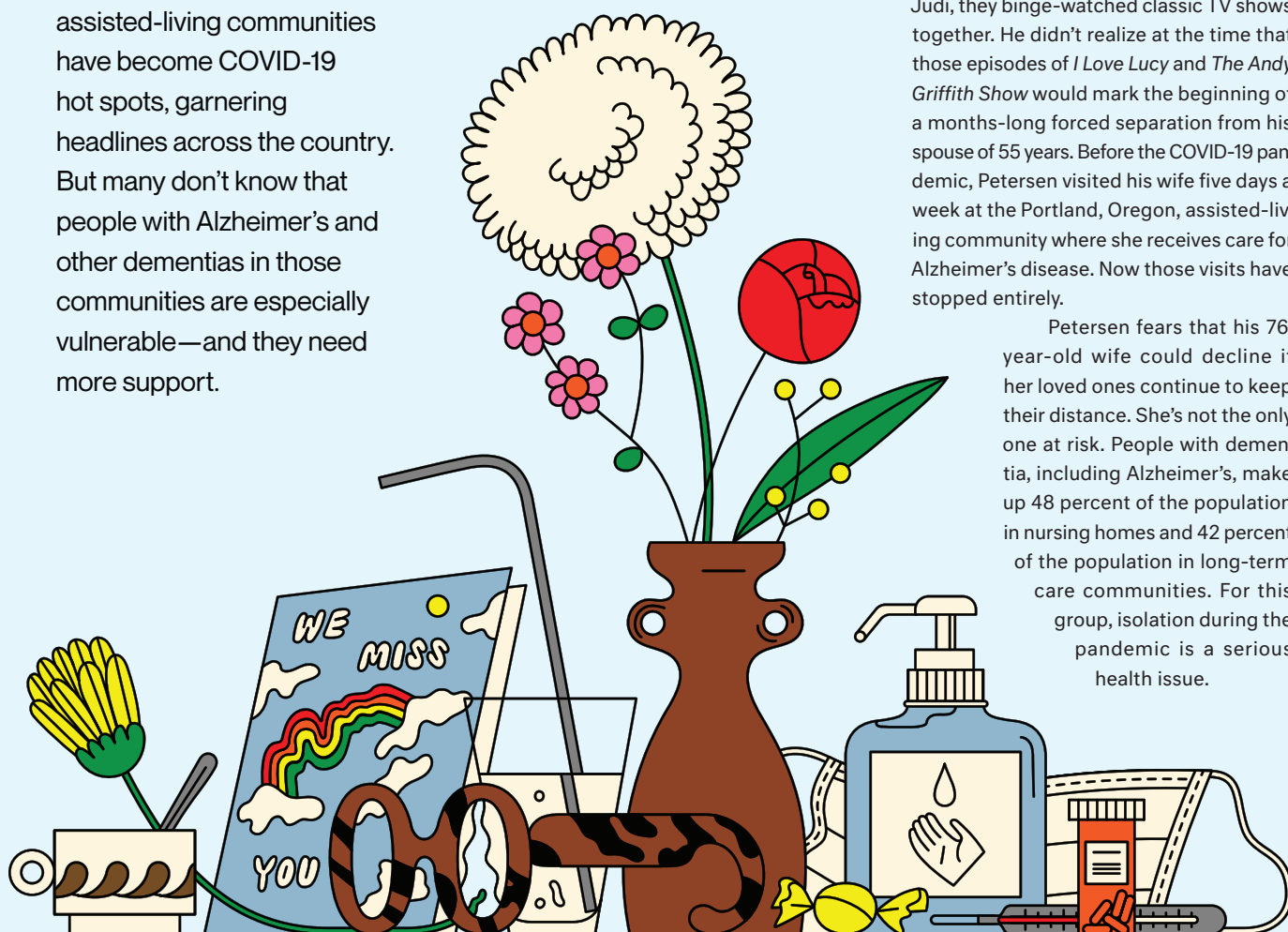
For some of life's questions, you're not alone.
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The Pandemic's Hidden Victims

Nursing homes and other assisted-living communities have become COVID-19 hot spots, garnering headlines across the country. But many don't know that people with Alzheimer's and other dementias in those communities are especially vulnerable—and they need more support.

When Don Petersen last visited his wife, Judi, they binge-watched classic TV shows together. He didn't realize at the time that those episodes of *I Love Lucy* and *The Andy Griffith Show* would mark the beginning of a months-long forced separation from his spouse of 55 years. Before the COVID-19 pandemic, Petersen visited his wife five days a week at the Portland, Oregon, assisted-living community where she receives care for Alzheimer's disease. Now those visits have stopped entirely.

Petersen fears that his 76-year-old wife could decline if her loved ones continue to keep their distance. She's not the only one at risk. People with dementia, including Alzheimer's, make up 48 percent of the population in nursing homes and 42 percent of the population in long-term care communities. For this group, isolation during the pandemic is a serious health issue.





It doesn't have to be this way, experts at the Alzheimer's Association note. The nonprofit recently issued a set of policy recommendations that calls on state and federal lawmakers to provide more support for nursing homes and assisted-living communities during the pandemic. If they had the resources to accelerate COVID-19 testing, immediately report cases to public health officials, and deploy "strike teams" to virus hot spots, these communities could allow families to reunite sooner than later. "If we had testing, then family members could come visit," says Beth Kallmyer, MSW, vice president of care and support for the Alzheimer's Association.

Instead, nursing homes and assisted-living communities remain in crisis due to inaccurate reporting of coronavirus cases, a lack of institutional transparency, and insufficient access to testing equipment and personal protective equipment (PPE). "This clearly is straining long-term care

communities like never before," says Robert Egge, chief public-policy officer of the Alzheimer's Association.

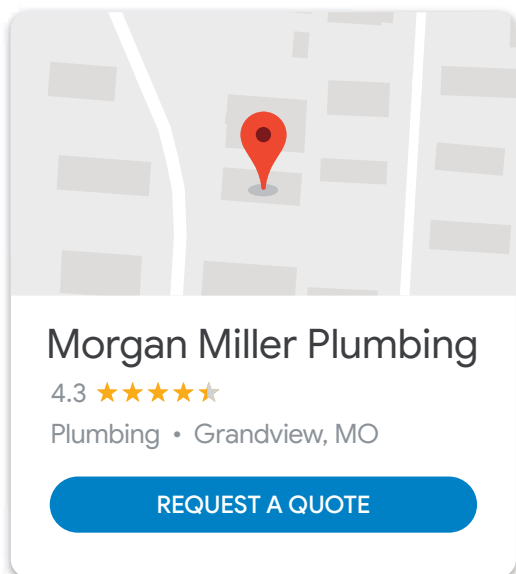
Individuals with Alzheimer's in such communities are particularly vulnerable. More than 95 percent of people with Alzheimer's and other forms of dementia have an additional chronic health condition—such as diabetes, heart disease, or hypertension—which increases the likelihood of complications from COVID-19. Dementia, meanwhile, makes it more challenging for these individuals to protect themselves from the disease, because it renders them unable to discuss their needs or symptoms.

There have been signs of progress on this issue at the state level. Maryland, for instance, has been using strike teams to respond to COVID-19 clusters at nursing homes. Still, the Alzheimer's Association continues to field reports about nursing-home staff bringing their own PPE to work because employers aren't able to provide it.

As the Alzheimer's Association continues to advocate for long-term care communities, residents and their loved ones are doing their best to get by in trying circumstances. Dan Goerke, for one, uses FaceTime and does window visits to stay in touch with his wife, Denise, who was diagnosed with Alzheimer's in 2012 and now resides at an Atlanta-area assisted-living community. "COVID has absolutely had a downward effect on Denise," Goerke says.

While Goerke says Denise's mood has been improving lately, he suspects she won't be back to her old self until they're reunited. He's willing to have his temperature taken, wear as much PPE as possible, and even have timed visits. He just doesn't want his wife to be isolated. "There is so much to just the physical touch of holding someone's hand that brightens their day," he says. "Denise often doesn't acknowledge the fact that I'm holding her hand or touching her face, but I know it helps."

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FROM THE FRONT LINE:

Crisis-Management Lessons From a New Zealand Health-Care System

Canterbury District Health Board never stops working—even in tough times. Here's how its digital transformation helped build agility and resiliency.

Illustration by Marina Muun

CANTERBURY DISTRICT HEALTH BOARD (CDHB), in New Zealand, is no stranger to responding to crises. From treating those affected by the 2011 earthquakes and the 2019 Christchurch mosque attacks to responding to the recent spread of COVID-19, CDHB has repeatedly faced circumstances that tested its ability to deliver the best possible care. Yet it remained agile in handling these system shocks—a credit to both its staff and its forward-looking approach to its care infrastructure. CDHB prioritizes digital transformation, which helps the health-care system rise to the occasion in these extraordinary moments.

But what exactly does building resiliency through digital transformation look like? At CDHB, which began this journey a decade ago, it's meant digitizing both internal and patient-facing processes. This not only empowers employees and streamlines their workflows; it also reduces friction in the patient experience and enables doctors, nurses, and staff to deliver high-quality care—and, most recently, adapt to the impacts of the novel coronavirus and return to work safely.

To gain more insight into how to build a resilient organization, read the full story at:
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ILLUSTRATION BY
OLIVER MUNDAY

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THE COMMONS

DISCUSSION

&

DEBATE

The Collaborators

What causes people to abandon their principles in support of a corrupt regime?, Anne Applebaum asked in the July/August issue. And how do they find their way back?

Letters

M

My wife and I (lifelong conservative Republicans turned unaffiliated after the party left us for Donald Trump) typically call the collaborators that Anne Applebaum describes “enablers,” and just tonight (before I read the article) we were discussing different reasons they enable Trump and what it would take for them to abandon him. We named some of the same reasons Applebaum did. Another we’d add is that because they’ve abandoned their principles and ignored everything else Trump has done to this point, they see no way they can justify bailing

on him now. How could they seriously explain that *now* they’re offended or *now* it’s too much to be able to support? Even as (we believe) most of them are realizing that Trump is dragging the party toward a blue wave, they can’t speak out. They’ve made their bed, and they’re stuck sleeping in it until at least Election Day. What annoys us the most is that many of these collaborators or enablers are going to pretend it never happened when Trump finally leaves the scene.

Joseph Burgess
West Jordan, Utah

If nothing else, your publication and Ms. Applebaum’s words have reassured me that none of this is normal. Thank you.

Stephen Bennett
Lincoln University, Pa.

As a clinical psychologist, I was extremely impressed with Ms. Applebaum’s comprehensive and insightful discussion of the often unconscious motivations that compel people to collaborate with individuals and regimes that represent values inconsistent with their own. Ms. Applebaum wrote about this tendency toward conformity by discussing pairs of people, both past and present, who superficially look similar and yet diverged by either taking a stand or becoming a collaborator. She astutely focused on the characteristics that predict those who are courageous enough to be “decent”—or, as we would say in our Jewish tradition, to be a “*mensch*.” Excellent article.

Rickey Miller
Thornhill, Ontario

The parallels in Anne Applebaum’s article to the corrupt apartheid politicians of the past and the corrupt African National Congress politicians of the present in South Africa are astounding. Thank you for enriching my understanding of these amoral politicians.

Andre Botha
Johannesburg, South Africa

When I was growing up in Italy, in the 1990s, the public debate

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was dominated by the figure of Silvio Berlusconi. The most important thing I have learned over the years is that such populist leaders are not divisive per se, but benefit from the divisions already present in a country. By dominating the media debate through their aggressive and elementary communication, they then exacerbate these divisions and manage to turn every issue into an ongoing referendum on their leadership. Doing so, they win.

These leaders can be defeated only through a strong recall to harsh reality. For Italy, the wake-up call was the sovereign-debt crisis of 2011. I believe that in America, this is happening with the protests following the barbaric killing of George Floyd. The most effective way to beat Trump is to listen to the voices of those who are demonstrating.

Francesco Agnellini
Brescia, Italy

Correction

"Anatomy of an American Failure" (September) stated that studies published in *The Lancet* and the *New England Journal of Medicine* claiming that hydroxychloroquine was not effective in treating COVID-19 and was potentially harmful were retracted in June. In fact, the study in the *New England Journal of Medicine* concerned other drugs taken by coronavirus patients.

To respond to *Atlantic* articles or submit author questions to The Commons, please email letters@theatlantic.com. Include your full name, city, and state.

Behind the Cover: This month, at a time when the appetite for radical reform seems to be growing, Danielle Allen, George Packer, and Adam Serwer look back at our country's history in search of precedents, warnings, and lodestars. Their essays grapple with the successes and failures of the American

experiment, from the forging of the Constitution to Reconstruction to the New Deal to the civil-rights movement. For the cover, we created a collage of figures and scenes from various eras of upheaval, depicting the rich multitudes that make up our union.

— Oliver Munday, *Senior Art Director*

THE FACTS

What we learned fact-checking this issue

In this issue, Leslie Jamison writes about discovering plenitude in the work of Donald Judd, an artist who shunned the "minimalist" label that was assigned to him (p. 100). Jamison came to see Judd's generosity after visiting Marfa, Texas, where, starting in the 1970s, Judd converted a series

of buildings—spanning a full city block—into a personal residence and a site for large permanent art installations. As Jamison writes, Judd renovated former offices of the U.S. Army's Quartermaster Corps into a home for himself and his children, building a pool and constructing an external adobe bathhouse. During fact-checking, the Judd Foundation informed us that Judd built the bathhouse outside

the home not because the two-story building lacked a bathroom, as we had originally presumed, but because Judd removed the existing bathroom, which he thought disrupted the symmetry of the interior—as his son, Flavin, put it, "It didn't work at all for his schematic." But Judd didn't stop there: He also built an adobe office of the same size as the bathhouse on the opposite side of the courtyard, to maintain

the balance of the complex as a whole.

Judd opposed the unnecessary destruction or alteration of buildings, believing that historical labor should be respected whenever possible. ("In most American cities and towns, there is little concern for old buildings," he once lamented.) But his desire for symmetry and balance was tantamount.

— Stephanie Hayes,
Deputy Research Chief

Q • & • A

The rise of risky collateralized loan obligations, or CLOs, means that the U.S. banking system could be on the cusp of calamity, Frank Partnoy warned in the July/August issue ("The Worst Worst Case"). Here, he responds to readers' questions about the article.

Q: To what degree would the large banks' collapse affect credit unions? And do you have any advice for consumers who invest in stocks and mutual funds? — *Ilbea Fedele, El Monte, Calif.*

A: Many readers wrote with these questions. If the Federal Reserve keeps supporting the markets, stocks and mutual funds might be fine even as the real economy deteriorates. Credit unions deserve scrutiny as they take on more

risk, particularly in real estate. Regulators seem to be looking harder now, not just at CLOs, but at the other shadowy trillion-dollar risks I warned about. Fingers crossed that we dodge the worst-case scenario.

Q: Why is this not front-page news everywhere? Over and over again we bail out banks and industries, and then we find that they've fleeced us again. How can it stop? When will it stop? — *Margi Swett, Burlington, Vt.*

A: Whether it was coincidence or not, the stocks of a number of banks with particularly large CLO holdings fell sharply just after this article was published. But you're right to ask why these questions aren't front-page news. Some answers: Our attention spans are short, finance is complicated, we have other big worries, and bank lobbyists are good at rebuttal and noise. Some journalists continue to warn about CLOs, but they rarely make the front page.



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DISPATCHES

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POWER SHORTAGE

Women's rights are human rights. But rights are nothing without the power to claim them.

BY HILLARY
RODHAM CLINTON

Giving speeches was not usually a problem for me, but a lot was riding on this one, and I had a genuine case of nerves as I took the stage. Before me were 1,500 delegates, mainly women, of every race and ethnicity, who had traveled to Beijing for the United Nations Fourth World Conference on Women. What they all had in common in that moment was a daunting impassivity.

It was September 5, 1995. I had spent weeks writing and rewriting my speech.

I wanted it to be bold, accessible, and unambiguous. I also thought hard about getting the delivery right. Women are often criticized if we show too much emotion in public, and I wanted to make sure my tone didn't obscure the message. Hence, the nerves.

I started talking. As I spoke, each line was translated in real time into dozens of languages, creating a gap between me and the audience. Hundreds of delegates stared back blankly. This was my chance to change the way the world thought about women. And it didn't seem to be going well.

On the flight to Beijing, I had pored over drafts with my speechwriter Lissa Muscatine and the foreign-policy experts crammed into my cabin. Madeleine Albright, the U.S. ambassador to the United Nations, had asked me a simple question: "What do you want to accomplish with this speech?" My answer had been equally simple: "I want to push the envelope as far as I can on behalf of women and girls."

I have long believed—supported by Everests of evidence—that relegating women's health, education, and economic participation to the margins of foreign and domestic policy is ruinous not just for women, but for entire nations. The Beijing conference represented a rare opportunity to focus the world's attention on the status of women and girls. I wanted to break the silence about atrocities being committed in specific regions of the world, as well as injustices and abuses that are universal, including in developed democracies such as my own. Most of all, I wanted to argue that it was no longer acceptable to talk about human rights and

women's rights as separate topics. They were one and the same, and I was determined to make people hear this.

Back in the U.S., the idea of my attendance in Beijing had been controversial. I was fresh off a bruising fight for health-care reform, a topic some considered far beyond the job description of a first lady. A year earlier, I had been burned in effigy at a protest against the health-care plan. (Today I take this as a compliment; back then it stung a

STARING
OUT AT THE
DELEGATES
IN FRONT
OF ME, I HAD
A FLEETING
THOUGHT:
*WHAT IF
THIS WAS A
MISTAKE?*

little.) Members of Congress had scoffed at the idea of an international gathering focused on women's issues. Republican Senator Phil Gramm declared that the conference was "shaping up as an unsanctioned festival of anti-family, anti-American sentiment."

Officials at the State Department were nervous: A first lady talking about foreign policy on the world stage? What if I created some kind of international incident? They were also concerned that going to Beijing would implicitly condone China's dismal human-rights record. I shared those concerns (and later, when I led the State Department, I made sure that China's human-rights record was a focus of investigation and criticism). But in the

end, I made my position clear: I was either going to travel to the conference as the leader of an official American delegation, or I was going to buy a seat on a commercial airline and attend as a private citizen. The opposition melted away.

Now, staring out at the delegates in front of me, I had a fleeting thought: *What if this was a mistake?* But if there's anything I've learned in life, it is to keep going. I spoke about women and girls who were working to advance education, health care, economic independence, legal rights, and political participation. With barely concealed rage, I talked about the use of rape as a tactic of war, and the violence women are subjected to in their own homes.

I criticized China for its policy of coercive family planning. I didn't know it at the time, but the Chinese government cut off the television feed of my speech to the rest of the convention center, where thousands of people who couldn't fit into the hall were watching. (A few years ago, however, I got an email from a friend who had been walking around a department store in Beijing when the music faded and my speech started playing over the loudspeakers. I've always wondered what subversive person managed that.)

As I went on, I could feel a change in the atmosphere. Delegates, even (or especially) from countries I was criticizing, were leaning forward. And then I said this: "If there is one message that echoes forth from this conference, let it be that human rights are women's rights and women's rights are human rights, once and for all."

When I finished, the room erupted into cheers. The

delegates rose, giving me a standing ovation, a rarity at buttoned-up UN gatherings. As I left the hall, women hung over banisters to grab my hand. Some had tears in their eyes. The declaration of a simple, obvious message should perhaps not have had such a galvanizing effect. But 25 years ago, it caused shock waves.

SINCE 1995, the phrase *Women's rights are human rights* has appeared on tote bags, cellphone cases, needle-point pillows, and T-shirts. I'm happy about this. But the most transformative moment of the conference wasn't my speech. It was the adoption of the Platform for Action, whereby representatives from all 189 nations committed to "the full and equal participation of women in political, civil, economic, social, and cultural life." A 270-page document might not lend itself to bumper stickers or coffee mugs, but it laid the groundwork for sweeping, necessary changes.

In many ways, women are better off than they were 25 years ago. A girl born 25 years ago in Lesotho could not own property or sign a contract; today, she can. In East Africa, a girl born 25 years ago grew up in a region where female genital cutting was widespread; since then, the practice has declined significantly. In 1995, domestic violence was a crime in just 13 countries; today, it is illegal in more than 100. We've nearly closed the global gender gap in primary-school enrollment, and maternal mortality has dropped by more than half.

But the work is nowhere near done. As the changes laid out in the Platform for Action



have been implemented, what's become clear is that simply embracing the concept of women's rights, let alone enshrining those rights in laws and constitutions, is not the same as achieving full equality. Rights are important, but they are nothing without the power to claim them.

In 2017, the Women's March brought millions to the streets to protest sexism and misogyny. More than a decade after the activist Tarana Burke coined the phrase *Me too*, the movement has reached every corner of the world. The coronavirus pandemic, the loss of millions of jobs, and the deaths of Ahmaud Arbery, George Floyd, and Breonna Taylor, among too many others, have prompted activists to shine a light on the injustice and inequality facing communities of color, especially Black women. All of this has a lot to do with rights, but it's also about something more. It's about power: who has it, who doesn't, and how we confront that imbalance.

Mary Beard dedicated an entire book to this subject. In *Women & Power: A Manifesto*, she explores the misogyny that has shaped our world for centuries, and urges readers to reject the notion of power as a zero-sum game. If power is seen as a tool only a few people can wield at a time, within systems designed by and for men, an entire gender will forever be excluded from it. Instead, she suggests, why not look at power more comprehensively? We should think of it as "the ability to be effective, to make a difference in the world, and the right to be taken seriously, together as much as individually."

I was clear-eyed about the difficulty of making progress 25 years ago, and I remain so today. But I am still surprised by the backlashes provoked by women's advancement. Again and again, we've seen anger, hostility, and sexism directed at women who have the audacity to seek power. (I have some firsthand experience with this.) Deep-seated biases are even harder to change than discriminatory laws. It's no coincidence that while we've made progress in areas traditionally associated with women, like health care and education, we've struggled to match that progress in the economy, politics, and national security. And as useful as the internet has been to feminist organizing, it has also created a platform for misogynists to spread sexist vitriol and disinformation.

Today, the pandemic is exacerbating some of the most insidious and pervasive inequities women face. In the U.S., women—who are already more likely than men to do low-wage work, raise a child on their own, and do unpaid work as caregivers—have lost their jobs at a higher rate than men since the onset of the virus. And we know that women will be less likely to return to paid employment than men, threatening what progress has been made toward equality in the workforce. On top of everything, several states have attempted to weaponize the crisis in order to eliminate access to safe and legal abortion, and the Trump administration's rule permitting employers to deny insurance coverage for birth control on the basis of "moral" objections was upheld by the Supreme Court. (One can't help asking, what about coverage for Viagra?)

We see similar trends around the globe. A United Nations Population Fund report predicted that the pandemic could well have a "catastrophic impact" on women, with millions assuming disproportionate responsibility for caregiving, unable to access contraception, or at risk of being married off or subjected to genital cutting. Experts have reported a dramatic spike in intimate-partner violence. History warns us that a global health and economic crisis can create pressure to push women's concerns to the back burner.

Yet, even in the midst of all this turmoil, I still believe that advancing the rights, opportunities, and full participation of women and girls is the great unfinished business of the 21st century. Finishing this work is the right and moral thing to do—and it is also an urgent strategic imperative. We need a global commitment to changing laws and policies, and to transforming centuries-old cultural norms around women's roles and value.

NOT LONG AFTER the 1995 conference, I was on a Voice of America radio program when a man called in to ask what I meant by my speech. I asked him to close his eyes and picture all the rights men have: the right to earn an income, the right to a job and an education, the right to vote and hold elective office, the right to be heard and valued in their families and communities. "We want the same rights," I explained. He burst out: "That's impossible!"

Nearly two decades later, as secretary of state, I sat across the table from presidents and prime ministers and watched their eyes glaze over when I raised

the issue of women's rights and opportunities in their countries. It was only when I showed them hard data and pointed out what nations were losing economically by excluding half their population from full participation that some of them started to listen.

When women are healthier and more economically secure, families, communities, and entire nations are better off. Gender parity in education is associated with longer life expectancies for women *and* men. According to one estimate, the global economic benefit to closing the gender gap in workforce participation by 2025 could be \$28 trillion. And we've known for a long time that when women are included at the peace table, agreements are more likely to be reached, and to be longer lasting.

Conversely, a study by Valerie Hudson, Donna Lee Bowen, and Perpetua Lynne Nielsen found that subordination of women at the household level corresponds with instability at the national level. Populism and authoritarianism are on the rise, and for leaders like Vladimir Putin, Jair Bolsonaro, Rodrigo Duterte, Viktor Orbán, Recep Tayyip Erdoğan, and—yes—Donald Trump, the drive to diminish women's rights is inextricably linked to their quest for political power.

Over the past 25 years, we have seen that when women and girls participate in democracy, the benefits ripple out across society. Women leaders are more likely to increase budgets for health care and education, and women's leadership contributes to greater cooperation, equality, and stability. Many of the countries with the most effective responses

to the pandemic are led by women: Jacinda Ardern in New Zealand, Angela Merkel in Germany, Sanna Marin in Finland, and Tsai Ing-wen in Taiwan.

Yet, even though women are now running for office—and winning—in unprecedented numbers, progress has been slow. We’ve risen from 12 female heads of state in 1995 to just 22 today. Only 14 countries out of 193 have parity in the national cabinet. The share of women in parliaments remains less than 25 percent on average; only four countries in the world have achieved parity this year.

So what’s holding us back? Although sexism and structural barriers are in many places no longer legal, they’re still very much with us. Today, instead, they’re cultural.

RUNNING FOR president, I felt the full force of misogyny—from the blunt, even ostentatious sexism of Donald Trump, who called me a “nasty woman” (a slur I and many others have decided to wear as a badge of honor), to the trap of “likability,” which seems to snare only women.

Watching the diverse slate of 2020 candidates was inspiring, but it was also discouraging to hear familiar tropes about women candidates’ speaking styles, voices, and authenticity. (*I don’t hate women candidates, I just hate Hillary Clinton. And now I’m starting to hate Elizabeth Warren. And come to think of it, I’m not wild about Kamala Harris or Amy Klobuchar either...*)

We all have images in our head of what a leader looks and sounds like. That image has been white and male for centuries, and changing it will take

deliberate effort. On that front, it’s impossible to overstate the significance of having Kamala Harris—a woman of color, and the child of immigrants—on the presidential ticket.

Biases and cultural norms that subordinate women are everywhere. The social psychologist Madeline Heilman found that, after looking at two personnel files for potential job candidates, identical except for the names, 86 percent of people surveyed determined that the male candidate was more competent than the female candidate. When they were told that the candidates were equally competent, 83 percent said the man was more likable. And it’s not only men who perpetuate these attitudes. The UN Development Program’s “2020 Human Development Perspectives” report found that in developing and developed countries alike, both men and women show clear bias against gender equality. This finding suggests that we have reached an “inequality plateau,” at great cost to health, education, autonomy, representation, and more. We need a new approach.

Twenty-five years after Beijing, it’s no longer enough to talk about women’s rights. We must augment women’s power in every sphere, including government, the economy, and national security. We can start by taking steps to increase women’s representation in the public and private sectors, whether by exploring quotas for gender parity in public office, broadening the success of gender-blind orchestra auditions to other employers, removing names from résumés, or following the lead of states where asking about salary history is now illegal.

We can demand that elected officials and employers alike recognize paid leave, affordable child care, and closing the gender pay gap as the urgent imperatives they are. We can build women’s economic power, including by investing in women-led businesses.

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And as we recover and rebuild after the pandemic, we can seize the opportunity to transform economic systems that discriminate against women and devalue essential caregiving work.

Consider Sweden, which in 2014 became the first country in the world to explicitly adopt a “feminist foreign policy.” As then-Foreign Minister Margot Wallström described it, the policy recognizes that “striving toward gender equality is not only a goal in itself but also a precondition for achieving our wider foreign, development, and security-policy objectives.” France, Canada, and Mexico have since taken steps to follow suit.

In addition to voting for women seeking positions of power, each of us can speak out, support organizations promoting women’s rights and power, and engage in peaceful protest movements. We can support mentoring and role modeling, and work to change messages

in media. We can call out sexism and racism, and challenge insidious norms in our culture, workplaces, and households. This year is the 100th anniversary of the Nineteenth Amendment, a milestone we had hoped could be celebrated with events across America. Though the pandemic has rendered that nearly impossible, an equally fitting tribute is to commit ourselves to new platforms for action, in our own country and on the world stage. And someday soon, I hope we will elect a woman president of the United States.

That’s a sentence that’s painful to write. But here’s something that gives me hope: 25 years ago, speaking in Beijing as first lady, I thought I had reached the peak of power and influence that would ever be available to me. I was determined to use it to lift up the concerns and rights of women. Yet it turned out my journey was far from over, and I would get the chance to carry those concerns into the highest levels of government and politics. What we think are peaks can turn out to be frustrating plateaus. But they also can be way stations on a higher climb. That’s what I think about when I see young women around the world who have no patience for gradual change and no intention of slowing down. They believe a new world order is not only possible, but necessary and urgent, and they’re absolutely right. *A*

Hillary Rodham Clinton is a former U.S. senator and secretary of state, the first woman to win a major party’s nomination for president of the United States, and a lifelong advocate for women and girls.



MOB JUSTICE

An Italian prosecutor takes on his country's most powerful crime syndicate.

BY RACHEL DONADIO

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The airport at Lamezia Terme, Calabria, in the toe of Italy's boot, was built in the 1970s and has not aged well. The cement facade is punctuated by rows of round windows that resemble oversize portholes. The parking lot is poorly paved. Beyond it rises an unfinished concrete tower, open to the elements and covered on one side by an advertisement for amaro.

I was there one day last year to meet Nicola Gratteri, the chief prosecutor for nearby Catanzaro, a small city high in the hills of central Calabria. Gratteri has dedicated the past three decades of

his life to fighting a Calabria-based organization known as the 'Ndrangheta—the richest, most powerful, and most secretive criminal group in Italy today. (Pronounced en-drah-n-get-ta, the word essentially means “man of honor”; it is believed to be derived from the Greek *andragathia*, or “heroism.”)

Sicily's Cosa Nostra has been romanticized by the *Godfather* movies. The Neapolitan Camorra has become widely known through the film and TV series *Gomorra*. But the 'Ndrangheta, the least telegenic and most publicity-shy of Italy's Mafias, is the most aggressive.

The 'Ndrangheta's tentacles extend to Italy's wealthy north, where the organization thrives on skimming off state contracts, especially in construction, and to 31 other countries worldwide—to much of Europe, to the United States and Canada, to Colombia, to Australia. Outside Italy, the city with the most 'Ndrangheta outposts is Toronto. The 'Ndrangheta is on excellent terms with criminal affiliates in Latin America, from which it imports vast amounts of cocaine. The group is said to control more than half the cocaine market in Europe. And it has not wasted the opportunities created by the COVID-19 pandemic. Tens of thousands of small businesses throughout Italy suddenly found themselves on the ropes, without revenue or access to credit. For some, the 'Ndrangheta and other criminal groups stepped in with assistance. They also provided envelopes of cash for the unemployed. Call it an investment. As the *Financial Times* reported,

the organization has also skimmed off public-health funds in Calabria, with disastrous consequences for the region's health-care system.

Gratteri's focus on the group has been unwavering. He helped mastermind a 2014 sting operation, code-named “New Bridge,” in which the FBI and Italian agents disrupted a major 'Ndrangheta drug ring operating on three continents. Authorities seized 1,000 pounds of pure cocaine. In December 2019, in a move coordinated by Gratteri, Italian police rounded up 334 people—lawyers, businesspeople, accountants, a police chief, the president of the Calabrian mayors' association, and a former member of the Italian Parliament—on charges related to 'Ndrangheta activity, including murder and extortion. The formal legal process against these individuals and others—more than 470 people all told—is under way. A “maxi-trial” will eventually move from Rome to a large courthouse being prepared for the occasion in Calabria in order to accommodate all the defendants and their lawyers.

I was standing outside the airport when Gratteri sped up in a station wagon, trailed by an escort of plainclothes officers. They wore jeans and sneakers, and carried leather bags that I assumed held guns. Gratteri got out of the car and walked quickly toward me, taking hold of my suitcase and handing it to one of the officers. As we drove off, I asked him if this was an armored car—the door had seemed unusually heavy. With a flicker of a smile, he said, “Yes, of course.” After the arrests in December, the government

provided him with an even more heavily armored vehicle than the one he had been using. A lot of people want Nicola Gratteri dead.

GRATTERI WAS BORN in 1958 in the small Calabrian town of Gerace, not far from areas saturated, then and now, with 'Ndranghetisti. He was

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the third of five children. His father, who had a fifth-grade education, ran a small grocery store; his mother, who had a third-grade education, cared for the home and family. As a boy, Gratteri was well aware that something was deeply wrong with his corner of the world. Once, hitchhiking to school, he passed a dead body lying by the road.

Gratteri is slight, with inscrutable eyes, and he sometimes shuffles when he walks. On the highway, he drove extremely fast—even in the long, dark tunnels that poke through the Calabrian hills; even on roads that suddenly narrowed from four lanes to two. We were heading for

Rome, 360 miles to the north, where he had a round of meetings. He could have flown, but he loves to drive; he says it gives him a rare sense of freedom. And the drive offered a good opportunity to talk. I told Gratteri that I imagined he knew which 'Ndrangheta or Camorra clan ran every stretch of roadway along our route, and he gave a little nod.

In another conversation, he told me he was lucky to have grown up in a family *per bene*—a good family, one with sound values. “We had antibodies,” Gratteri went on. Others didn't. “In front of the school, I used to see the children of the 'Ndranghetisti, and they were already acting like little 'Ndranghetisti, and I couldn't accept that violence. And so I thought, *When I grow up, I have to change things.*” He went to university in Catania, Sicily, and after graduating, he took the difficult state exam to become a magistrate, a job he began in 1986.

In the prosecutors' office in Locri, Calabria, he began reopening cases that had long been stalled. In 1989, he started looking into the murder of a local businessman, who had been killed after a private dinner also attended by several politicians. “This businessman was building a dam for a lake. But there was no water in the lake. So I thought, *Let me see if there was a public bid.* And there wasn't one.” Gratteri concluded that the businessman had somehow fallen out of favor with the local bosses.

Soon after Gratteri discovered the contract for the non-existent dam on the waterless lake, someone shot at the window of his girlfriend's house.

She married him anyway. For obvious reasons, Gratterer is reluctant to discuss details about his family, and for their safety he does not speak with them about his work. The family, like Gratterer himself, is under police protection.

In 1992, two anti-Mafia prosecutors in Palermo, Sicily—Giovanni Falcone and Paolo Borsellino—were killed in car bombings within weeks of each other, along with members of their police escorts and Falcone's wife. The attacks were among the most dramatic and terrifying in Italy's postwar history. Falcone and Borsellino had presided over a celebrated maxi-trial, beginning in 1986. Images of the 366 defendants crowded into cages in the courtroom became famous everywhere. Hundreds of mafiosi were convicted. After the assassinations, a black-and-white photograph of Borsellino and Falcone sharing a confidential exchange became the emblem of Italy's fight against corruption—it has appeared on posters, on billboards, on the sides of buildings, and all over the internet.

I asked Gratterer how the assassinations had changed his sense of the situation in Italy. He told me that the Cosa Nostra had made a grave error: The assassinations revealed that the organization's influence "was much bigger and much deeper" than anyone had thought—an existential challenge to the state. Troops were sent to Sicily. As Gratterer sees it, the group's strategy of full-frontal war against the state marked "the beginning of the end of that Cosa Nostra" and the start of a new Cosa Nostra: quieter, and more interested in infiltrating

institutions than in murdering prosecutors and judges.

The 'Ndrangheta, too, learned a lesson. It became slyer, and never sought to directly confront the authorities. "It always looks for points of contact and common ground with people and institutions," Gratterer told me. That is what gives it its power. The group is woven into the fabric of the Italian economy and Italian political life. Throughout the Italian south, it is not uncommon for candidates seeking national office to demonstrate an inconspicuous familiarity with *voto di scambio*—the "exchange vote," or quid pro quo. That is widely interpreted to mean cutting deals with criminals so that they encourage people to vote for the right candidate. And it is not just in the south: As far north as the Italian Riviera, entire cities have seen their governing councils disbanded because of 'Ndrangheta infiltration. (The disbanding of local councils, with governance put into state receivership, is a standard response.)

THE 'NDRANGHETA HAS proved hard for prosecutors to crack, because its organizational structure is based on blood ties. In other Mafias, the structure is looser, and members more easily break away. Historically, very few 'Ndranghetisti have betrayed their family. Of the more than 1,000 people who became state's witnesses in Italian organized-crime cases in recent years, only about 15 percent are members of the 'Ndrangheta. But that is slowly changing, as the mass arrests in December, based in part on information from

inside, suggest. The 'Ndranghetisti who break their oath, Gratterer told me, usually do so out of love or out of fear. They are young men who don't want to spend their entire future in prison, and who may have wives or girlfriends on the outside. Or the informants are women who have married 'Ndranghetisti

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PLANT, BASIL.

and want their children to have a different life. Even so, the ranks of the 'Ndrangheta remain largely loyal.

The 'Ndrangheta emerged in 19th-century Calabria, as the region's feudal economy was chaotically giving way to the forces of capitalism. In the early years, the organization's members operated mainly as robbers and brigands, before expanding into smuggling, extortion, and abduction. The most famous of its hundreds of kidnappings was that of J. Paul Getty III, in 1973. (Despite their initial reluctance, the Gettys paid a ransom of about \$3 million after the kidnappers sent Paul's severed ear to the family in the mail.) The modern 'Ndrangheta was born

in the 1980s, when it moved into cocaine, leaving the less lucrative heroin trade to the Cosa Nostra.

In Italy, the 'Ndrangheta sells cocaine to other crime groups—often Albanian or Nigerian—who in turn sell it on the street. Such outsourcing keeps the 'Ndrangheta away from the piazzas and focused on more sophisticated ways of making money, such as siphoning off European Union funds meant for agriculture and infrastructure. Meanwhile, the fact that foreigners are selling drugs on the street all over Italy is a major factor in the popularity of the right-wing League party and its anti-immigration "Italians First" rhetoric.

Still, the group is more than willing to get its hands dirty. In 2012, six men were given a life sentence in Italy for murdering a woman who had been cooperating with police against the 'Ndrangheta. (They had strangled her and burned her body.) The 'Ndrangheta operates according to a simple rule: If you screw up, you'll be killed. In 2015, a 22-year-old man was arrested in Italy for ordering the murder of his own mother, allegedly as punishment after she'd had an affair with a boss from a rival 'Ndrangheta clan.

HOW DO YOU build a case against a group like the 'Ndrangheta? I asked Gratterer. He has spent years immersed in the details—the crimes, the arrests, the sentences, the appeals, the personalities, the interconnections. His mind holds an encyclopedia of the group. In the case that resulted in the mass arrests in December, Gratterer and his team spent four

years compiling evidence. He ticked off some of the methods: copious wiretaps; geo-thermal imaging, which can detect underground bunkers; close cooperation with law-enforcement agencies worldwide; an understanding of the group's rules and rituals; a feel for how the organization adapts to new technologies and investment opportunities, such as cryptocurrencies. The indictments relied on the testimony of about 20 former 'Ndranghetisti turned state's witnesses, a record number, Gratteri told me.

It has been particularly difficult to crack the 'Ndrangheta overseas. Italian law gives prosecutors like Gratteri strong tools with which to fight organized crime. Most notably, they can order asset seizures while investigating someone on charges of "Mafia association," a broad category that does not exist elsewhere in Europe or abroad.

Gratteri enjoys questioning people, and he has the right demeanor for it: calm, focused, respectful, but also inscrutable. He somehow manages to build trust with criminals. A while ago I came upon a YouTube video of Gratteri speaking with one of the biggest fish he'd caught in all his years as a prosecutor: Roberto Pannunzi, the man credited with forging ties between the 'Ndrangheta and the Medellín cartel in Colombia.

Pannunzi, sometimes called "the Pablo Escobar of Italy," was first arrested in Colombia in 1994, for drug trafficking. After being extradited to Italy, he eventually obtained a medical dispensation, and fled the country. In 2004, Italian authorities

tracked him down in Spain. He was extradited to Italy again, and Gratteri went to see him. Gratteri told him, "You're going to spend 30 years in prison, so there's not much you can do about that." And Pannunzi replied, "No, *dottore*, I'll get out. I have so much money that I could cover you and that marshal with money. I could bury you with money." And indeed, Pannunzi escaped again in 2010 by claiming to have heart trouble, getting himself transferred to confinement at a clinic, and then fleeing.

Italian authorities tracked him down once more, in 2013, this time in Colombia. He was extradited to Italy once more, and Gratteri flew to Rome for his arrival. "I saw him, and he said, '*Buongiorno, dottore*, how are you?'" Gratteri recalled. "I said, 'Did they treat you well?' And he says, 'Yes, they treated me well; the flight went fine.'" The two men spoke as if they were old friends. Someone filmed the meeting, and it wound up online.

I have watched the video over and over. What strikes me most is the mutual familiarity. Because Gratteri grew up in Calabria, he is cut from some of the same cloth as his adversaries. It is clear from the video that Gratteri and Pannunzi understood each other, and on some level respected each other. "He understood my authority," Gratteri later told me about the meeting.

GRATTERI LIVES IN a walled compound ringed with cameras and guarded by police. He coordinates every move with his police escort and tells his wife the bare minimum. He travels constantly—throughout

Italy, the rest of Europe, beyond. He goes to bed by 10 p.m. and often wakes up at 2:30 a.m. to start work.

I visited Gratteri one day at the courthouse in Catanzaro. Every so often, people would knock on the bullet-proof door, and he would check a monitor before buzzing them in.

From here, Gratteri masterminded the indictments at the heart of the new maxi-trial. Gratteri seeks to lay bare the organizational structure of the 'Ndrangheta—how the group forges links with Italian politicians, institutions, economic interests, and other elements of society—much as the maxi-trial in Palermo revealed how the Cosa Nostra operated. "The strength of mafiosi essentially comes from their external relations—the social capital that derives from their ability to force ties and construct social networks," Antonio Nicaso, an expert in the 'Ndrangheta who teaches at Queen's University in Ontario and has co-written 14 books with Gratteri, told me. The maxi-trial could also serve as an investigative model for law enforcement elsewhere.

As we neared Rome on our drive that day, I mentioned to Gratteri that, years ago, a magistrate in Calabria had told me that he was more afraid of some elements in Italy's anti-Mafia establishment than he was of the Mafia. That remark, delivered almost off-handedly, stayed with me. It suggested that Italy was a dark place, where the people you thought were on one side were in fact helping the other, even if only by averting their eyes. Gratteri is aware that the 'Ndrangheta tries to influence, however nebulously, the

ranks of the magistrates. He thought back to certain colleagues in the judiciary and what he remembers some of them said to him. "When I was young, I thought it was advice," he said. "Then I understood these were messages"—subtle reminders that it might be best if he didn't peer under this rock or open that door.

When I asked Gratteri what it took to get up every morning and do this kind of work, knowing that people want to kill him, he grew philosophical. "Everything has a price," he said. He hasn't gone anywhere without police protection since 1989, he said. He hasn't been to the movies in 30 years. His house is a heavily surveilled fortress—"like *Big Brother*," he said. But inside the walls, he has a vegetable garden. He grows tomatoes, eggplant, basil. His voice became almost tender as he listed the vegetables, like a parent naming children.

"I'm a man in a cage," he said. As much, in some ways, as any defendant in a maxi-trial. "But in my mind, I'm a free man." He pointed a finger to his temple. "I'm free in my choices and free to decide. Free to think and to speak my mind." He continued: "I can say what others can't allow themselves to say, because they don't have their affairs in order. Because they can be blackmailed. Because they're afraid. Because they're cowards." *A*

Rachel Donadio is a Paris-based contributing writer for The Atlantic and a former Rome bureau chief for The New York Times.

THE NEW SOUTHERN STRATEGY

How Black mayors in the South are leveraging both the power of office and the power of the street to achieve overdue changes

BY ADAM HARRIS

Steven L. Reed smooths his gray suit jacket before he grips the podium. The mayor of Montgomery, Alabama, Reed has seen the coronavirus tear through his city faster than anywhere else in the state. The hospitals have run out of beds; medical professionals are pleading for help. If Reed had had his way, he would have issued a stay-at-home order to stamp this out, but he's limited by the state constitution, which grants the necessary authority only to the governor. So, on June 16, he is standing before eight city-council members with a simple plea: Require everyone to wear a mask.

"The longer we keep this going, the more we're going to hurt ourselves," Reed says. "Is it that inconvenient to tell people to wear masks?" The ordinance he's requesting would carry a small fine if disobeyed. But half of his audience is skeptical. Wouldn't a public-service announcement be just as good? one councilor asks. Reed responds that providing people with accurate public-health information is important but that "some regulation" is necessary to slow the spread of the virus.

One by one, medical professionals and Montgomery residents approach the microphone and testify about the need for masks. More than 90 percent of the people in the intensive-care unit at the city's largest hospital are Black. For the most at-risk groups, one man says, mask wearing is not a symbolic political issue but a matter of life and death. He tugs at his mask and fiddles with his shirt. He's lost six relatives to the virus. His brother is in the hospital dying. "The question on the table," he says, "is: Do Black lives matter?"

Since the death of George Floyd, the whole country has been confronting that question. But for Reed and his peers—the wave of Black Democratic mayors who have swept into southern city halls in the decade since Steve Benjamin became the first Black mayor of Columbia, South Carolina, in 2010—the question has particular political urgency. Those mayors—Keisha Lance Bottoms in Atlanta; Frank Scott Jr. in Little Rock, Arkansas; Randall Woodfin in Birmingham, Alabama; Vi Lyles in Charlotte, North Carolina; Chokwe Antar Lumumba in Jackson, Mississippi; Reed in Montgomery; and others—represent cities

with large, and in some cases predominantly, Black populations. The symbolic progress these politicians embody is expressed in a collection of firsts: first Black mayor of one city, first Black woman mayor of another, youngest mayor of a third. But as they lead their cities through a national reckoning with systemic racism—amid a pandemic that has exacerbated lethal inequities—symbolism alone won't do.

HE'S LOST SIX RELATIVES TO THE VIRUS. HIS BROTHER IS DYING. "THE QUESTION ON THE TABLE," HE SAYS, "IS: DO BLACK LIVES MATTER?"

Navigating through overlapping crises—and advancing the rights and living standards of their constituents—requires the full application of symbolic power combined with the canny use of the policy levers

they hold as elected officials. These two sources of power are different; leaning on one can sometimes hinder the use of the other, and getting the balance right is difficult.

When Reed, who is 46, broke two centuries of racial precedent to become Montgomery's first Black mayor, in 2019, thousands of the city's residents exhaled. For most of Montgomery's 200-year history, Reed told me, the plight of the city's Black people—who make up roughly 60 percent of the population there—has been overlooked. The same was true in any number of cities across the South and beyond. Left unaddressed, dissatisfaction only brews. As Reed stands before the council, he's talking about masks—but, more fundamentally, what he's saying is that the Black people in his city are being heard.

After more than an hour of testimony, the council votes. With one member absent, it splits down the middle. Four members—three Black, one white—support the measure. Four members—all white—vote against it. The majority of the white council members can't be convinced that masks are necessary. One Black member proposes a watered-down

measure—a recommendation instead of a requirement—reasoning that it’s better to do something instead of nothing. Another Black member wonders aloud why the council seems unwilling to take decisive action on something as simple as wearing masks.

As they bicker, Reed has already made up his mind. If the city council is not going to require masks, he’ll do it himself. And he’ll deal with whatever legal or political consequences will follow later.

THE RECENT PROFUSION of Black mayors in the South is striking when you consider that, not so long ago, there weren’t any at all. In 1969, when Howard N. Lee took over as the mayor of Chapel Hill, North Carolina, he was the first Black person elected mayor of any predominantly white city in the South since Reconstruction.

“The real revolution taking place in the South must occur in the political arena,” Lee said in 1971. “The black elected official is a real symbol of black power.”

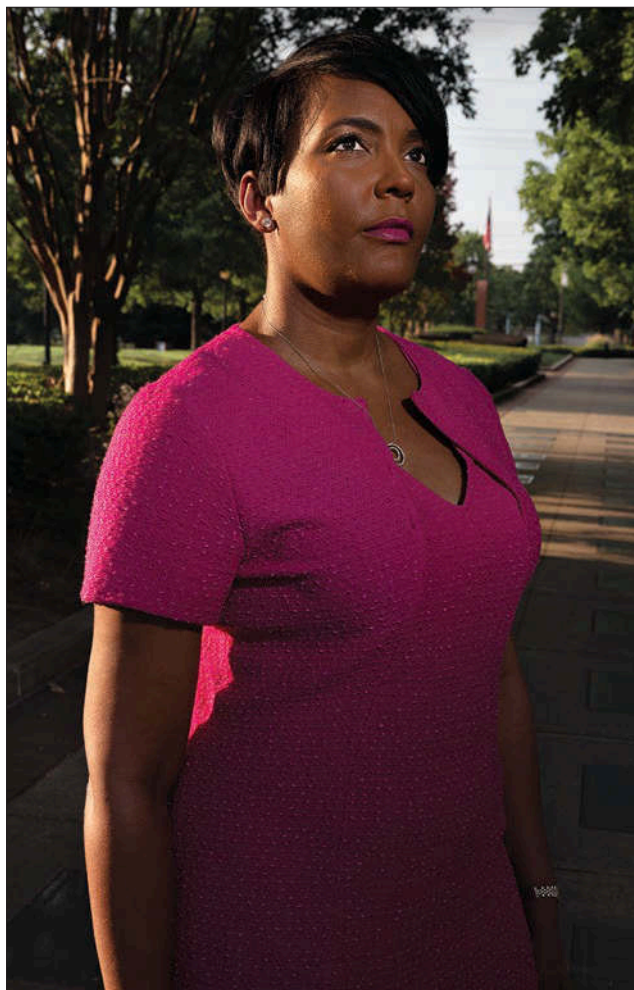
But winning elections only gets you so far. Simply putting Black faces in leadership positions doesn’t change the underlying systems. When Lee took office, the experience of cities with recently elected Black mayors in the Midwest had already begun to illustrate this. In 1967, Carl B. Stokes was elected the first Black mayor of Cleveland, where racism and segregation had kept Black communities poor and overpoliced. Businesses were closing. Black people were losing jobs. Resentment festered among Black residents, and despite Stokes’s election, it boiled over into a rebellion in

Cleveland’s Glenville neighborhood. At first, Stokes took bold steps that previous mayors would not have, pulling all white police officers from Glenville, in hopes that Black officers from the Cleveland police department could negotiate a peace with the rioters. But when that failed, Stokes

repressive” than that of previous, white mayors, the political scientists William E. Nelson Jr. and Philip J. Meranto observed in their classic 1977 book, *Electing Black Mayors*, “he did not support the rebellion of his people; he opposed it by using his position as mayor to restore law and order

between two sources of power. They were, effectively, political outsiders, who faced all the handicaps of outsiders as they tried to work the political system from the inside. And yet, as newly elected officials, they were reluctant to aggressively use the bully pulpit to stoke the energy bubbling up from the streets. A study by Edmond J. Keller, a political scientist at UCLA, found that while policy preferences of the ’70s-era Black mayors differed from those of their white counterparts, the Black mayors were more “constrained” than white mayors in acting upon those preferences by governors, city councils, and reticent local coalitions. If broad support for effecting change was not already present, Black politicians would shy away from trying to catalyze it.

The new generation of mayors, by contrast, impatient with historical constraints, have been more willing to supplement the tools they can use from inside government with the energy from the political movements outside of it. In the summer of 2019, drawing heavily on the advocacy work of political activists, Steve Benjamin, the mayor of Columbia, South Carolina, signed an ordinance to “ban the box,” disallowing questions about previous felony convictions on job applications, which had made it hard for many constituents to gain employment. The year before that in Atlanta, Keisha Lance Bottoms, bolstered by support from criminal-justice reformers and advocates for the poor, signed an ordinance ending the cash-bail requirement for misdemeanors, a policy that had left low-level offenders languishing pointlessly in jail because they couldn’t afford to pay their way out.



Mayor Keisha Lance Bottoms at Martin Luther King Jr. National Historical Park in Atlanta on August 9

sent white officers back to Glenville, and resorted to the same tactics previous mayors had used to quash the uprising. He asked for the National Guard, and tanks rolled through the neighborhood. His political support cratered. While “his method was less

in Cleveland’s black ghetto.” Surveying the broader generation of Black mayors from the late ’60s and ’70s, Nelson and Meranto came away jaded by the mayors’ inability to address structural inequities.

In a sense, that generation of leaders found themselves

When the coronavirus hit in March, Frank Scott Jr.—Little Rock’s first elected Black mayor—quickly implemented curfews and imposed limits on gatherings, without any guidance from the state. He knew what the virus could do to his constituents, and especially the underserved ones—the people of color, the people living in poverty. “I’m a son of southwest Little Rock, and I still live there, so I’ve seen the disparities in our city,” Scott told me. But he also reached beyond the official tools of city hall and drew on his powers of sympathy and suasion: In June, when Little Rock residents took to the streets to protest police brutality, he helped keep the unrest from becoming too violent or destructive by marching with the protesters down Capitol Avenue. Scott’s success in mollifying the protesters stood in sharp contrast to, say, Minneapolis Mayor Jacob Frey, who was booed out of a rally that he attempted to speak at, or New York City Mayor Bill de Blasio, who was called “forcefully oblivious” (among many other things) after he said that the NYPD had acted “appropriately” in an incident when two squad cars barreled through a barrier and hit protesters.

In some of these southern cities, the Democratic mayors have found themselves clashing with their Republican governors. On July 10, as coronavirus cases surged across the South (and three days after she herself had tested positive for COVID-19), Bottoms told Atlanta residents that the city would be starting over, reinstating Phase 1 reopening guidelines—closing restaurant dining rooms and nonessential facilities, limiting travel, and requiring masks—by executive

order. “Our communities aren’t waiting for us to figure it out; they are calling upon us to definitively tell them, in this moment, how we have figured it out,” Bottoms told me. “Things often go in dog years in government, but the patience for that just doesn’t exist anymore.”

Georgia Governor Brian Kemp lashed out against Bottoms, calling the order

political tradition that believes real change comes mainly from outside of it. “I was raised by a network of elders who were engaged in community activism,” Lumumba told me. His father, Chokwe Lumumba, a successful human-rights lawyer, an avowed Black nationalist, and an ardent proponent of reparations for Black Americans, was averse to electoral politics. He did not



Mayor Steven Reed at Martin Luther King Jr.’s old house in Montgomery, Alabama, on June 30. The house was once bombed by segregationists in retaliation for the city’s bus boycott.

“legally unenforceable,” and filed a lawsuit against her. Her response was simple: “We’ll see him in court.”

CHOKWE ANTAR LUMUMBA, the mayor of Jackson, Mississippi, has been somewhat surprised to find himself working from inside government at all, because he emerged from a

believe they could change the situation for Black people in America—the progress was too incremental. A growing body of political-science research supported this view. “This ability to effect mainly symbolic, rather than substantive, changes reflects the limits of black politics,” the late James Button, a political scientist

at the University of Florida, wrote in 1982.

“When people feel locked out of a system, they rail against it,” the younger Lumumba told me. He remembers his father’s generation constructing community centers, hosting day camps for children, and offering martial-arts training. But over time, the Lumumbas came to realize that while the constraints on rebuilding the system from within were real, so were the limits on what could be done from outside electoral politics. “We grew to view politics as a means to better support communities,” Lumumba said.

So the family began working on campaigns, and then were drafted into the fight themselves. In 2013, Lumumba’s father ran to become the mayor of Jackson and won. He immediately began pushing citizens to vote for tax increases that would fund repairs to Jackson’s crumbling infrastructure—and was building momentum toward this goal when he died of a heart attack in 2014. His death prompted his son to run for the same office, and three years ago, at 34, Chokwe Antar Lumumba became the youngest mayor in the city’s history. He built on his father’s efforts, pushing through a property-tax increase that raised the money to repave the city’s decrepit roads. He’s not in city hall just to get reelected, he says. “The failure is when elected officials become intoxicated with the power” and lose sight of the priorities of the community, he told me.

Steven Reed’s father, unlike Lumumba’s, always worked from within the political system, as the chairman for several decades of the Alabama

Democratic Conference, the first statewide political organization for Black people. But Steven Reed understands the disillusionment that can set in among lawmakers when they discover how at odds reform and reelection can be. He saw such disillusionment while working as a senior aide in the Alabama lieutenant governor's office. The wrong issues get prioritized. "State lawmakers would say, 'Well, I know this needs to be fixed, but if I do this, then that group is going to get mad,' or 'It's never going to change, so why even try?,' or 'If I vote for this, I may not be reelected.'" Reed has come to believe that if politicians do what is just, they need not be overly burdened by worries about the electoral repercussions. In this way, they'll build trust with voters, which becomes political capital.

All of the southern Black mayors I've spoken with recognize the political limitations they face. Uprooting fundamentally racist structures or unjust political systems requires a comprehensive approach, and mayors have only limited influence over economic development and the health-care and criminal-justice systems. Not uncommonly, they have to contend with hostile governors while working to ensure that the coalitions that elected them—many of which extend beyond Black communities and white progressives to moderates more concerned with generating economic growth than accelerating social justice—remain supportive. Yet these mayors also recognize that achieving real justice calls for risk-taking, and this unusual moment might

finally allow it. Sometimes that invites anger. (Steven Reed is used to this; as a kid, his family received death threats in response to the political activity of his father.) Sometimes it means nudging your friends out of their jobs, as Keisha Lance Bottoms did to Atlanta Police Chief Erika Shields, who stepped down in June when evidence of brutality on the force emerged. Sometimes

By dint of their positions, these mayors have megaphones; by dint of growing up Black in the South, they have firsthand experience of the brutality of southern racism, which gives them credibility with their constituents. Simply listening to their communities, and broadcasting their concerns, has moral value and political benefit. But, as Lumumba puts it, "until we move from being the

night echoed across the country. They reminded us ... of how vital it is for all of us in leadership to take action," he said. He announced that he would be requiring masks by executive order. "I thought it was important not just from a policy standpoint but from a political standpoint to say that I'd heard the people of Montgomery's call for action," Reed told me. Three weeks later, the city council followed his lead and reversed its original decision in a 7–0 vote (with one absence and one abstention). A week after that, Kay Ivey, Alabama's Republican governor, implemented a statewide mask order.

The events of 2020 have forced these mayors to focus their leadership on day-to-day crisis management. But they remain committed to addressing the underlying inequities that exacerbated the crises. Bottoms and Lumumba are members of a group of mayors exploring a universal basic income; Lumumba supports a nonprofit pilot program for one in Jackson. Lumumba and Woodfin were part of a small group of mayors that pressed Democratic presidential-primary candidates to provide actionable plans for closing the racial gaps in wealth and school equity.

The mayors' politics differ, and their governing strategies and rhetorical styles vary, but their central messages are the same. "We're creating the playbook on how to move from platitudes to policy and policy to true action," Frank Scott told me. "We have to show the results." *A*

Adam Harris is a staff writer at The Atlantic.



Mayor Randall Woodfin at the Civil Rights National Monument in Birmingham, Alabama, on June 26. Behind him, a statue of MLK stands in front of the 16th Street Baptist Church, which was bombed by the Ku Klux Klan in 1963.

it means getting sued, as Bottoms has been in Atlanta—or as Randall Woodfin was, in Birmingham, when he had the city finish pulling down a Confederate statue that protesters had started to topple. "I'd rather have a civil suit than civil unrest in my city," Woodfin told me, after the Alabama attorney general sued him.

governed to the governors, the same problems will persist in new generations."

THE DAY AFTER Montgomery's city council split almost along racial lines over requiring face coverings, Steven Reed stood in front of the same doctors who had stressed their necessity. "Your words last

A CUBICLE NEVER LOOKED SO GOOD

What we lose when we have to work from home

BY AMANDA MULL

To have a job without a workplace, you must build an office of the mind. Structure, routine, focus, socialization, networking, stress relief—their creation is almost entirely up to you, alone in a spare bedroom or on your couch, where your laptop might vie for attention at any given moment with your pets or kids. If the coffee-pot runs dry, there is no one to blame but yourself.

The first time I undertook this construction process was in 2009, and it was an abject failure. I was nine months out of college and had already been laid off from my first full-time job, thanks to Wall Street's evisceration of the American economy. A woman I knew only from an internet message board hired me to write blog posts for her fashion website, a stroke of luck that turned me nocturnal within six weeks. I lived like a 13-year-old on perpetual summer break—no gods, no masters, no parents, no bedtime. It took two years for me to meet my co-workers in person, and I often fantasized about eating lunch with a live human being, or even just

bumping into one on the way to the bathroom. What would it be like to have “work clothes” again? I had never expected to miss driving 45 minutes to sit at a desk in a makeshift office above a country-club pro shop, where, in my first full-time job, I'd done menial tasks in the marketing department.

At first, I assumed my setup would soon be common, and therefore somehow better—we'd all build our internal offices together. “There's no stopping it,” a Reuters writer proclaimed a few months after I began my blogging gig. “The work force that fuels tomorrow's small businesses may largely be a stay-at-home crowd.” Laptop prices were shrinking, and more employers were issuing them to their workers. Smartphones started to fill Americans' pockets. Skype was well established as an early leader in videochat, and co-workers silently traded jokes on GChat. The Great Recession would force a reckoning in how stuffy old companies operated, and offices would soon be obsolete.

Then it just didn't happen. In fact, something like the opposite happened: Co-working spaces

sprang up for people without traditional offices, and the concept attracted hundreds of millions of investment dollars and, for a couple of years, my patronage. In 2018, I finally got a regular job. I sometimes ate

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lunch with my new colleagues. I bought a fancy water bottle for my desk. After a few months of commuting, I understood the allure of podcasts.

Now a once-in-a-century pandemic has resurrected the abandoned future. I'm back on my couch, along with millions of other Americans. And

as soon as we were remanded to our homes in the spring, the predictions of a decade ago sprang back to life: If the COVID-19 experiment has proved anything, it's that employees can be productive without being physically present, so why not jettison expensive corporate leases and free everyone from commutes? But the longer people spend editing spreadsheets or taking conference calls at the kitchen table, the more obvious it is that workers lose far more than physical space when they lose their office.

“THERE ARE TONS of studies on the positive benefits of teleworking, but most of that research is interviews and surveys with people who have self-selected into remote work,” says Kati Peditto, an environmental-design psychologist at the U.S. Air Force Academy. Workers who value day-to-day flexibility in their schedules are ideal work-from-home candidates; those who like strict boundaries between their professional and personal lives, not so much. Career positioning also matters—people who have already built strong social

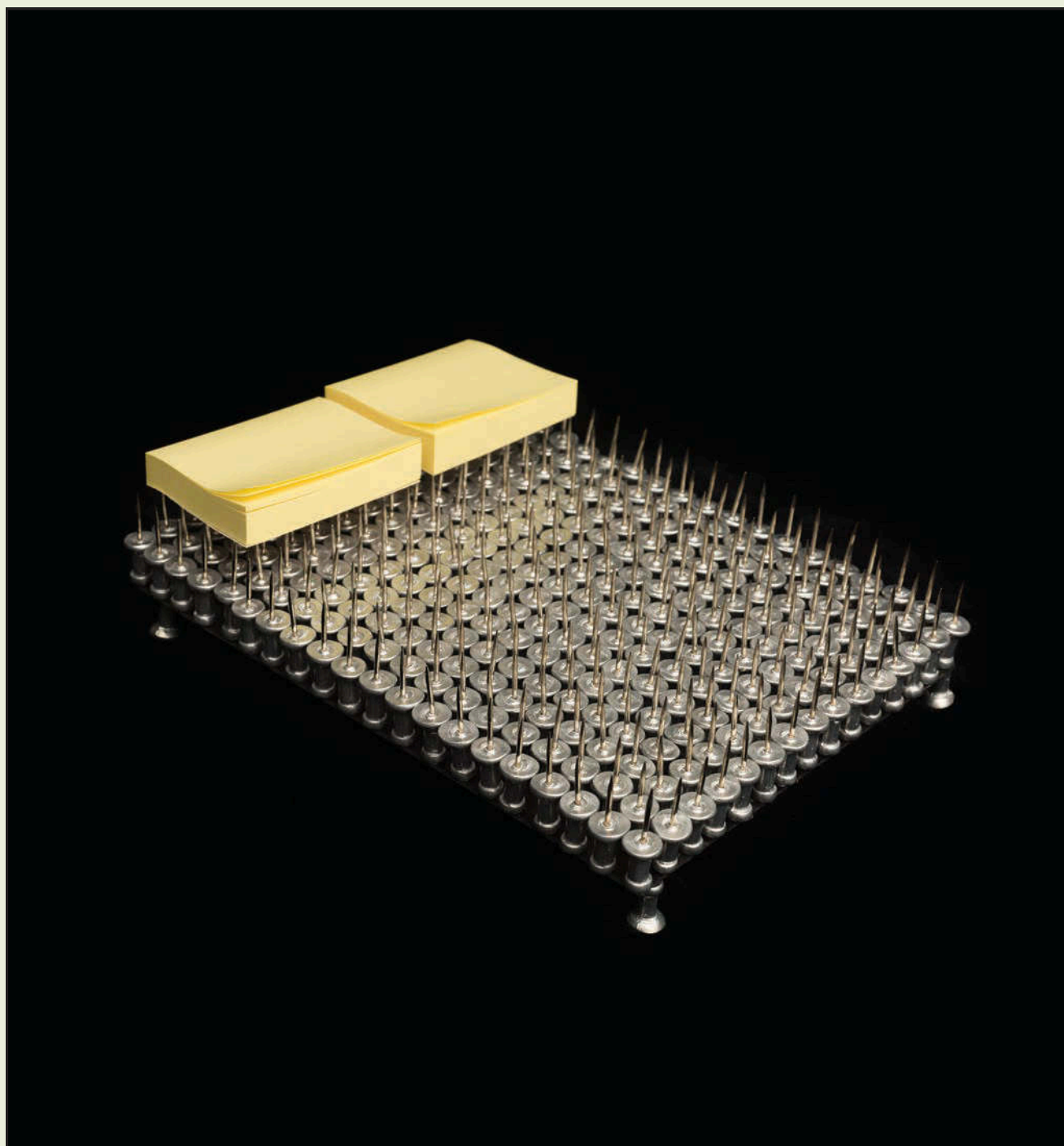
and professional networks may not suffer much from the lack of face-to-face contact at the office, but for those still trying to make such ties, remote work can be alienating.

Contrary to managerial paranoia, people generally want to be good at their job. To do that, many need the support,

collaboration, and friendship of colleagues, which is more difficult to foster online. “Outside of immediate family, people’s co-workers become their most consistent opportunity for social interaction,” Peditto told me. “What happens when you lose that is one of my greater concerns.”

Americans were struggling with feelings of loneliness so widespread that they were considered a major public-health burden even before the pandemic began, and the virus has only exacerbated that problem. I don’t suggest trying to eat lunch with a friend on Zoom—watching yourself

wolf down a salad on video is horrific. Even if you’re not eating, watching yourself do anything on Zoom is pretty bad. There are plenty of awkward pauses, weird shadows, glitchy Wi-Fi connections, and unfortunate angles, along with ambient anxiety about whether or not your hair always does



that. Unfortunately, it's hard to avoid watching yourself on Zoom at all times, because of the software's display and the stubborn human desire to stare at one's own face.

The social by-products of going to work aren't found only in shared projects or mentoring—many are baked into the physical spaces we inhabit. Break rooms, communal kitchens, and even well-trafficked hallways help create what experts call functional inconvenience. “We have these interdisciplinary connections because people have to take the stairs, or the bathroom is on a different floor,” says Peter Berg, the director of the School of Human Resources and Labor Relations at Michigan State University. “Moving through that space in an inconvenient way is really important to connection.” People end up talking to their co-workers—complimenting a new haircut, asking how the kids are—when they're corralled together waiting for the elevator or washing their hands next to each other in the bathroom. Over time, those quick encounters build a sense of belonging and warmth that makes spending so much of your life at work a little more bearable.

“You talk to people who really felt excited for the first few weeks of remote work,” Peditto said. Among other benefits, who doesn't relish the chance to be out from under the literal watchful eye of a supervisor? But now a fair number of the early enthusiasts are starting to go stir-crazy, she said, with no relief on the horizon and, maybe worse, no one to commiserate with at the office microwave for the 90 seconds it takes to nuke last night's spaghetti.

WHEN I BEGAN working from home at 23, I soon realized that the potential harm wasn't limited to my sleep schedule or my mood. Even if I successfully made myself a disciplined, 9-to-5 worker bee, I was far removed from the structure of my career itself. For the first few years, I had an inexpensive apartment in a small town that I loved, but it was far away from New York City, the country's fashion capital. I wasn't meeting anyone else who did similar work, wasn't being invited to anything, wasn't getting introduced to any friends or friends. If I had wanted or needed a new job, completely changing careers would probably have been easier than getting another gig in my field with the experience I'd accrued at home.

Moving to New York a few years into the job helped, but it didn't totally solve the problem—I was still the girl on her laptop in her bedroom, trying to make people from Twitter like me enough to meet a stranger for an after-hours drink. After you've left the ready-made social environment of school, an office is a natural place to look for new people who share your interests and outlook. But with no place to go to but just as many professional obligations, people working from home might have the flexibility to do everything except make new friends.

Even those who self-select into the work-from-home “lifestyle” report feeling distant from new professional opportunities, outside their companies as well as inside, Peditto told me. Deprived of desk neighbors, impromptu coffees, and any real way to, for a lack of a better term, read

everyone's vibe, she said that new hires and young people who work remotely risk remaining unknown quantities. And unknown quantities don't become beloved colleagues, or get promoted. How you begin your working life tends to shape your professional and financial prospects for decades to come. Those who were just starting out

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during the financial cataclysm of 2008 and the recession that followed have had their fortunes stunted by it, and many will never recover. For recent graduates beginning work via Zoom in the twin chaos of a pandemic and a financial crisis, the impact could be even more profound.

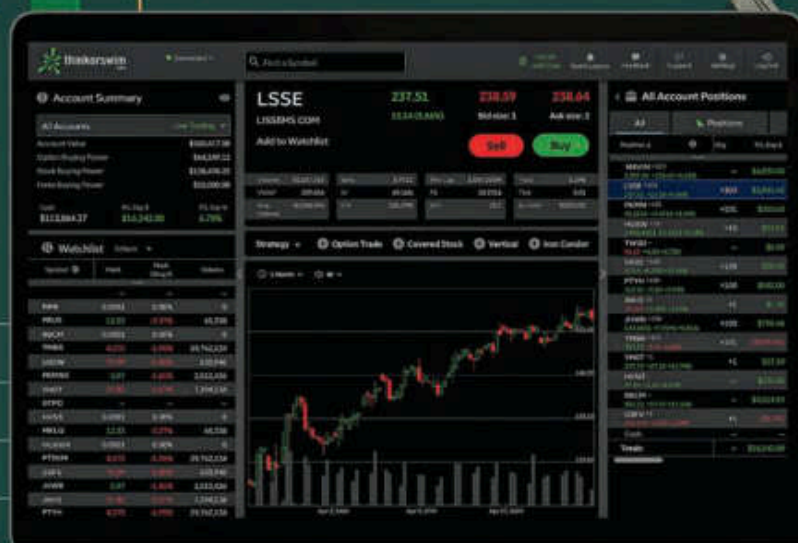
Women—of all ages—particularly suffer when telecommuting, Berg told me, with fewer promotions and slower wage growth. Employers already tend to assume that women, and especially mothers, are less dedicated to work than their male counterparts are, no matter how hard they toil. If those same women seek permission to stay home for good—opting out of the “face time” that many of their bosses hold irrationally dear—it

could encourage the assumption that they're sitting on their couches eating SkinnyPop and watching HGTV.

Good employers can account for those biases in their work practices, and theoretically, workers can organize their colleagues to pressure management toward better accommodations, such as expansion of parental leave and greater transparency in pay. But those efforts, including forming a union, are much harder when people can't meet face-to-face. A dispersed workforce means that employees have to go out of their way to compare experiences with one another, and that those with relatively little power have a tougher time sensing who their allies might be.

Ultimately, that might be the biggest problem of working from home in perpetuity. Workplaces are complex social ecosystems just like all other places humans inhabit, and decentralizing them can obliterate the things that make them satisfying: knowing eye contact with a co-worker when a change you've been begging for is finally announced. A slightly-too-long lunch break with your desk neighbor because your boss is in meetings all day. Giving a presentation to your peers and watching them receive it well. Figuring out whom you can rely on, and whom you can't. “There's so much unspoken that you absorb as an employee,” Peditto said. “You don't get that right now with just a set of scripted meetings.” At home, though, you probably get better coffee. *A*

Amanda Mull is a staff writer at The Atlantic.



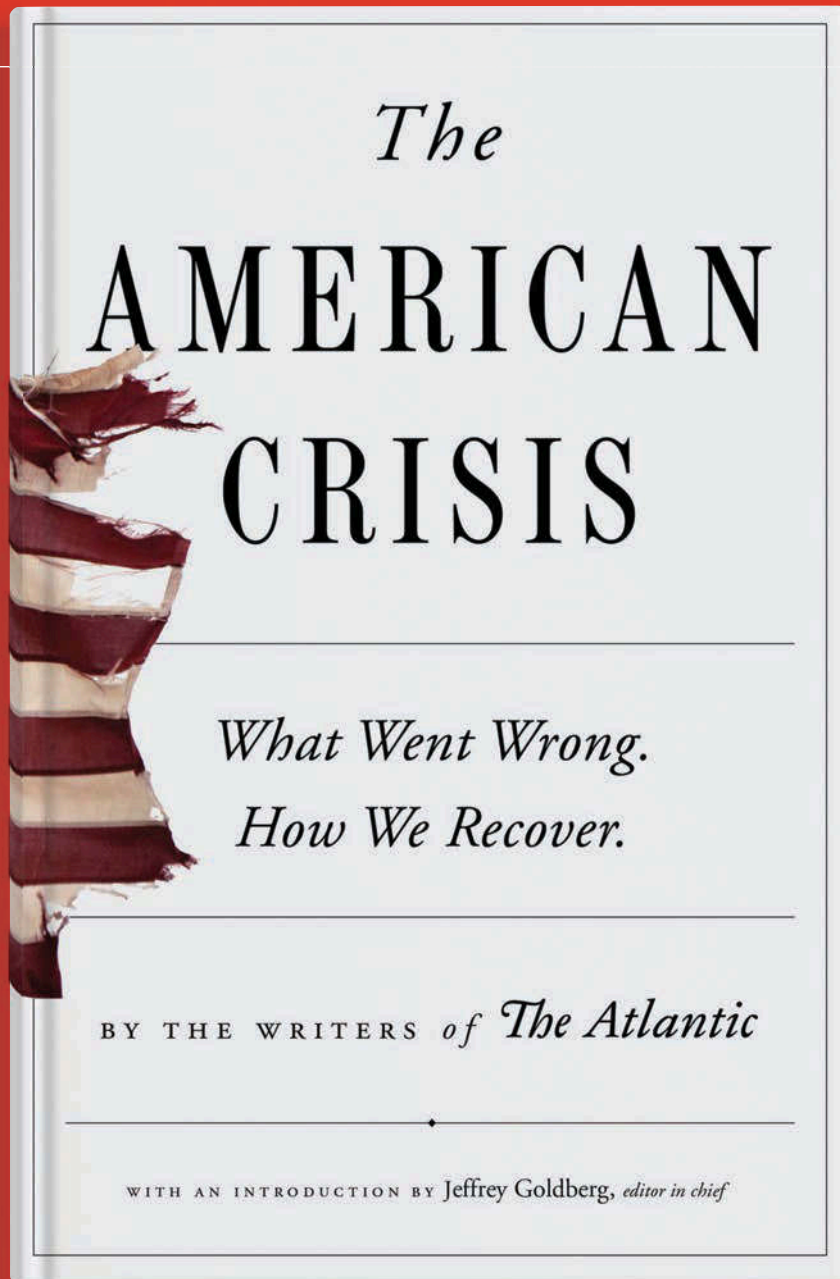
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—
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ANNE APPLEBAUM

on the lure of authoritarianism and the psychology of complicity

—
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IBRAM X. KENDI

on the history of racist ideas and the promise of anti-racist policy

—
“The American Nightmare” is Kendi’s poignant essay on the chasm between the national narrative of the American dream and many Black Americans’ lived reality.



ANNIE LOWREY

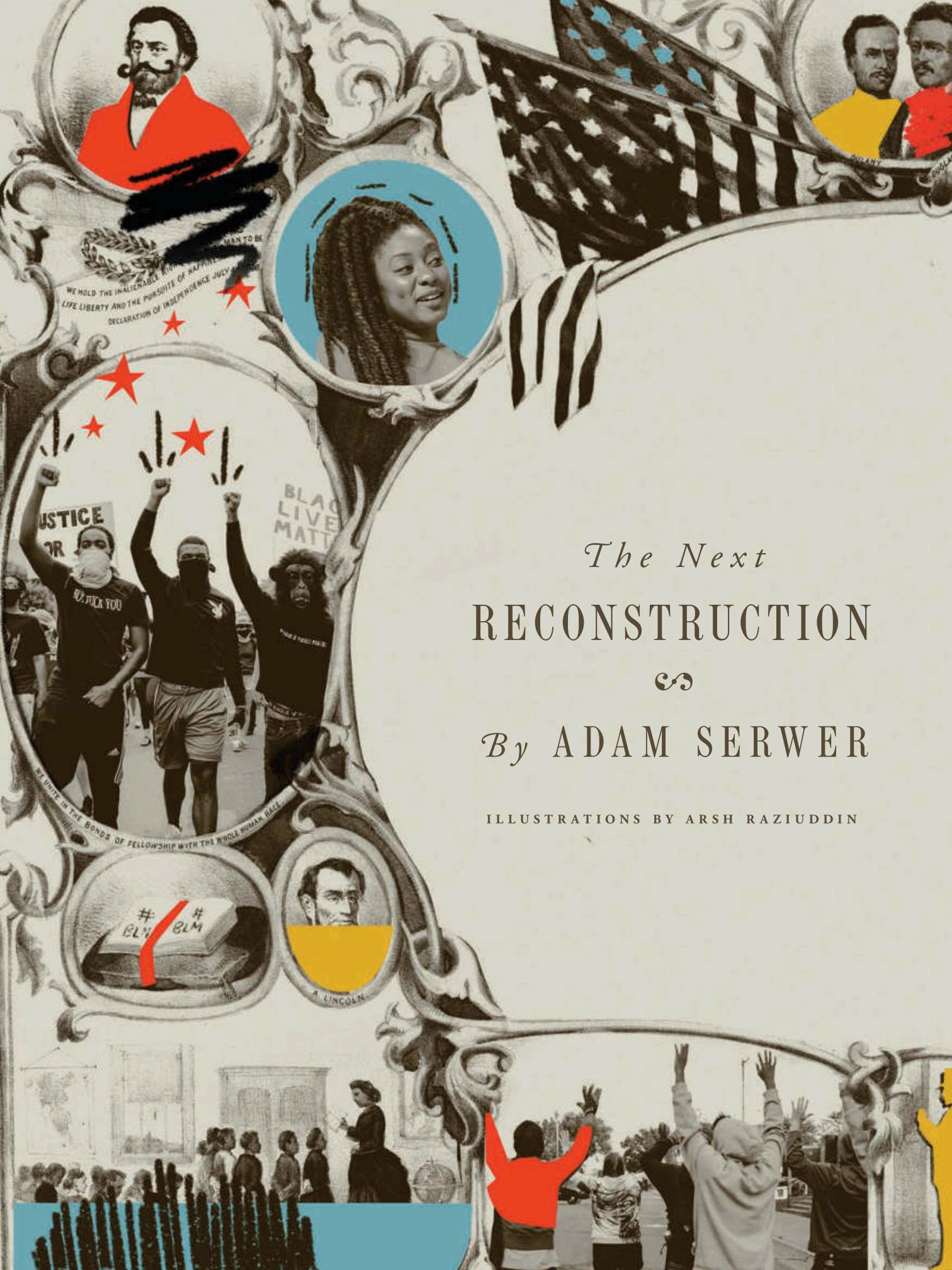
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—
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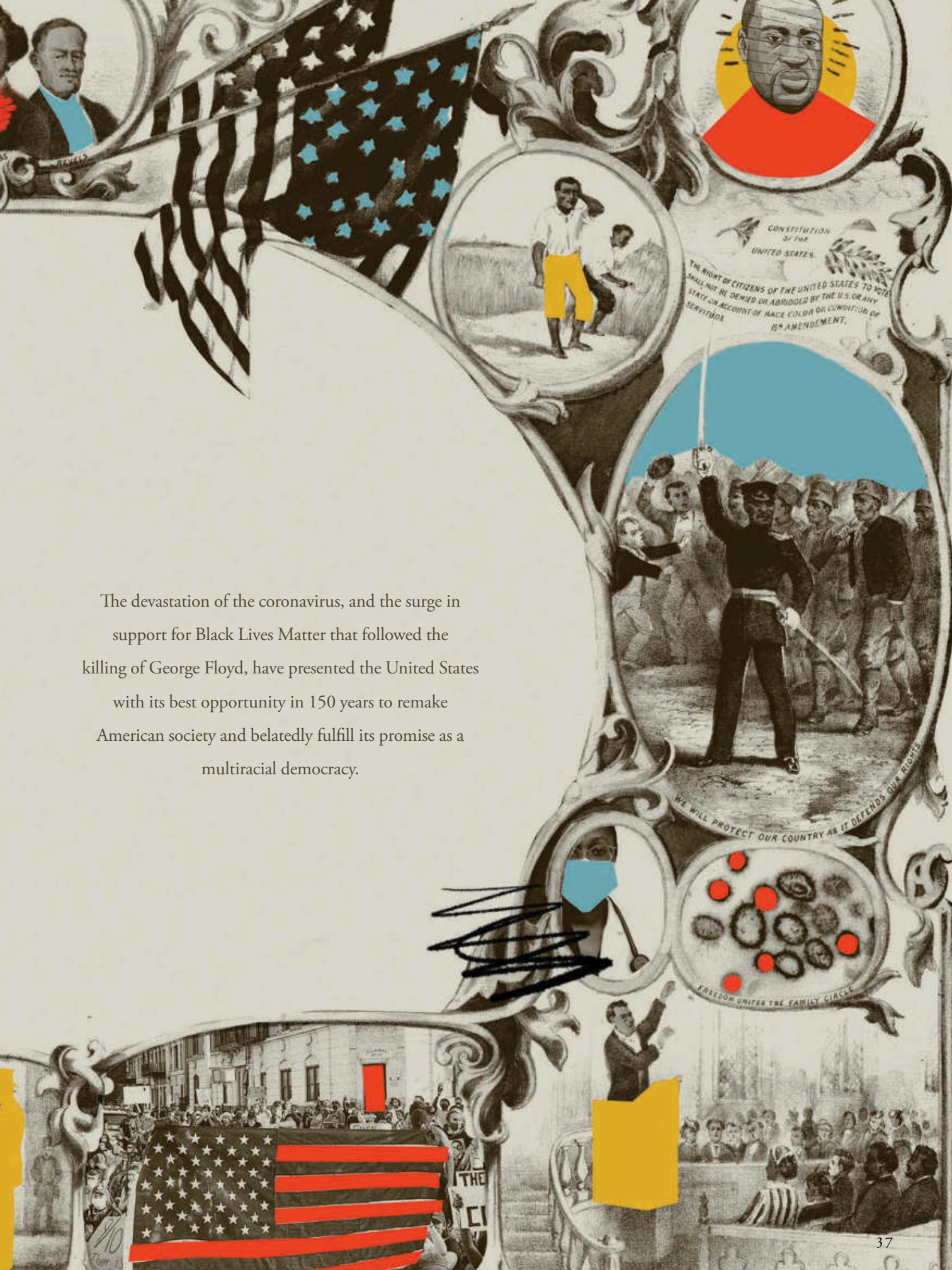
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The Next
RECONSTRUCTION
∞

By ADAM SERWER

ILLUSTRATIONS BY ARSH RAZIUDDIN



The devastation of the coronavirus, and the surge in support for Black Lives Matter that followed the killing of George Floyd, have presented the United States with its best opportunity in 150 years to remake American society and belatedly fulfill its promise as a multiracial democracy.



AFTER
George Floyd
WAS KILLED,
Donald Trump
SENSED AN
opportunity.

Americans, anguished and angry over Floyd's death, had erupted in protest—some set fires, broke the windows of department stores, and stormed a police precinct. Commentators reached for historical analogies, circling in on 1968 and the twilight of the civil-rights era, when riots and rebellion engulfed one American city after another. Back then, Richard Nixon seized on a message of “law and order.” He would restore normalcy by suppressing protest with the iron hand of the state. In return for his promise of pacification, Americans gave him the White House.

Surveying the protests, Trump saw a path to victory in Nixon's footsteps: The uprisings of 2020 could rescue him from his catastrophic mishandling of the coronavirus pandemic. The president leaned into his own “law and order” message. He lashed out against “thugs” and “terrorists,” warning that “when the looting starts, the shooting starts.” Ahead of what was to be his comeback rally in Tulsa, Oklahoma, in June, Trump tweeted, “Any protesters, anarchists, agitators, looters or lowlifes who are going to Oklahoma please understand, you will not be treated like you have been in New York, Seattle, or Minneapolis”—making no distinction between those protesting peacefully and those who might engage in violence.

In this, Trump was returning to a familiar playbook. He was relying on the chaos of the protests to produce the kind of racist backlash that he had ridden to the presidency in 2016. Trump had blamed the 2014 protests in Ferguson, Missouri—a response to the shooting of Michael Brown by a police officer—on Barack Obama's indulgence of criminality. “With our weak leadership in Washington, you can expect Ferguson type riots and looting in

other places,” Trump predicted in 2014. As president, he saw such uprisings as deliverance.

Then something happened that Trump did not foresee. It didn't work.

Trump was elected president on a promise to restore an idealized past in which America's traditional aristocracy of race was unquestioned. But rather than restore that aristocracy, four years of catastrophe have—at least for the moment—discredited it. Instead of ushering in a golden age of prosperity and a return to the cultural conservatism of the 1950s, Trump's presidency has radicalized millions of white Americans who were previously inclined to dismiss systemic racism as a myth, the racial wealth gap as a product of Black cultural pathology, and discriminatory policing as a matter of a few bad apples.

Those staples of the American racial discourse became hard to sustain this year, as the country was enveloped by overlapping national crises. The pandemic exposed the president. The nation needed an experienced policy maker; instead it saw a professional hustler, playing to the cameras and claiming that the virus would disappear. As statistics emerged showing that Americans of color disproportionately filled the ranks of essential workers, the unemployed, and the dead, the White House and its allies in the conservative media downplayed the danger of the virus, urging Americans to return to work and resurrect the Trump economy, no matter the cost.

Meanwhile, the state's seeming indifference to an epidemic of racist killings continued unabated: On February 23, Ahmaud Arbery was fatally shot after being pursued by three men in Georgia who thought he looked suspicious; for months, the men walked free. On March 13, Breonna Taylor, an emergency-room technician, was killed by Louisville, Kentucky, police officers serving a no-knock warrant to find a cache of drugs that did not exist; months later, one of the officers was fired but no charges were filed. Then, on Memorial Day, the Minneapolis police officer Derek Chauvin knelt on Floyd's neck and ignored his many pleas for help. The nation erupted. According to some polls, more than 23 million people participated in anti-police-brutality protests, potentially making this the largest protest movement in American history.

American history has produced a few similar awakenings. In 1955, the images of a mutilated Emmett Till helped spark the civil-rights movement. In 2013, the acquittal of Trayvon Martin's killer inspired Alicia Garza to declare that Black lives matter, giving form to a movement dedicated to finishing the work begun by its predecessors. Just as today, the stories and images of shattered Black lives inspired Americans to make the promises of the Declaration of Independence more than just a fable of the founding. But almost as quickly, the dream of remaking society faltered, when white Americans realized what they would have to sacrifice to deliver freedom. The urgent question now is whether this time is different.

The conditions in America today do not much resemble those of 1968. In fact, the best analogue to the current moment is the first and most consequential such awakening—in 1868. The story of that awakening offers a guide, and a warning. In the 1860s, the rise of a racist demagogue to the presidency, the valor of Black soldiers and workers, and the stories of outrages against the emancipated

in the South stunned white northerners into writing the equality of man into the Constitution. The triumphs and failures of this anti-racist coalition led America to the present moment. It is now up to their successors to fulfill the promises of democracy, to make a more perfect union, to complete the work of Reconstruction.

THEY CAME FOR George Ruby in the middle of the night, as many as 50 of them, their faces blackened to conceal their identities. As the Confederate veterans dragged Ruby from his home, they mocked him for having believed that he would be safe in Jackson, Louisiana: “S’pose you thought the United States government would protect you, did you?” They dragged him at least a mile, to a creek, where they beat him with a paddle and left him, half-dressed and bleeding, with a warning: Leave, and never return.

One of the few Black agents of the Freedmen’s Bureau, the federal agency established to facilitate the transition of the emancipated from slavery to freedom in the South, Ruby had come to Jackson in 1866 to open a school for the newly liberated. Although some of the men who attacked Ruby were eventually tried, under the guard of Black Union soldiers, Ruby heeded his attackers’ warning. But his choice of destination—Texas—would make him a frequent witness to the same violence he fled.

“Texas was very violent during the early years of Reconstruction,” Merline Pitre, a historian and biographer of Ruby, told me. One observer at the time said that “there was so much violence in Texas that if he had to choose between hell and Texas, he would have chosen hell.”

Ruby traveled through the state reviewing the work of the Freedmen’s Bureau and sending dispatches to his superiors. As the historian Barry A. Crouch recounts in *The Dance of Freedom*, Ruby warned that the formerly enslaved were beset by the “fendish lawlessness of the whites who murder and outrage the free people with the same indifference as displayed in the killing of snakes or other venomous reptiles,” and that “terrorism engendered by the brutal and murderous acts of the inhabitants, mostly rebels,” was preventing the freedmen from so much as building schools.

The post-Civil War years were a moment of great peril for the emancipated, but also great promise. A stubborn coterie of Republican Radicals—longtime abolitionists and their allies—were not content to have simply saved the Union. They wanted to transform it: to make a nation where “all men are created equal” did not just mean white men.

But the country was exhausted by the ravages of war. The last thing most white Americans wanted was to be dragged through a bitter conflict over expanding the boundaries of American citizenship. They wanted to rebuild the country and get back to business. John Wilkes Booth had been moved to assassinate Abraham Lincoln not by the Confederate collapse, but by the president’s openness to extending the franchise to educated Black men and those who had fought for the Union, an affront Booth described as “nigger citizenship.”

Lincoln’s successor, Andrew Johnson, viewed the Radical Republican project as an insult to the white men to whom the United States truly belonged. A Tennessee Democrat and self-styled

champion of the white working class, the president believed that “Negroes have shown less capacity for government than any other race of people,” and that allowing the formerly enslaved to vote would eventually lead to “such a tyranny as this continent has never yet witnessed.” Encouraged by Johnson’s words and actions, southern elites worked to reduce the emancipated to conditions that resembled slavery in all but name.

Throughout the South, when freedmen signed contracts with their former masters, those contracts were broken; if they tried to seek work elsewhere, they were hunted down; if they reported their concerns to local authorities, they were told that the testimony of Black people held no weight in court. When they tried to purchase land, they were denied; when they tried to borrow capital to establish businesses, they were rejected; when they demanded decent wages, they were met with violence.

In the midst of these terrors and denials, the emancipated organized as laborers, protesters, and voters, forming the Union Leagues and other Republican clubs that would become the basis of their political power. Southern whites insisted that the freedmen were unfit for the ballot, even as they witnessed their sophistication in protest and organization. In fact, what the former slave masters feared was not that Black people were incapable of self-government, but the world the emancipated might create.

From 1868 to 1871, Black people in the South faced a “wave of counter-revolutionary terror,” the historian Eric Foner has written, one that “lacks a counterpart either in the American experience or in that of the other Western Hemisphere societies that abolished slavery in the nineteenth century.” Texas courts, according to Foner, “indicted some 500 white men for the murder of blacks in 1865 and 1866, but not one was convicted.” He cites one northern observer who commented, “Murder is considered one of their inalienable state rights.”

The system that emerged across the South was so racist and authoritarian that one Freedmen’s Bureau agent wrote that the emancipated “would be just as well off with no law at all or no Government.” Indeed, the police were often at the forefront of the violence. In 1866, in New Orleans, police joined an attack on Republicans organizing to amend the state constitution; dozens of the mostly Black delegates were killed. General Philip Sheridan wrote in a letter to Ulysses S. Grant that the incident “was an absolute massacre by the police . . . perpetrated without the shadow of a necessity.” The same year, in Memphis, white police officers started a fight with several Black Union veterans, then used the conflict as a justification to begin firing at Black people—civilians and soldiers alike—all over the city. The killing went on for days.

These stories began to reach the North in bureaucratic dispatches like Ruby’s, in newspaper accounts, and in testimony to the congressional committee on Reconstruction. Northerners heard about Lucy Grimes of Texas, whose former owner demanded that she beat her own son, then had Grimes beaten to death when she refused. Her killers went unpunished because the court would not hear “negro testimony.” Northerners also heard about Madison Newby, a former Union scout from Virginia driven by “rebel people” from land he had purchased, who testified that former slave masters were “taking the colored people and tying them up by the

thumbs if they do not agree to work for six dollars a month.” And they heard about Glasgow William, a Union veteran in Kentucky who was lynched in front of his wife by the Ku Klux Klan for declaring his intent to vote for “his old commander.” (Newspapers sympathetic to the white South dismissed such stories; one called the KKK the “phantom of diseased imaginations.”)

The South’s intransigence in defeat, and its campaign of terror against the emancipated, was so heinous that even those inclined toward moderation began to reconsider. Carl Schurz, a German immigrant and Union general, was dispatched by the Johnson administration to investigate conditions in the South. Schurz sympathized with white southerners who struggled to adjust to the new order. “It should not have surprised any fair-minded person that many Southern people should, for a time, have clung to the accustomed idea that the landowner must also own the black man tilling his land, and that any assertion of freedom of action on the part of that black man was insubordination equivalent to criminal revolt, and any dissent by the black man from the employer’s opinion or taste, intolerable insolence,” he wrote.

The horrors he witnessed, however, convinced him that the federal government had to intervene: “I saw in various hospitals negroes, women as well as men, whose ears had been cut off or whose bodies were slashed with knives or bruised with whips, or bludgeons, or punctured with shot wounds. Dead negroes were found in considerable number in the country roads or on the fields, shot to death, or strung upon the limbs of trees. In many districts the colored people were in a panic of fright, and the whites in a state of almost insane irritation against them.”

When Schurz returned to Washington, Johnson refused to hear his findings. The president had already set his mind to maintaining the United States as a white man’s government. He told Schurz that a report was unnecessary, then silently waited for Schurz to leave. “President Johnson evidently wished to suppress my testimony as to the condition of things in the South,” Schurz wrote in his memoir. “I resolved not to let him do so.”

The stories of southern violence radicalized the white North. “The impression made by these things upon the minds of the Northern people can easily be imagined,” Schurz wrote. “This popular temper could not fail to exercise influence upon Congress and stimulate radical tendencies among its members.”

Still convinced that most of the country was on his side, Johnson sank into paranoia, grandeur, and self-pity. In his “Swing Around the Circle” tour, Johnson gave angry speeches before raucous crowds, comparing himself to Lincoln, calling for some Radical Republicans to be hanged as traitors, and blaming the New Orleans riot on those who had called for Black suffrage in the first place, saying, “Every drop of blood that was shed is upon their skirts and they are responsible.” He blocked the measures that Congress took up to protect the rights of the emancipated, describing them as racist against white people. He told Black

leaders that he was their “Moses,” even as he denied their aspirations to full citizenship.

Johnson had reason to believe, in a country that had only just abolished slavery, that the Radicals’ attempt to create a multi-racial democracy would be rejected by the electorate. What he did not expect was that in his incompetence, coarseness, and vanity, he would end up discrediting his own racist crusade, and press the North into pursuing a program of racial justice that it had wanted to avoid.

Black leaders were conscious that Johnson’s racism had, rather than weakening the cause of Black suffrage, reaffirmed its necessity. *The Christian Recorder*, edited by the Reverend James Lynch, editorialized that “paradoxical as it may seem, President Johnson’s opposition to our political interests will finally result in securing them to us.” The Republicans swept the 1866 midterms, and Johnson was impeached in 1868—officially for violating the Tenure of Office Act, but this was mere pretext. The real reason was his obstruction of Congress’s efforts to protect the emancipated. Johnson was acquitted, but his presidency never recovered.

The turmoil in the South, and Johnson’s enabling of it, set Congress on the path to the Fourteenth and Fifteenth Amendments,

ratified in 1868 and 1870, respectively. The amendments made everyone born or naturalized in the United States a citizen and made it unconstitutional to deprive Americans of the right to vote on the basis of race. Today, the principles underlying the Reconstruction amendments are largely taken for granted; few in the political mainstream openly oppose them, even as they might seek to undermine them. But these amendments are the founda-

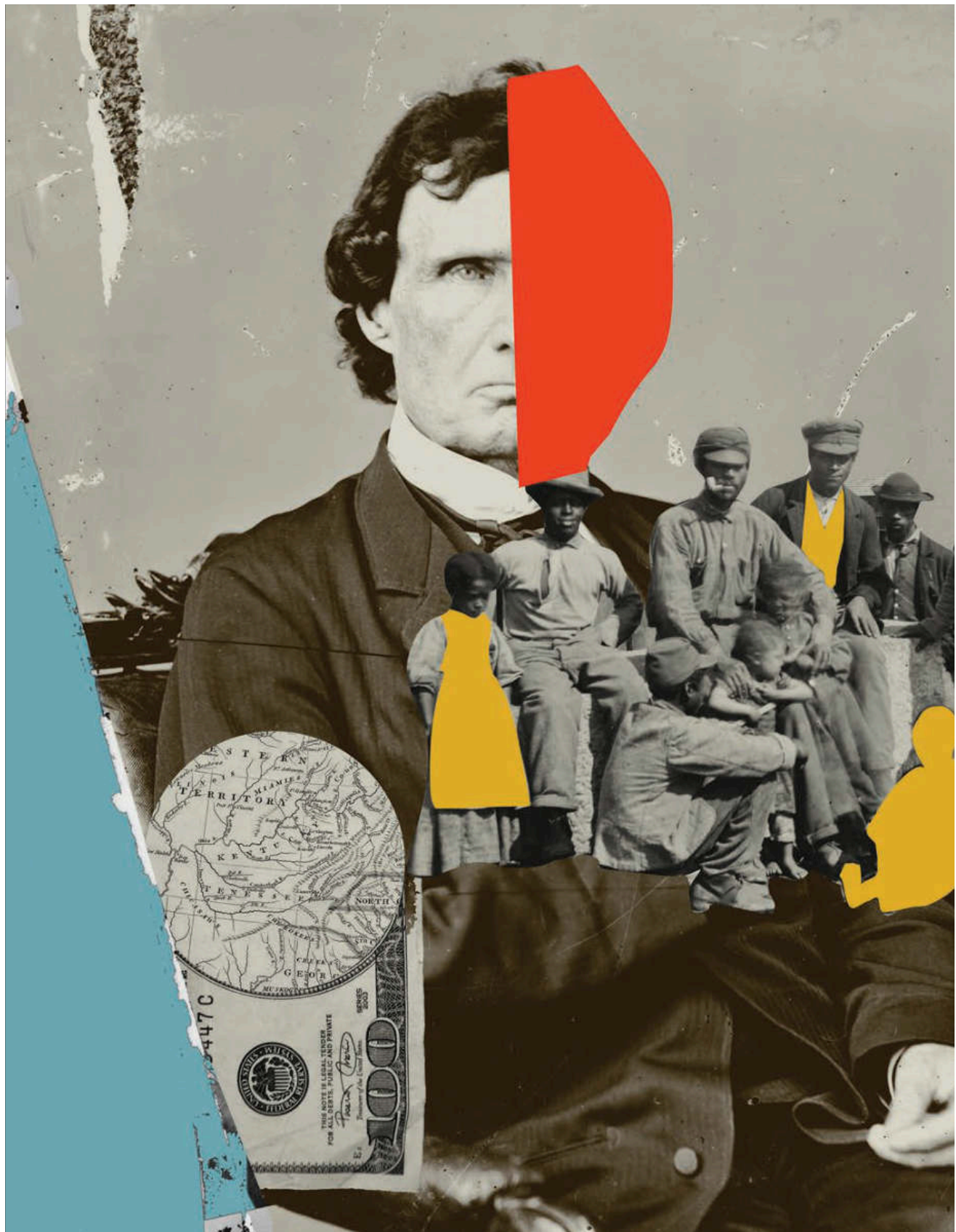
tion of true democracy in America, the north star for every American liberation movement that has followed.

Congress also passed laws barring racial discrimination in public accommodations, which would be quickly ignored and then, almost a century later, revived by the civil-rights movement. State governments, though not without their flaws and struggles, massively expanded public education for Black and white southerners, funded public services, and built infrastructure. On the ashes of the planter oligarchy, the freedmen and their allies sought to build a new kind of democracy, one worthy of the name.

The Reconstruction agenda was not motivated by pure idealism. The Republican Party understood that without Black votes, it was not viable in the South, and that its opposition would return to Congress stronger than it was before the war if Black disenfranchisement succeeded. Still, a combination of partisan self-interest and egalitarian idealism established the conditions for multiracial democracy in the United States.

Swept up in the infinite possibilities of the moment, even the abolitionist Frederick Douglass, who before the war had excoriated America for the hollowness of its ideals, dared to imagine the nation as more than a white man’s republic with Black men as honored guests. “I want a home here not only for the Negro,

In the past, the dream of remaking society has faltered when white Americans have realized what they would have to sacrifice to deliver freedom. The question now is whether this time is different.



The Radical Republican Thaddeus Stevens. After the Civil War, Stevens warned that without economic empowerment, freedmen would eventually find themselves at the mercy of their former masters.

the mulatto, and the Latin races; but I want the Asiatic to find a home here in the United States, and feel at home here, both for his sake and for ours,” Douglass declared in 1869. “In whatever else other nations may have been great and grand, our greatness and grandeur will be found in the faithful application of the principle of perfect civil equality to the people of all races and of all creeds, and to men of no creeds.”

BLACK AMERICANS TODAY do not face the same wave of terror they did in the 1860s. Still, George Floyd, Breonna Taylor, and Ahmaud Arbery were only the most recent names Americans learned. There was Eric Garner, who was choked to death on a New York City sidewalk during an arrest as he rasped, “I can’t breathe.” There was Walter Scott in North Charleston, South Carolina, who was shot in the back while fleeing an officer. There was Laquan McDonald in Chicago, who was shot 16 times by an officer who kept firing even as McDonald lay motionless on the ground. There was Stephon Clark, who was gunned down while using a cellphone in his grandmother’s backyard in Sacramento, California. There was Natasha McKenna, who died after being tased in a Virginia prison. There was Freddie Gray, who was seen being loaded into the back of a Baltimore police van in which his spinal cord was severed. There was Tamir Rice, a 12-year-old in Cleveland with a toy gun who was killed by police within moments of their arrival.

What these stories have in common is that they were all captured on video. Just as southern dispatches and congressional testimony about the outrages against the emancipated radicalized the white North with a recognition of how the horrors of racism shaped Black life in America, the proliferation of videos from cellphones and body cameras has provided a vivid picture of the casual and often fatal abuse of Black Americans by police.

“There’s a large swath of white people who I think thought Black people were being hyperbolic about police humiliation and harassment,” Patrisse Cullors, one of the co-founders of the Black Lives Matter movement, told me. “We started seeing more and more people share videos of white people calling the cops on Black people and using the cops as their weapon against the Black community. Those kinds of viral videos—that weren’t just about Black death, but Black people’s everyday experience with policing—have shaped a new ideology. What are the police really here for? Who are they truly protecting?”

The continual accretion of gruesome evidence of police violence has taken a toll on today’s activists; some rarely watch the videos anymore. George Floyd was killed just a few blocks from the home of Miski Noor, an organizer in Minneapolis. But Noor could watch the video of his death for only a minute before turning away.

“I’ve seen enough,” Noor told me. “I don’t want to see anymore.” But the work of Cullors, Noor, and others ensured that these videos dramatically shifted public opinion about racism and American policing.

After the rise of Barack Obama, large numbers of white Americans became convinced not only that racism was a thing of the past but also that, to the extent racial prejudice remained a factor in American life, white people were its primary victims. “In 2008,

in the battleground states, more white voters thought reverse discrimination was a bigger deal than classic racial discrimination,” Cornell Belcher, a pollster who worked on both of Barack Obama’s presidential campaigns, told me. The activism of Black Lives Matter, the Movement for Black Lives, and other groups, as well as the unceasing testimony of those lost to police violence, has reversed that trend. “In the past, white voters by and large didn’t think that discrimination was a real big thing. Now they understand that it is.”

A June 2020 Monmouth University poll found increases across all races in the belief that law enforcement discriminates against Black people in the U.S. The same poll found that 76 percent of Americans considered racism and discrimination a “big problem”—up from 51 percent in 2015. In a Pew Research Center poll the same month, fully 67 percent of Americans expressed some degree of support for Black Lives Matter.

These numbers are even more remarkable when considered in historical context. In 1964, in a poll taken nine months after the March on Washington, where Martin Luther King Jr. gave his “I Have a Dream” speech, 74 percent of Americans said such mass demonstrations were more likely to harm than to help the movement for racial equality. In 1965, after marchers in Selma, Alabama, were beaten by state troopers, less than half of Americans said they supported the marchers.

The shift that’s occurred this time around “wasn’t by happenstance,” Brittany Packnett Cunningham, an activist and a writer, told me, nor is it only the product of video evidence. “It has been the work of generations of Black activists, Black thinkers, and Black scholars that has gotten us here”—people like Angela Davis, Kimberlé Crenshaw, Michelle Alexander, and others. “Six years ago, people were not using the phrase *systemic racism* beyond activist circles and academic circles. And now we are in a place where it is readily on people’s lips, where folks from CEOs to grandmothers up the street are talking about it, reading about it, researching on it, listening to conversations about it.”

All of that preparation met the moment: George Floyd’s killing, the pandemic’s unmistakable toll on Black Americans, and Trump’s callous and cynical response to both.

Still, like Andrew Johnson, Trump bet his political fortunes on his assumption that the majority of white Americans shared his fears and beliefs about Black Americans. Like Johnson, Trump did not anticipate how his own behavior, and the behavior he enabled and encouraged, would discredit the cause he backed. He did not anticipate that the activists might succeed in convincing so many white Americans to see the protests as righteous and justified, that so many white Americans would understand police violence as an extension of his own cruelty, that the pandemic would open their eyes to deep-seated racial inequities.

“I think this country is at a turning point and has been for a little while. We went from celebrating the election of the first Black president in history to bemoaning a white nationalist in the White House,” Alicia Garza told me. “People are grappling with the fact that we’re not actually in a post-racial society.”

How far will the possibilities of this moment extend? We could consider two potential outcomes—one focused on police and prisons, and a broader one, aimed at eliminating the deeply entrenched

systems that keep Black people from realizing full equality, a long-standing crisis Americans have tried to suppress with policing and prisons rather than attempting to resolve it.

A majority of Americans have accepted the diagnosis of Black Lives Matter activists, even if they have yet to embrace their more radical remedies, such as defunding the police. For the moment, the surge in public support for Black Lives Matter appears to be an expression of approval for the movement's most basic demand: that the police stop killing Black people. This request is so reasonable that only those committed to white supremacy regard it as outrageous. Large majorities of Americans support reforms such as requiring the use of body cameras, banning choke holds, mandating a national police-misconduct database, and curtailing qualified immunity, which shields officers from liability for violating people's constitutional rights.

The urgency of addressing this crisis has been underscored by the ongoing behavior of police departments, whose officers have reacted much as the white South did after Appomattox: by brutalizing the people demanding change.

In New York City, officers drove two SUVs into a crowd of protesters. In Philadelphia, cops beat demonstrators with batons. In Louisville, police shot pepper balls at reporters. In Austin, Texas, police left a protester with a fractured skull and brain damage after firing bean-bag rounds unprovoked. In Buffalo, New York, an elderly protester was shoved to the ground by police in full riot gear, sustained brain damage, and had to be hospitalized. The entire riot team resigned from the unit in protest—not because of their colleagues' behavior, but because they faced sanction for it.

Yet the more the police sought to violently repress the protesters, the more people spilled into the streets in defiance, risking a solitary death in a hospital bed in order to assert their right to exist, to not have their lives stolen by armed agents of the state. "As the uprising went on, we saw the police really responding in ways that were retaliatory and vicious," Noor told me. "Kind of like, 'How dare you question me and my intentions and my power?'"

At the height of Reconstruction, racist horrors produced the political will to embrace measures once considered impossibly idealistic, such as Black male suffrage. Many Black Lives Matter activists have a similarly radical vision. The calls to defund or abolish the police seem sudden to those who do not share their premises. But these activists see a line of continuity in American policing that stretches back to the New Orleans and Memphis killings that so outraged the postbellum white North, and back further still, to antebellum slave patrols. And although there is no firm consensus on how to put an end to this history, there is broad agreement that police should not be the solution to problems like poverty, addiction, and homelessness, and that public resources should be used to meet the needs of communities.

In the face of implacable violence across generations, simply banning choke holds and mandating body cameras are not meaningful solutions. To these activists, centuries of liberal attempts at reform have only bureaucratized the role of the police as the armed guardians of a racist system, one that fractures Black families, restricts Black people's employment opportunities, and excludes them from the ballot box.

"I want to see the existing systems of policing and carceral punishment abolished and replaced with things that actually restore justice and keep people safe at home," Packnett Cunningham told me.

The problem is not simply that a chance encounter with police can lead to injury or death—but that once marked by the criminal-justice system, Black people can be legally disenfranchised, denied public benefits, and discriminated against in employment, housing, and jury service. "People who have been convicted of felonies almost never truly reenter the society they inhabited prior to their conviction. Instead, they enter a separate society, a world hidden from public view, governed by a set of oppressive and discriminatory rules and laws that do not apply to everyone else," Michelle Alexander wrote in *The New Jim Crow* in 2010. "Because this new system is not explicitly based on race, it is easier to defend on seemingly neutral grounds."

In the aftermath of the Ferguson protests, it was fashionable to speak of a "new civil-rights movement." But it is perhaps more illuminating to see Black Lives Matter as a new banner raised on the same field of battle, stained by the blood of generations who came before. The fighters are new, but the conflict is the same one that Frederick Douglass and George Ruby fought, one that goes far beyond policing.

As Garza put it to me, American society has turned to law enforcement to address the challenges Black communities face, but those challenges can't be solved with a badge and a gun. "You don't have schools that function well; you don't have teachers that get paid; you don't have hospitals in some communities," she said. "You don't have grocery stores in some communities. This creates the kinds of conditions that make people feel like police are necessary, but the solution is to actually reinvest in those things that give people a way to live a good life, where you have food, a roof over your head, where you can learn a craft or skill or just learn, period."

BELIEVING IN RACIAL EQUALITY in the abstract and supporting policies that would make it a reality are two different things. Most white Americans have long professed the former, and pointedly declined to do the latter. This paradox has shown up so many times in American history that social scientists have a name for it: the principle-implementation gap. This gap is what ultimately doomed the Reconstruction project.

One of the ways the principle-implementation gap manifests itself is in the distinction between civic equality and economic

"I think this country is at a turning point," Alicia Garza says. "People are grappling with the fact that we're not actually in a post-racial society."



Democratic presidential nominee Joe Biden has invoked the legacy of Reconstruction's past, but his calls to action would be more promising if he were not an author of the system he now opposes.

As the freedmen sought to secure their rights through state intervention—non-discrimination laws in business and education, government jobs, and federal protection of voting rights—many Republicans recoiled. As the historian Heather Cox Richardson has written, these white Republicans began to see freedmen not as ideal free-laborers but as a corrupt labor interest, committed to securing through government largesse what they could not earn through hard work. “When the majority of the Southern African-Americans could not overcome the overwhelming obstacles in their path to economic security,” she wrote in *The Death of Reconstruction*, “Northerners saw their failure as a rejection of free-labor ideals, accused them of being deficient workers, and willingly read them out of American society.”

Retreating from Reconstruction, these Republicans cast their objections to the project as advocacy for honest, limited government, rather than racism.

justice. After the Civil War, Representative Thaddeus Stevens, a Radical Republican, urged the federal government to seize the estates of wealthy former Confederates and use them in part to provide freedmen with some small compensation for centuries of forced labor. Stevens warned that without economic empowerment, freedmen would eventually find themselves at the mercy of their former masters.

“It is impossible that any practical equality of rights can exist where a few thousand men monopolize the whole landed property,” Stevens wrote in 1865. “The whole fabric of Southern society must be changed, and never can it be done if this opportunity is lost. Without this, this government can never be, as it never has been, a true republic.”

Even in his own party, Stevens’s idea was viewed as extreme. Nineteenth-century Republicans believed in an ideology of “free labor,” in which the interests of labor and capital were the same, and all workers could elevate themselves into a life of plenty through diligence and entrepreneurship. By arming Black men with the ballot, most Republicans believed they had set the stage for a free-labor society. They did not see what the emancipated saw: a world of state-sanctioned and informal coercion in which simply elevating oneself through hard work was impossible.

But the results would ultimately be the same: an abandonment of the freedmen to their fate. Men like Carl Schurz, who had been briefly radicalized by the violence in the South and the extremism of Andrew Johnson, began to see federal intervention on behalf of the freedmen as its own kind of tyranny.

“Schurz advocated political amnesty, an end to federal intervention, and a return to ‘local self-government’ by men of ‘property and enterprise,’” Eric Foner writes. “Schurz sincerely believed blacks’ rights would be more secure under such governments than under the Reconstruction regimes. But whether he quite appreciated it or not, his program had no other meaning than a return to white supremacy.”

Local authority was ultimately restored by force of arms, as Democrats and their paramilitary allies overthrew the Reconstruction governments through intimidation, murder, and terrorism, and used their restored power to disenfranchise the emancipated for almost a century. Many of the devices the southern states used to do so—poll taxes, literacy tests—disenfranchised poor whites as well. (It was not the first or last time that the white elite would see the white poor as acceptable collateral damage in the fight for white supremacy.) At the national level, the economic collapse brought on by the Panic of 1873 wounded Republicans

at the ballot box and further weakened support for the faltering Reconstruction project.

White northerners deserted the cause as if they had never supported it. They understood that they were abandoning the emancipated to despotism, but most no longer considered the inalienable rights of Black Americans their problem.

“For a brief period—for the seven mystic years that stretched between Johnson’s ‘Swing Around the Circle’ to the Panic of 1873, the majority of thinking Americans of the North believed in the equal manhood of Negroes,” W. E. B. Du Bois wrote in 1935. “While after long years the American world recovered in most matters, it has never yet quite understood why it could ever have thought that black men were altogether human.” These Americans believed Black lives mattered. But only for a moment.

THADDEUS STEVENS KNEW that without sufficient economic power, civic equality becomes difficult to maintain. His insight has proved remarkably durable across American history. The question now is whether a new coalition, radicalized by racism, can defy that history.

The most dramatic advances for Black Americans since Stevens’s time have come in the form of civic equality, not economic justice. In 1932, Franklin D. Roosevelt broke the party of Lincoln’s hold on northern Black voters with promises of a New Deal. But FDR’s reliance on southerners in Congress—the guardians of American apartheid—ensured that most Black Americans were discriminated against by the policies that built the prosperous white middle class of the mid-20th century: the Social Security Act, the National Housing Act, the GI Bill, and others.

When President John F. Kennedy introduced, in June 1963, what would become the Civil Rights Act, he saw it as fulfilling the work of Reconstruction. “One hundred years of delay have passed since President Lincoln freed the slaves, yet their heirs, their grandsons, are not fully free. They are not yet freed from the bonds of injustice. They are not yet freed from social and economic oppression,” Kennedy declared. “And this nation, for all its hopes and all its boasts, will not be fully free until all its citizens are free.”

JFK’s successor, Lyndon B. Johnson, sought to enact his vision with the passage of the Civil Rights Act, the Voting Rights Act, and the Fair Housing Act, in what is sometimes referred to as the Second Reconstruction. But just as the first Reconstruction had been obliterated by Jim Crow, the Great Society’s ambitions toward civic equality and economic justice were drowned by its crime-prevention programs. As the historian Elizabeth Hinton writes in *From the War on Poverty to the War on Crime*, those programs metastasized into a bipartisan policy of mass incarceration. Future administrations from both parties divested from the Great Society’s social programs, while pouring funding into law enforcement. This, Hinton observes, left “law enforcement agencies, criminal justice institutions, and jails as the primary public programs in many low-income communities across the United States.”

Americans remember the occasion of Martin Luther King’s “I Have a Dream” speech as the March on Washington, but this is a shorthand: The 1963 event was actually called the March on Washington for Jobs and Freedom. King and others in the

civil-rights movement did not see the goals of civic equality and economic justice as severable. Yet they, too, struggled to persuade white Americans to devote the necessary public resources to resolving the yawning economic disparities between Black people and white people.

“White America, caught between the Negro upsurge and its own conscience, evolved a limited policy toward Negro freedom. It could not live with the intolerable brutality and bruising humiliation imposed upon the Negro by the society it cherished as democratic,” King wrote in *The Nation* in 1966. “A hardening of opposition to the satisfaction of Negro needs must be anticipated as the movement presses against financial privilege.”

King was right. The racial wealth gap remains as wide today as it was in 1968, when the Fair Housing Act was passed. The median net worth of the American family is about \$100,000. But the median net worth of white families is more than \$170,000—while that of Black families is less than \$20,000. According to William Darity Jr., an economist and Duke public-policy professor, fully a quarter of white families have a net worth of more than \$1 million, while only 4 percent of Black families meet that threshold. These disparities in wealth persist among middle- and low-income families. In 2016, according to Pew, “lower-income white households had a net worth of \$22,900, compared with only \$5,000 for Black households and \$7,900 for Hispanic households in this income tier.” These disparities are not the product of hard work or cultural differences, as one conservative line of thinking would have it. They are the product of public policy, what Darity calls the “cumulative damages” of racial discrimination across generations.

What economic strides Black Americans had made in the decades since 1968—largely through homeownership, the traditional cornerstone of wealth-building in the United States—were all but wiped out by the Great Recession of 2008. From 2005 to 2009, according to the Pew Research Center, the median net worth of Black households dropped by 53 percent, while white household net worth dropped by 16 percent.

Just as the Great Recession devastated the personal wealth of Black Americans, the coronavirus recession now threatens to destroy Black businesses, which are especially vulnerable to economic downturns, as they tend to lack corporate structures, easy access to credit, and large cash reserves. They are also less likely to be able to access government aid, because they may not have a preexisting relationship with the big banks that distribute the loans and because of outright discrimination. The National Community Reinvestment Coalition conducted an experiment in which white and Black subjects requested information about loans to help keep their small businesses open during the pandemic. It found that white requesters received favorable treatment—were offered more loan products, and were more likely to be encouraged to apply for them—compared with Black requesters.

From February to April, according to Robert Fairlie, an economist at UC Santa Cruz, 41 percent of Black businesses stopped operations, compared with 22 percent of businesses overall. This loss will have a cascading effect, devastating not only the business owners themselves but the people who live in the cities and neighborhoods where they are located. “Black-owned businesses tend to hire

a disproportionate number of Black employees,” Fairlie told me.

In the aftermath of the coronavirus, the nation will have to be reconstructed. It will require a massive federal effort to keep Americans in their homes, provide them with employment, revive businesses that have not been able to function under pandemic conditions, protect workers’ health and safety, sustain cash-strapped state governments, and ultimately restore American prosperity. It will take an even greater effort to do so in a manner that does not simply reproduce existing inequities. But the necessity of post-pandemic rebuilding also provides an opportunity for a truly sweeping New Reconstruction, one that could endeavor to resolve the unfinished work of the nation’s past Reconstructions.

The obstacles facing such an effort are manifold. Too many Americans still view racism as largely a personal failing rather than a systemic force. In this view, one’s soul can be purged of racism by wielding the correct jargon, denouncing the right villains, and posting heartfelt Instagram captions. Fulfilling the potential of the current moment will require white Americans to do more than just seek or advertise their personal salvation.

Then there is the question of whether the political vehicle of today’s anti-racist coalition, the Democratic Party, is up to the task, should it prevail in the 2020 elections. Reversing the erosion of voting rights is an area of obvious partisan self-interest for Democrats, and one likely to command broad support. The fight against racist policing and mass incarceration is largely a state and local one. Activists have yet to persuade a majority of voters to embrace their most radical proposals, but they have already achieved a great deal of success in stiffening the spines of politicians in their dealings with police unions, in electing progressive district attorneys over the objections of those unions and their allies, and in prompting officials to transfer certain law-enforcement responsibilities to other public servants. The greater challenge will be enacting the kind of sweeping reforms that would unwind what King called entrenched financial privilege.

“Efforts to remedy glaring racial inequality in the criminal-justice system, which whites have long denied but now acknowledge, taps into principles of equal treatment that have historically been easier to get whites on board for than the big structural changes that are needed to produce some semblance of actual equality,” the political scientist Michael Tesler told me recently. “Whites have historically had little appetite for implementing the policies needed to achieve equality of outcomes.”

As for the Democrats’ presidential standard-bearer, Joe Biden has struck an ambitious note, invoking the legacy of Reconstructions past. “The history of this nation teaches us that in some of our darkest moments of despair, we’ve made some of our greatest progress,” Biden declared amid the Floyd protests in June. “The Thirteenth, Fourteenth, Fifteenth Amendments followed the Civil War. The greatest economic growth in world history grew out of the Great Depression. The Civil Rights Act of 1964 and Voting

Rights Act of ’65 came on the tracks of Bull Connor’s vicious dogs ... But it’s going to take more than talk. We had talk before; we had protest before. We’ve got to now vow to make this at least an era of action and reverse the systemic racism with long-overdue concrete changes.”

Such a call to action would be more promising if Biden himself were not an author of the system he now opposes. He became a U.S. senator in an era of racial backlash. He worked with segregationists to dismantle school-desegregation programs and was part of the bipartisan bloc that expanded mass incarceration. During the “tough on crime” era of the 1990s, he bragged on the Senate floor of the fondness for prisons and harsh punishment in the “liberal wing of the Democratic Party.” Biden’s selection of Kamala Harris as his running mate is historic, but Harris, a former prosecutor, is no radical on these matters.

Yet change is possible, even for an old hand like Biden. Ulysses S. Grant married into a slave-owning family, and inherited an enslaved person from his father-in-law. Little in his past suggested that he would crush the slave empire of the Confederacy, smash the first Ku Klux Klan, and become the first American president to champion the full citizenship of Black men. Before he signed the Civil and Voting Rights Acts as president, Senator Lyndon Johnson was a reliable segregationist. History has seen more dramatic reversals than Joe Biden becoming a committed foe of systemic racism, though not many.

If Democrats seize the moment, it will be because the determination of a new generation of activists, and the uniqueness of the party’s current makeup, has compelled them to do so. In the 1870s—and up through the 1960s—the American population was close to 90 percent white. Today it is 76 percent white. The growing diversity of the United States—and the Republican Party’s embrace of white identity politics in response—has created a large constituency in the Democratic Party with a direct stake in the achievement of racial equality.

There has never been an anti-racist majority in American history; there may be one today in the racially and socioeconomically diverse coalition of voters radicalized by the abrupt transition from the hope of the Obama era to the cruelty of the Trump age. All political coalitions are eventually torn apart by their contradictions, but America has never seen a coalition quite like this.

History teaches that awakenings such as this one are rare. If a new president, and a new Congress, do not act before the American people’s demand for justice gives way to complacency or is eclipsed by backlash, the next opportunity will be long in coming. But in these moments, great strides toward the unfulfilled promises of the founding are possible. It would be unexpected if a demagogue wielding the power of the presidency in the name of white man’s government inspired Americans to recommit to defending the inalienable rights of their countrymen. But it would not be the first time. *A*

Adam Serwer is a staff writer at The Atlantic.

There has never been an anti-racist majority in American history. There may be one today.

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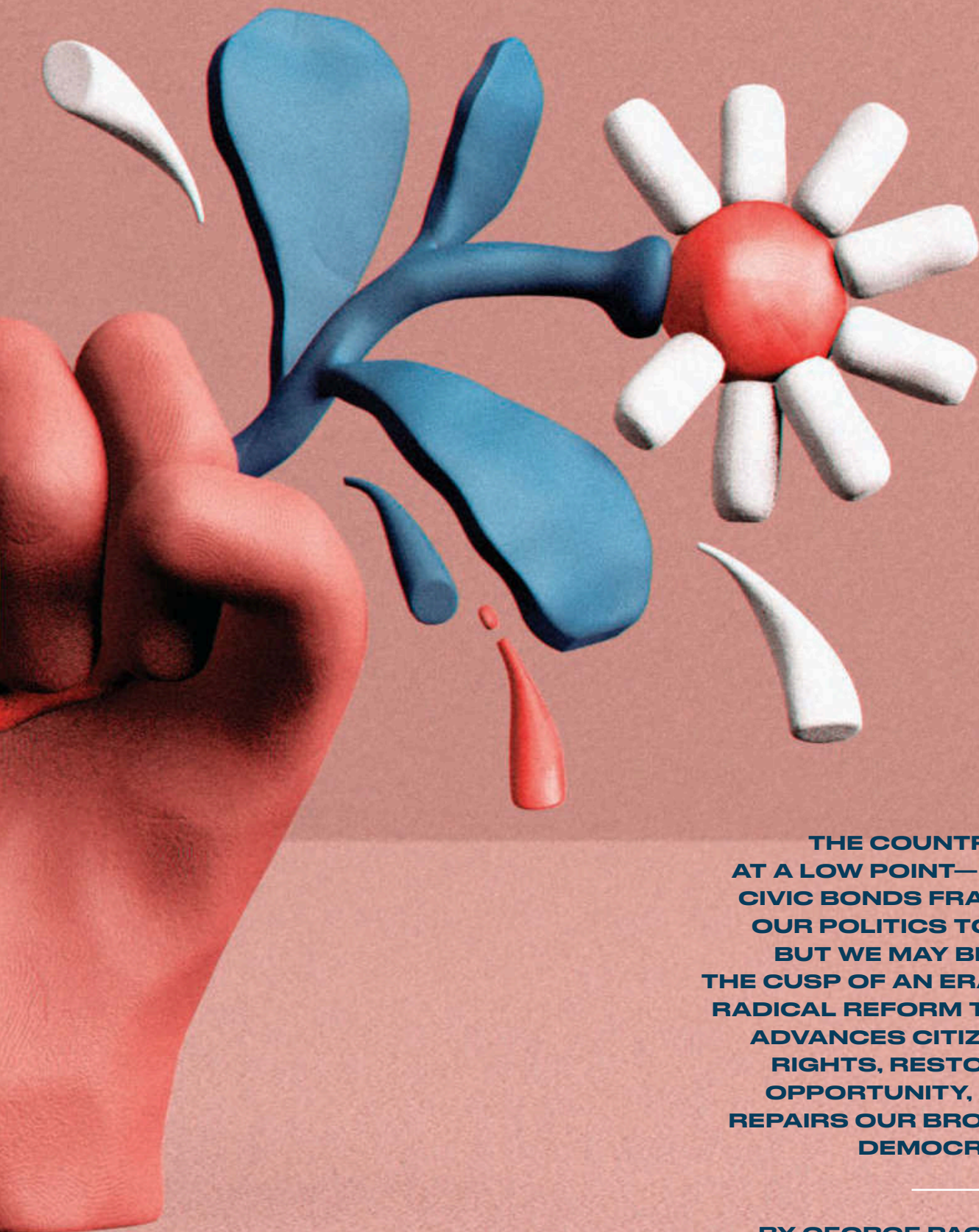
HUAWEI

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Make America Again





**THE COUNTRY IS
AT A LOW POINT—OUR
CIVIC BONDS FRAYED,
OUR POLITICS TOXIC.
BUT WE MAY BE ON
THE CUSP OF AN ERA OF
RADICAL REFORM THAT
ADVANCES CITIZENS'
RIGHTS, RESTORES
OPPORTUNITY, AND
REPAIRS OUR BROKEN
DEMOCRACY.**

BY GEORGE PACKER

“There are in history what you could call ‘plastic hours,’”

the philosopher Gershom Scholem once said. “Namely, crucial moments when it is possible to act. If you move then, something happens.” In such moments, an ossified social order suddenly turns pliable, prolonged stasis gives way to motion, and people dare to hope. Plastic hours are rare. They require the right alignment of public opinion, political power, and events—usually a crisis. They depend on social mobilization and leadership. They can come and go unnoticed or wasted. Nothing happens unless you move.

Are we living in a plastic hour? It feels that way.

Beneath the dreary furor of the partisan wars, most Americans agree on fundamental issues facing the country. Large majorities say that government should ensure some form of universal health care, that it should do more to mitigate global warming, that the rich should pay higher taxes, that racial inequality is a significant problem, that workers should have the right to join unions, that immigrants are a good thing for American life, that the federal government is plagued by corruption. These majorities have remained strong for years. The readiness, the demand for action, is new.

What explains it? Nearly four years of a corrupt, bigoted, and inept president who betrayed his promise to champion ordinary Americans. The arrival of an influential new generation, the Millennials, who grew up with failed wars, weakened institutions, and blighted economic prospects, making them both more cynical and more utopian than their parents. Collective ills that go untreated year after year, so bone-deep and chronic that we assume they’re permanent—from income inequality, feckless government, and police abuse to a shredded social fabric and a poisonous public discourse that verges on national cognitive decline. Then, this year, a series of crises that seemed to come out of nowhere, like a flurry of sucker punches, but that arose straight from those ills and exposed the failures of American society to the world.

The year 2020 began with an impeachment trial that led to acquittal despite the president’s obvious guilt. Then came the pandemic, chaotic hospital wards, ghost cities, lies and conspiracy theories from the White House, mass death, mass unemployment, police killings, nationwide protests, more sickness, more death, more economic despair, the disruption of normal life without end. Still ahead lies an election on whose outcome everything depends.

The year 1968—with which, for concentrated drama, 2020 is sometimes compared—marked the end of an era of reform and the start of a conservative reaction that resonated for decades. In 1968 the core phenomenon was the collapse of order. In 2020 it is the absence of solidarity. Even with majorities agreeing on central issues, there’s little sense of being in this together. The United States is world-famously individualistic, and the past half century has seen the expansion of freedom in every direction—personal, social, financial, technological. But the pandemic demonstrates, almost scientifically, the limits of individualism. Everyone

is vulnerable. Everyone’s health depends on the health of others. No one is safe unless everyone takes responsibility for the welfare of others. No person, community, or state can withstand the plague without a competent and active national government.

The story of the coronavirus in this country is a sequence of moments when this lesson broke down—when politicians spurned experts, governors reopened their states too soon, crowds liberated themselves in rallies and bars. The graph that shows the course of new infections in the United States—gradually falling in late spring, then rising sharply in summer—is an illustration of both ineffectual leadership and a failed ideology. Shame is not an emotion that Americans readily indulge, but the spectacle of the national coronavirus case rate surging ahead of India’s and Brazil’s while it declined in most rich countries has produced a wave of self-disgust here, and pity and contempt abroad.

“We’re at this moment where, because of COVID-19, it is there for anybody who has eyes to see that the systems we are committed to are inadequate or have collapsed,” Maurice Mitchell, the director of the left-wing Working Families Party, told me. “So now almost all 300-plus million of us are in this moment of despair, asking ourselves questions that are usually the province of the academy, philosophical questions: *Who am I in relation to my society? What is the role of government? What does an economy do?*”

The brutal statistics that count the jobless, hungry, evicted, sick, and dead have forced a rethinking of our political and social arrangements. The numbers are a daily provocation for change—radical change. “I think we are at a hinge moment in history; it’s one of those moments that arises every 50 years or so,” Senator Michael Bennet, of Colorado, told me. “We have the opportunity to set the stage for decades of progressive work that can improve the lives of tens of millions of Americans.” The crises of 2020 could become the catalytic agent of a national transformation.

Nothing about this opportunity is inevitable, or even likely. The election could end in confusion and chaos, or in another stunning upset for Donald Trump and his party. If Joe Biden wins, a continued Republican Senate majority could obstruct his policies even more than a Republican minority did President Barack Obama’s. Even a Democratic White House and Congress could encounter ferocious resistance from an opposition party and conservative

infrastructure grasping for lost power. Pressure from organized money in the worlds of finance and tech could sap the Democrats' reformist zeal. The left's penchant for splittism could break the party into warring factions. On a deeper level, our institutions might have calcified to the point that they're no longer able to realize far-reaching reforms. The public could lapse back into cynicism and distrust made all the more enervating by raised expectations.

Eventually, the country will need a sane and healthy Republican Party. But for any kind of national renewal to take place, the Republicans must first suffer a crushing defeat in November. A Democratic administration and Congress must quickly pass bold legislation for economic relief, job creation, social protections, and voting rights. But a new era won't arrive like a pendulum that swings according to the laws of physics. It will take more than the triumph of a candidate, a party, or even a sweeping agenda. The obstacles are greater than just politics, and so is the opportunity. Our collapse is so complete that the field lies open—the philosophical questions brought on by despair allow us to reimagine what kind of country we can be. The familiar narratives are used up; the dried-out words stick in our mouths. For change to endure, for national shame to become pride, we need a radical agenda with a patriotic spirit. We have to revive the one thing that has ever held together this sprawling, multiplicitous country: democratic faith.

The presidential primaries that opened the year gave an impression of bitter disagreement among the Democratic candidates. Hours of televised debate time were consumed with the merits of Medicare for All versus Medicare for All Who Want It, the difference between treating undocumented immigrants humanely and decriminalizing southern-border crossings, the intricacies of Biden's position on busing in the 1970s.

Today those arguments seem like an irrelevant scholastic exercise. One notable effect of this year's crises has been to forge broad Democratic support for the most ambitious domestic policy agenda since the Great Society, with Biden as its unlikely standard-bearer.

The coronavirus arrived just as Biden was wrapping up the Democratic nomination in March. By mid-April, 30,000 Americans had died and 22 million were newly out of work. A group of advisers had begun speaking to the candidate by phone and videoconference about his priorities for fighting both catastrophes. The advisers then turned for ideas to people outside the campaign, in labor unions, universities, think tanks, and small businesses.

In early May, Neera Tanden, the president of the liberal Center for American Progress, wrote an essay called "A New Social Contract for the 21st Century." She sent a draft to the Biden campaign, which received it favorably. Her argument came directly from the experience of the pandemic: "Our response to this virus ... is only as strong as our weakest link. It binds our fates together, more so than any economic or natural disaster." Tanden proposed revising the deal among citizens, corporations, and the state in ways that address the weaknesses exposed by COVID-19. A "new social contract" would give more protections to individuals in the form

of universal benefits—paid family and medical leave, paid sick days, health care with the option of joining Medicare. It would demand more responsibility from corporations, obliging them to revise their charters and take into account the interests of workers and local communities as much as those of shareholders (who bear economic risk only until a financial crisis or pandemic necessitates a taxpayer bailout). And it would require enormous amounts of government spending to end mass unemployment by creating millions of jobs in manufacturing, caregiving, education, and clean energy. Tanden framed her policy ideas as an updating of the New Deal, the original social contract that significantly strengthened the role of government in order to shift the burden of economic risk from the individual to the collective.

The ideas in Tanden's essay are not new. Most of them have been circulating for years in policy papers put out by liberal think tanks and in the stillborn bills of congressional Democrats. Their philosophical basis goes back at least a century. Political transformations don't happen when a blindingly original insight flashes across the sky. The New Deal itself, for all of President Franklin D. Roosevelt's openness to experimentation, mainly brought to fruition seeds that had been planted by Populists and Progressives over the previous four decades. The Reagan revolution realized conservative ideas that had originated in the period after World

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War II. In the face of institutional inertia, politics requires a long game—something that the modern American right has understood better than the left. Milton Friedman, an intellectual force behind Reaganism, once wrote:

Only a crisis—actual or perceived—produces real change. When that crisis occurs, the actions that are taken depend on the ideas that are lying around. That, I believe, is our basic function: to develop alternatives to existing policies, to keep them alive and available until the politically impossible becomes politically inevitable.

While Biden's campaign was still formulating its domestic policies, George Floyd was killed by a Minneapolis police officer, and the country erupted in protests against racial injustice. "The

vice president looked at all that and said, ‘How I respond in the face of these will be presidency-defining,’ Jake Sullivan, a senior adviser, told me. “‘I want a response that meets the moment and is true to who I have been in the campaign and over my career.’”

In the primaries, Biden had presented himself as the candidate of the Obama years. But the historical clock never rewinds, and the status quo ante is unequal to the desperate now. In response to the pandemic and the protests, Biden’s lines changed.

Over the summer, as the virus surged, the recession deepened, and the streets filled, Biden gave a series of speeches in which he laid out the heart of his economic plan, under the rubric “Build Back Better.” For decades, political leaders have grasped for a programmatic brand name as memorable as “New Deal” or “Great Society”—but who remembers Bill Clinton’s “New Covenant,” George W. Bush’s “Ownership Society,” or Barack Obama’s “New Foundation”? They soon vanished, because they never came to life in transformative legislation. Slogans stick when they’re attached to programs that change the country. There will never be such a thing as Bidenism—because Biden himself has no ideology, no politics distinctly his own—but his policies deserve a more memorable name. Quoting a Depression-era poem by Langston Hughes, and sticking it to the incumbent, Biden could call his

big, ambitious, bold proposal—not an afterthought, but at the core.” Another \$700 billion would go to stimulating demand and innovation in domestic manufacturing for a range of essential industries such as medical supplies, microelectronics, and artificial intelligence. Some \$30 billion would go to minority-owned businesses as part of a larger effort to reduce the racial wealth gap.

Biden is proposing industrial policy—massive, targeted investment to restructure production for national goals—something that no president has openly embraced since the 1940s. His agenda would also give workers more power, with paid family and medical leave, paid sick days, a public option for health care, and an easier path to organizing and joining unions. It would more than double the federal minimum wage, to \$15 an hour—a bitter point of dispute between Hillary Clinton and Bernie Sanders in 2016, now uncontroversial among Democrats. Free trade is hard to find on the agenda. For all Biden’s history as a centrist, his economic program would put an end to decades of Democratic incrementalism.

Americans are more broadly liberal on economic issues than on social and cultural ones. On the latter, Biden has stayed to the right of his party’s activists: reform and demilitarize police, but don’t defund them; remove Confederate statues from public places, but leave presidential monuments; regulate fracking, but don’t ban it;

rule reparations neither in nor out. For now, opposition to Trump has blurred the party’s fracture lines. Democrats are united behind proposals that would go further in reducing inequality and remaking the social contract than any administration in modern memory has even attempted.

After teams made up of Biden and Sanders advisers and allies hammered out a 110-page policy platform, Sanders said, “I think the compromise that they came up with, if implemented, will make Biden the most progressive president since FDR.” At one point Biden sidled up to the comparison. “I do think we’ve reached a point, a real inflection in American history. And I don’t believe it’s unlike what Roosevelt was met with,” he said in July. “I think we have an opportunity to make some really systemic change ... Something’s happening here. It really is. The American people are going, ‘Whoa, come on, we’ve got to do something.’”

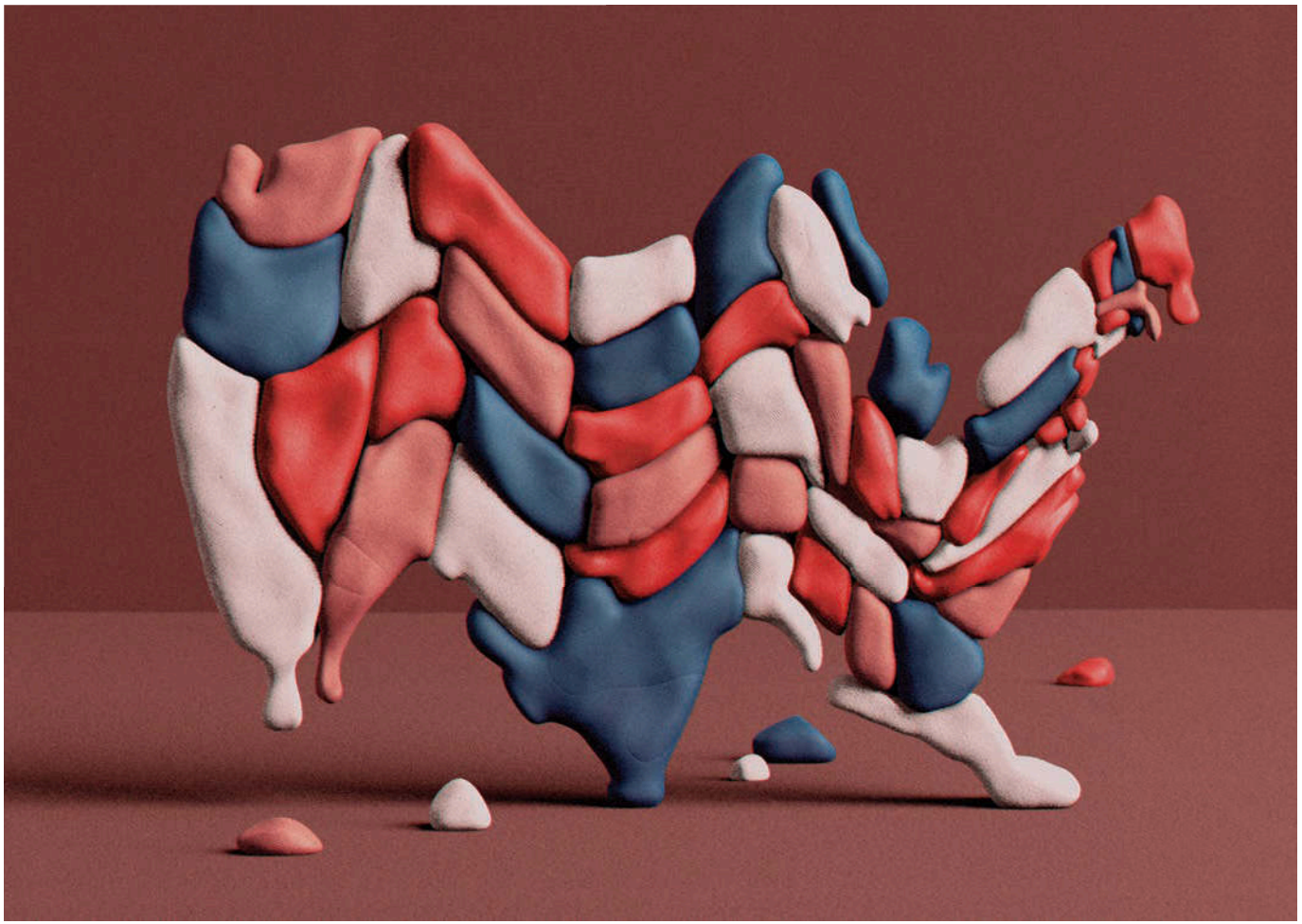
This is not the stirring language of a visionary leader, or the doctrinaire rhetoric of an ideologue. It’s the prosaic talk of a career politician shrewd enough to realize that he might have greatness thrust upon him. “I think he’s come to the realization that he can be a very consequential president,” Sherrod Brown, the Democratic senator from Ohio, told me.

After alluding to the New Deal, Biden dropped the reference. His campaign seems wary of ideological framings that might alarm suburban mall shoppers in King of Prussia, Pennsylvania. Jake Sullivan offered a different, less partisan Roosevelt analogy: the mobilization for public investment during World War II. “The vice president’s metric really is: How do we build momentum behind far-reaching, ambitious programs that actually are matched to the moment,” Sullivan said, “without having them take on a particular ideological stripe?”

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agenda “Make America Again.” The words don’t order us back, like Trump’s, to a glorious age that never was. They speak to an idea that has to be continuously renewed: “America never was America to me, / And yet I swear this oath— / America will be!”

The scale of Biden’s agenda is breathtaking. At its center is a huge jobs program. A Biden administration would invest \$2 trillion in infrastructure and clean energy. He proposes creating 3 million jobs in early education, child care, and elderly care—sectors usually regarded as “soft” and neglected by presidential candidates—while raising their pay and status. “This economic crisis has hit women the hardest,” Sullivan said. “These care jobs are primarily jobs filled by women—and disproportionately women of color and immigrant women—but they don’t pay a fair wage, and the opportunities to advance aren’t there. This is a



Biden has no particular ideological stripe. He's always been comfortable at the center of his party. The party moved left, the facts moved left, and Biden moved with them. Barack Obama ran as a visionary and governed as a technocrat—a change that ultimately disillusioned younger and more progressive Americans. Biden might make the same journey in reverse.

I asked Ted Kaufman—who has advised Biden since his first Senate race, in 1972; briefly filled his Senate seat when Biden became vice president; and now runs the campaign's transition planning—whether his boss is undergoing a late-in-life ideological conversion. “I don't think so at all,” Kaufman said. “What he's always done, if you go back and look at every single position he took—what Joe Biden talks about are things that can happen. He will not get up and promise something and not believe that he's going to get it done. I don't care if we got the Senate back, if we got 59 senators, 60 senators—you could not pass Medicare for All. His positions in the primary were left of center at the minimum. The big difference between him and everybody else running? He's not going to promise something he can't deliver.”

Biden sees his first task as stabilizing the country, not creating more upheaval. “The main thing is to get back to normal,” Kaufman said. “It's the old addition by subtraction—having someone get up in the morning who says, ‘Let's try to get the country back together. That's the best way to deal with COVID-19.’” Every day in the Biden White House would be a struggle between his instinct to reach for familiar policies or personnel and the imperative to think and act anew.

The conventional metaphor for new presidents is financial: Victory gives them a certain amount of political capital, and they have to decide how to spend it. It gradually dwindles—the sum is finite, and usually largest at the start. But there's a different way to think about a Biden presidency. His first task would not be to husband his limited capital wisely, but to take a long-stalled vehicle, get it into motion, and quickly pick up speed. He has to show that government can do big things before corporate money organizes to co-opt him and habitual public cynicism buries him.

If Republicans lose the Senate, they will rediscover their mislaid principles as deficit hawks and use the filibuster to obstruct Biden's agenda. Then the Democrats would have to pack a great deal of policy into a “reconciliation” bill, which allows for the passage of budget-related legislation via a simple majority vote. Or Senate Democrats could vote to end the filibuster. Many of them seem open to killing it. “We've got to eliminate the filibuster,” Brown told me. “I don't know if it has unanimity, but I've not talked to anybody that says ‘I don't want to do it.’” Democrats might even arrange an execution by bringing up a popular and historically charged bill, such as one that addresses voting rights or police accountability, and daring Republicans to align themselves with the Dixiecrats who filibustered civil rights.

Michael Bennet has spent his decade in the Senate watching “the world's greatest deliberative body” achieve next to nothing. Majority Leader Mitch McConnell “has basically destroyed the Senate—he's turned it into nothing more than an employment agency,” Bennet said. “If people continue for their own political reasons to make it

impossible for the majority to exercise its will, filibuster reform may have to be on the table.” Even Biden, an inveterate institutionalist, has suggested that filibuster reform might be necessary.

Bennet, a center-left Democrat from a purple state, envisions “a more progressive agenda than any modern president has pursued, and it would also be wildly popular with the American people.” He believes that Congress should “build political momentum” by passing key legislation early on, with each breakthrough making the next one more, not less, thinkable: enact paid family and medical leave, double the federal minimum wage, reverse the Trump tax cuts for the rich and corporations while giving the middle class a tax cut, hold police accountable, increase teacher pay, fund universal preschool, move to universal health care through a public option. At the start of the previous congressional session, the House introduced H.R. 1, a bill that would have strengthened democracy by, among other things, enacting same-day voter registration and tightening ethics rules for members of Congress. H.R. 1 died in the Senate before it could be vetoed by Trump. Both Bennet and Tanden said they hope that the next Congress will immediately take it up again, which would signal a commitment to political reform. Tanden argued that H.R. 1, with its voting-rights provisions, would begin to loosen Republicans’ undemocratic hold on power—which is based on a strategy of making it ever harder for citizens, especially poor, Black, and Latino Americans, to vote—before the party had time to reorganize for a counterattack.

“Everything on that list—any Democrat running for the House of Representatives could support it,” Bennet said. “Therefore it’s something that could probably ultimately get passed. Moderate Democratic senators could support it. It would make a massive difference in the lives of working Americans and poor Americans. What I’m talking about is an agenda that’s more ambitious than any time since Lyndon Johnson was president.”

There were three eras of reform in the United States in the 20th century. Our historical moment has elements of each of them. A new period of reform would need to bring together the best values of all three.

The Progressive era at the beginning of the century was the least ideologically distinct of them. With no obvious leader, faction, or defining issue, currents of Progressivism ran through both of the major parties, while absorbing ideas from the Populists and Socialists, and through every region of the country, in local, decentralized bursts of reform. Progressivism was more an impulse than a program, a moral awakening among mostly middle-class Americans to the sense that the country had drifted from its democratic moorings. Their chief concerns were corporate power, corruption at every level of government, and the “shame of the cities” (as the muckraker Lincoln Steffens had it)—urban bosses, slums, and sweatshops. The new conditions of modern life—industrialization, technological change, mass immigration—galvanized them to act, but they were hardly revolutionaries. Their main answer to social ills was to create better citizens.

“We are unsettled to the very roots of our being,” Walter Lippmann wrote in 1914 in his Progressive manifesto *Drift and Mastery*. “There isn’t a human relation, whether of parent

and child, husband and wife, worker and employer, that doesn’t move in a strange situation.” Lippmann proposed bringing the destabilizing new freedom of modern life under the purposeful control of science—experts, managers, forward-thinking leaders. But in his brilliant survey of American life, Black Americans are scarcely mentioned. Most Progressives, even muckraking journalists, were blind to racial injustice, and some—Woodrow Wilson is the best known—were outright racists and eugenicists. Rather than build on the achievements of Reconstruction—that earlier, ill-fated reform era—Progressivism set out to reinvigorate a democracy of white Americans.

The New Deal, propelled by the greatest economic crisis in American history, turned many Progressive ideas into national realities, including unemployment insurance, minimum wages, and collective bargaining rights. The labor movement and the Communist Party created interracial alliances, but Roosevelt’s national programs were enacted by a Congress that left Jim Crow in place while limiting protections for Black and other disenfranchised Americans—domestic workers, farmworkers, the intermittently employed. Workers continue to fall through these holes in the safety net to this day, in our latest version of the Depression.

The civil-rights movement in the early to mid-1960s produced a burst of creativity in Lyndon B. Johnson’s administration. Johnson was a creature of the Senate, an institutional figure in every good and bad way, and a failed presidential candidate whose career seemed to have come to an end in the purgatory of the vice presidency. When he succeeded John F. Kennedy—another president in the technocrat-as-visionary mold—Johnson was scorned by eastern liberals as a crude, big-eared Texan, a party hack, and a bigot. But he took Kennedy’s stalled agenda on civil rights and poverty and realized it in the most vigorous set of laws and actions for social justice in America since the 1930s. Johnson had two advantages over Kennedy: unparalleled knowledge of Congress and an atmosphere of crisis amid mobilization in the streets. He also benefited from an electoral mandate in 1964. The analogies to Biden are not hard to see.

Just as the New Deal nationalized local Progressive ideas, the Great Society tried to consummate the New Deal for all Americans. But it soon disintegrated amid urban riots, big Republican gains in the 1966 midterm elections, and the catastrophe in Vietnam. The coalition for reform—civil-rights groups, unions, peace marchers, academic experts, liberal politicians—collapsed as the country exploded, and the left splintered into fragments that grew more and more extreme.

Like the Progressive era, our age is marked by monopolistic corporate power that has created immense inequality and threatens democracy itself. Like the 1930s, our decade has begun with mass unemployment and vivid demonstrations of the vulnerability of American workers. Like the 1960s, our moment is animated by a dynamic young generation passionately inflamed by ongoing racial injustice.

Most American reform movements carry a strain of puritanism, a zeal for personal self-correction so powerful that it can sometimes replace the effort to make concrete changes to material conditions. These movements begin with protest from below—by impoverished

farmers, striking workers, disenfranchised Black southerners—and rise up into the middle class, which adopts the cause with what the historian Richard Hofstadter, writing of the Progressives, called “a rather strenuous moral purgation.” A personal sense of guilt produces a quasi-religious fervor directed toward social and political ills and a longing for redemption in solidarity with the downtrodden. Progressive crusaders ventured into the slums to expose the squalid conditions of immigrant life; in the ’30s, bourgeois Communists and fellow travelers exalted the proletariat and sacrificed intellectual independence to the iron will of the party; in the ’60s, white college students joined the struggle for Black freedom in the South and then decided that they required their own liberation, too, by means of taking over campuses and curricula.

In the past few years, we’ve seen fitful bursts of a new moral awakening: Occupy Wall Street in 2011, a utopian flicker; the Black Lives Matter protests of the late Obama presidency; the Sanders campaigns, a political outlet for the anti-capitalist grievances of young people. Trump’s election accelerated and intensified this awakening: the Women’s March following his inauguration; the rise of anti-Trump “resistance” groups, largely composed of middle-class, middle-aged women new to activism; the #MeToo movement, a phenomenon centered on private interactions more than public policy; demonstrations on behalf of immigrants at airports and along the southern border; the return of racial justice as an overriding issue prompting nationwide protests.

The new progressivism is in the streets, in classrooms, on social media—everywhere but the places with the power to solve problems. It has drawn a sharp, clear line from historical crimes to contemporary inequalities. It has dramatically changed the way Americans think, talk, and act, but not the conditions in which they live. It has no central theme or agenda, no charismatic leader to give it direction and coherence. It reflects the fracturing distrust that defines our culture: Something is deeply wrong; our society is unjust; our institutions are corrupt. The protests are the death throes of a declining capitalist empire, or the birth pangs of the world’s first truly multiethnic democracy, or something else altogether. “All those other eras, you have one big issue,” the historian Michael Kazin, who has written many books about the American left, told me. “I’m not sure what that is now. I’d like to think it’s a combination of anti-monopoly and helping working people have a better life.” The internet, Kazin said, makes clarity and unity more difficult. “I’m old-fashioned enough to think that matters.”

A decade of social mobilizations with no tangible achievements. Each new phase builds more pressure for radical change. If, in November, Trump is consigned to a late life of social-media whining and legal jeopardy, the pressure won’t subside. Under a Biden administration, the streets are likely to keep roiling, maybe more tumultuously than ever, as raised hopes lead to greater demands and disappointments. Most younger Americans have seen no viable kind of politics other than protest. Kazin, a veteran of the ’60s who watched the New Left doom itself with its own illusions, said, “I fear the left will expect too much or be too damning too

quickly with a Biden administration. That can always happen.” As the party moves in a progressive direction, Biden will have a harder time ignoring pressure from his left than Obama did. But unlike Sanders or Hillary Clinton, he isn’t a polarizing figure, and the very vagueness of his views might allow political crosswinds to blow around him without bringing down the edifice of reform.

The philosopher Richard Rorty, in his book *Achieving Our Country*, distinguished between two kinds of American left: reformist and cultural. The first pursues justice through existing democratic institutions; the second seeks it in a revolution of consciousness. The reformist left wants to make police more accountable; the cultural left wants to confront America with its racist essence. When Rorty wrote his book, in the ’90s, the cultural left was confined to university departments. Today its ideas reflect the prevailing worldview of well-educated, middle-class

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progressives, especially those under 40. Its vocabulary—*white fragility*, *intersectionality*, *decolonize*, *BIPOC*—confounds the uninitiated and antagonizes the skeptical. The cultural left dominates media, the arts, and philanthropy as well as academia; it influences elementary-school classrooms and corporate boardrooms; and it’s beginning to reach into national politics. Its radical critique of American institutions has thrived during an era when reform has stalled and the current ruling party embraces an inflammatory white identity politics. At the same time, the distinction between Rorty’s two lefts has eroded—a figure like Representative Alexandria Ocasio-Cortez combines aspects of both.

Under Democratic governance, the left would have to move from critique to coalition-building. It would be pulled between its own impulses toward institutional reform and cultural transformation. President Biden would immediately face an overwhelming crisis in employment and health; if the left pushes him hard on divisive cultural issues such as decriminalizing illegal border crossings, eliminating standardized testing, and defunding the police, it will weaken his hand for a political and economic transformation on the scale of the New Deal. The identity politics that more and more defines the left has a built-in political flaw. It divides into groups rather than uniting across groups; it offers



the left there's long been a cult of focusing on the most marginal rhetoric and demands instead of building a working-class program that's broadly popular," Bhaskar Sunkara, the editor of the socialist magazine *Jacobin*, told me. His strategy differs from Mitchell's in putting the emphasis much more heavily on class. "Politics at some point has to be about telling people they're welcome. White males are a third of the electorate. We can't let anti-racism just be a vague and indescribable thing. It has to be connected to material redress." He means policies, such as universal health care and child care and the Green New Deal, that would benefit all working people, but especially the most disadvantaged. The new woke capitalism leaves him skeptical. "We're not going to accept at face value corporate statements in favor of diversity and anti-racism, because they'll use this emphasis as a cudgel against workers of all races if we let them. Being part of a working-class movement

a cogent attack on the injustices and lies of the past and present, rather than an inspiring vision of an America that will be.

Maurice Mitchell, of the Working Families Party, has roots in union organizing and Black Lives Matter. His party endorsed Elizabeth Warren in the primaries. He imagines a broad, multiracial coalition of progressives, either inside or outside the Democratic Party. "It is our job to make the Democrats uncomfortable and frustrate the hell out of them every single day," he said. "But right now we are fragmented. We need to challenge sectarianism and cynicism as two of our greatest enemies. We need to have the same ambition as Stephen Miller and Steve Bannon, niche voices in the right-wing wilderness that made it all the way to the White House. Lastly, we need a multiracial solidarity that can challenge the solidarity of whiteness: large majorities of people of color, mainstream liberals, and 15 percent of working-class whites. Then we could break the power of the Republican Party." Mitchell added: "I don't believe that Joe Biden is a comrade. What I believe is that he's adaptable and he can evolve based on where the political times are. Any government in 2021 will have to figure out how tens of millions of Americans quickly get work. Putting ideology aside, that is a call for government playing a very active role in people's lives; that is a call for government doing big, structural things."

After decades of futility, the left has a new habit of overestimating its own strength (as evinced by the shock at Sanders's defeat in the spring) and an old habit of driving away potential supporters by presenting popular ideas in alienating terms. "On

means defending the labor rights of racists and bigots. But we have to find a way to engage with them and increase the level of class consciousness."

Biden's agenda is a working-class program without a working-class coalition. Non-college-educated whites remain Trump's base. Many progressives regard them with horror and contempt, as a sea of irredeemable racists. Despite how desperate life has become this year for working-class Americans of every background, it's hard to imagine a transracial coalition. That would require a perception of common interests, a level of trust, and a shared belief in the American idea that don't now exist. But it's also hard to imagine an era of enduring reform without something like such a coalition. It will come about only if Americans start to see their government working on their behalf, making their lives less burdensome, giving them a voice, freeing them to master their own fate.

We don't lack for political agendas, policy ideas, or protest movements. What we lack is the ability to come together as free and equal citizens of a democracy. We lack a sense of national identity and civic faith that could energize renewal.

This fall, the Harvard political scientist Robert Putnam is publishing a book called *The Upswing: How America Came Together a Century Ago and How We Can Do It Again*. Using statistical data, Putnam graphs the years since 1890 as four lines that travel steeply upward for seven decades and then plunge just as steeply downward. The lines represent economic equality, political cooperation,

social cohesion, and a culture of solidarity. They all begin at the bottom, in the squalid swamp of the Gilded Age, and then they rise together through the Progressive era, the New Deal, and the civil-rights movement, to an apex of egalitarianism, compromise, cohesion, and altruism around 1965—the year of the Selma march, the Voting Rights Act, and the enactment of Medicare—before descending for another half century to the present, to our second Gilded Age of Twitter wars and refrigerated trucks filled with the COVID dead.

Putnam calls this highly schematic arc “I-we-I.” He wants to get to “we” again, and for inspiration he looks back to the start of the previous upswing, around 1900. The Progressive era, Putnam writes, was “the result of countless citizens engaging in their own spheres of influence and coming together to create a vast ferment of criticism and change—a genuine shift from ‘I’ to ‘we.’” Putnam’s historical analysis is illuminating, but the book is short on details for how a new upswing might begin.

We can never again be as innocent as the Progressives about America’s past, or its future. In 1914 Walter Lippmann called for “mastery” of the new forces and freedoms unleashed by the modern world. We’re beset with something else—a sense of disintegration and decline. Radical legislative reforms are a necessary condition of a national upswing. What are the democratic dreams of a nonunion Amazon warehouse associate putting in mandatory overtime with a fever and leaving her remote-schooled kids in the care of her elderly mother? “You can’t expect civic virtue from a disfranchised class,” Lippmann wrote.

Today the disenfranchised include some supporters of Trump. If the president loses reelection, they would be embittered by defeat and unlikely to be argued out of their views. A hard core might turn from the diverting carnival of MAGA to armed violence.

The experience of a competent, active government bringing opportunity and justice to Americans left behind by globalization would inject an antivenom into the country’s bloodstream. The body would continue to convulse, but the level of toxicity would be reduced enough to allow for an interval of healing. No one would abandon their most cherished, most irrational beliefs, but the national temperature would go down a bit. We would have a chance to repair the social contract rather than tear it into ever smaller pieces.

But an ambitious legislative agenda isn’t enough, because the problem extends far beyond Washington, deep into the republic. Americans have lost faith in institutions, in one another, in democracy itself. Everything conspires against our role as citizens—big money, indifferent officials, byzantine election rules, mutual hatred, mutual ignorance, the Constitution itself. There is no remedy except the exercise of muscles that have atrophied. Not just by voting, but by imagining what kind of country we can live in together. We have to act like citizens again.

Last year, a commission created by the American Academy of Arts and Sciences spent months talking to a variety of groups around the country. Disaffection with the state of American democracy was nearly universal, but so was a longing for

connection to a unifying American identity. In June the commission released a report called “Our Common Purpose,” which put forth 31 proposals, some quite bold. They include political reforms that would make institutions more representative: enlarge the House of Representatives; adopt ranked-choice voting; end gerrymandering by having independent groups of citizens draw district lines; amend the Constitution to overturn *Citizens United*; appoint Supreme Court justices to 18-year terms, with one new nomination in each term of Congress.

Other recommendations are designed to change the political culture: make voting easier but also mandatory, connect voters with their representatives, train community leaders around the country, rebuild social media as a more constructive public space, shape an active citizenry through civic education and universal national service. The aim is not to realize any partisan cause, but to set Americans into motion as civic actors, not passive subjects. “Democracy works only if enough people believe democracy works,” Eric Liu, a co-chair of the commission that produced the report, told me.

Ideas like these, some new, others lying around for decades, come to the fore in hinge years. They are signs of a plastic hour.

**WE HAVE ONE MORE
CHANCE—IN LINCOLN’S WORDS,
A “LAST BEST HOPE”—TO
BRING OUR DEMOCRACY BACK
FROM THE DEAD.**

I began writing this essay in a mood of despair. The mood had grown so familiar, really almost comfortable, that it made me sick of myself and my country. But because I can’t give up on either—suicide is too final, and expatriation is no longer possible—I tried to think about the future and the past. And this is what I’ve come to believe: We have one more chance—in Lincoln’s words, a “last best hope”—to bring our democracy back from the dead. It will be like a complex medical rescue that requires just the right interventions, in just the right sequence, at just the right speed: amputation, transfusion, multiple-organ transplant, stabilization, rehabilitation. Each step will be very hard, and we can’t afford to get any wrong or wait another hour. Yet I’ve written myself into a state of mind that I recognize as hope. We’ve made America before. Self-government still gives us the chance. Everything is in our hands. *A*

George Packer is a staff writer at The Atlantic.



THE CONSTITUTION
COUNTED MY
GREAT-GREAT-GRANDFATHER
AS THREE-FIFTHS OF
A FREE PERSON

HERE'S
WHY I LOVE IT
ANYWAY.

BY
DANIELLE
ALLEN



Why do I love the U.S. Constitution? This instrument formally converted the worth of my great-great-grandfather Sidiphus into three-fifths' that of a free person. Living in the East Indies as a free man, Sidiphus had been tricked into enslavement—recruited to a Georgia farm just before the Civil War by the promise of a foremanship. Had he managed to escape Georgia and bondage prior to the onset of the war, the Constitution would not have protected his God-given natural rights.

Article I, Section 2 of the Constitution determined that representation in Congress and direct taxation would be apportioned to the states by adding up the whole number of free people, plus “three-fifths of all other persons”—meaning enslaved persons—“excluding Indians not taxed.” These words carried into the Constitution a compromise first formulated in 1783 in a proposed amendment to the Articles of Confederation. That compromise was later adopted in the Constitution to resolve the conundrum of how to tax the plantation wealth of the South without giving white landowners outsize power in Congress by including enslaved people in the official count of the population.

Given the crime against humanity written into the Constitution because compromise was necessary to form a union—and given the sharp and unabating attention that the nation's Founders and their writings have received in recent months—I had better have a rock-solid explanation for my love of that document. Simple love of country, land of my mother's milk, won't do. My love must be sighted, not blind.

As it happens, Sidiphus's God-given natural rights had been much earlier asserted by none other than Thomas Jefferson and fellow members of the drafting committee of the Declaration of Independence. They took the trouble to make this assertion in the original draft of the Declaration, when they castigated the King of England for violating—through his protection of the trade in enslaved people—the “sacred rights of life and liberty” of Africans who had never done him any harm. We will never know if it was Jefferson who thought up those words—words that would take many Americans today by surprise—or another committee member, perhaps John Adams or Benjamin Franklin. Adams, from Massachusetts, never enslaved anyone and thought enslavement was wrong. Franklin, from Pennsylvania, who himself had been an indentured servant, did enslave African Americans early in his life, but he eventually abandoned the practice and became a full-throated abolitionist. Pennsylvania and Massachusetts would be the

first states to abolish enslavement, in 1780 and 1783, respectively (and gradually in the case of Pennsylvania)—years before the U.S. Constitution was adopted, and even before the Revolution was formally over. The Continental Congress, of course, in its revisions to the draft of the Declaration of Independence, struck out any explicit recognition of Africans' human rights, postponing their protection until 1865, when the Thirteenth Amendment was ratified.

Already in 1776, Benjamin Franklin could make cutting jokes about the so-called slave interest and its influence on American politics. In the July 1776 debates over the Articles of Confederation, this exchange occurred between Franklin and Thomas Lynch Jr., of South Carolina, as recorded in the *Journals of the Continental Congress*:

LYNCH: If it is debated, whether their slaves are their property, there is an end of the confederation. Our slaves being our property, why should they be taxed more than the land, sheep, cattle, horses, &c.? Freemen cannot be got to work in our Colonies; it is not in the ability or inclination of freemen to do the work that the negroes do.

FRANKLIN: Slaves rather weaken than strengthen the State, and there is therefore some difference between them and sheep; sheep will never make any insurrections.

Franklin knew that enslaved men, women, and children were fully his equal, as capable of insurrection and revolution as he and his colleagues had been that hot July day in Philadelphia when they resolved to break away from Britain. Franklin recognized that a society built on a foundation of domination would be as unstable as the foundation itself.

Eleven years later, though, Franklin was helping shore up the Great Compromise, the adoption of the three-fifths clause that underestimated my great-great-grandfather's worth. In the final days of the Constitutional Convention, delegates debated whether they would convey their draft to Congress without individual endorsements or seek to have each delegate affix his signature to the document. The latter approach, which in fact played out, would amount to a pledge of commitment and ensure that dissent would die in the Convention—sworn secrets of the debates long concealed until James Madison's unofficial notes surfaced decades later. Franklin was in favor of consensus and for burying reservations. In a statement he said:

Thus I consent, Sir, to this Constitution because I expect no better, and because I am not sure that it is not the best. The opinions I have had of its errors, I sacrifice to the public good. I have never whispered a syllable of them abroad. Within these walls they were born, and here they shall die. If every one of us in returning to our Constituents were to report the objections he has had to it, and endeavor to gain partisans in support of them, we might prevent its being generally received, and thereby lose all the salutary effects and great advantages resulting naturally in our favor among foreign Nations as well as among ourselves, from our real or apparent unanimity.

With these words, Franklin articulated the deepest, hardest truth of free self-government. People can have the chance

of self-government through the institutions of constitutional democracy if and only if they prioritize the preservation of those institutions over wins in substantive domains of policy. For this lesson, Abraham Lincoln is our foremost teacher. When union and policy commitments come into conflict, those who wish to preserve free self-government must choose union. In that spirit, Franklin chose freedom for some over freedom for none.

YET NOT ALL COMPROMISES are good ones. And not all are necessary. To understand and embrace the centrality of compromise to the sustainability of constitutional democracy and the self-government of free and equal citizens, one needs to be able to distinguish between good and bad compromises. Both the Declaration and the Constitution (via the Bill of Rights) include another important compromise, this one not about enslavement but about religion. The Declaration simultaneously uses the languages of rationalism and of faith to establish the grounds for its moral commitment, as when it invokes the “Laws of Nature and of Nature’s God.” While the text refers to a “Creator,” to “divine Providence,” and to a “Supreme Judge,” it studiously avoids using the vocabulary of any specific religion or doctrine. The text is capacious. Believers and nonbelievers alike are given reason to sign on; no specific form of belief takes precedence. Similarly, the Constitution’s inclusion of the protection of religious freedom and the separation of Church and state formed the structure for a profoundly valuable and durable compromise. James Madison led the argument for the provision, responding to efforts in Virginia to pass a law requiring all taxpayers to make an annual contribution or pay a moderate tax in support of churches. (Advocates of the law included some of the old lions of the Revolution, such as Patrick Henry, Edmund Pendleton, and Richard Henry Lee.)

What made the compromises around religion morally legitimate and sound was that they took into account the perspectives of all those in the new country who would be affected by them. Every religious point of view present in the colonies in 1776 was conceivably embraced by the language, including those of the disenfranchised. The compromise about enslavement did not, in contrast, consider the perspective of all those affected by that decision. Standing on partial ground, it lacked moral legitimacy and would ultimately prove destabilizing for the country.

Yet the compromise was made, and Franklin was not the only one who understood himself to have been complicit in it. So too did James Wilson. Wilson, like Franklin, was from Philadelphia. At the Constitutional Convention, he was one of the few elder statesmen

who had also signed the Declaration of Independence. (Wilson was 44; Madison was 36.) He repeatedly asserted that the work of creating the Constitution was but an extension of foundations laid by the Declaration. Wilson was Madison’s equal at the Convention in terms of learning and influence. Although he was a member of the first Supreme Court, we have nonetheless all but forgotten him, presumably because he was also the first and only Supreme Court justice to go to debtors’ prison (as a result of failed land speculations). He died of a stroke while fleeing the reach of the law.

Whereas Franklin was an enslaver in the earlier parts of his life, Wilson was an enslaver for much of his life. Even while publicly writing and speaking against enslavement, he owned a man named Thomas Purcell for 26 years. However, two months after marrying a Quaker woman, Hannah Gray, he emancipated Purcell, an act often attributed to Gray’s influence. Like Franklin, Wilson fully understood the nature of the compromise in the Constitution, and was prepared to accept it. During Pennsylvania’s ratifying convention, he responded thus to a Pennsylvanian

who objected to the three-fifths clause of the Constitution and to another provision, in Article I, Section 9, protecting the right to import enslaved people for 20 years:

With respect to the clause restricting Congress from prohibiting the *migration or importation of such persons* as any of the states now existing shall think proper to admit, prior to the year 1808, the honorable gentleman says that this clause is not only dark, but intended to grant to Congress, for that time, the power to admit the importation of *slaves*. No such thing was intended ... Under the present Confederation, the states may admit the importation of slaves as long as they please; but by this article, after the year 1808, the Congress will have power to prohibit such importation, notwithstanding the disposition of any state to the contrary. I consider this

as laying the foundation for banishing slavery out of this country; and though the period is more distant than I could wish, yet it will produce the same kind, gradual change, which was pursued in Pennsylvania ... A tax or duty may be imposed on such importation, not exceeding ten dollars for each person; and this, sir, operates as a partial prohibition; it was all that could be obtained. I am sorry it was no more; but from this I think there is reason to hope, that yet a few years, and it will be prohibited altogether.

The best, then, that can be said about the compromises regarding slavery that also helped the Constitutional Convention achieve unanimity is this: Those who knew enslavement was wrong but nonetheless accepted the compromises believed they were choosing a path that would lead inexorably, if incrementally, to freedom for all.

We cannot, however, assume with Wilson and Franklin and others like them that incrementalism was the only available path to freedom for all. It is also not clear that the Constitution’s

compromises even accelerated the march of freedom, whether for enslaved people or for people more generally. Britain offers a natural experiment with which to make judgments about alternative paths. Revolutionary ideas were afoot there too in the 1770s and '80s. Universal suffrage for men was proposed in Parliament for the first time in 1780 by Charles Lennox, the third Duke of Richmond, an ardent supporter both of the American revolutionaries and of radicals in Britain. Yet at home, in the British Isles, the Crown managed to fend off the revolution it could not defeat in 13 of its colonies.

This, however, did not result in the permanent nonfreedom of British subjects. A British legal judgment in 1772 introduced a doctrine against selling enslaved people abroad, a doctrine that was commonly though erroneously thought to mean that no one could be held as a slave on English soil. In de facto fashion it reduced enslavement in Britain and redirected the attention of abolitionists to enslavement in the British colonies. In 1793, "Upper Canada"—in essence, the region just north of the Great Lakes—passed the Act to Limit Slavery, the first law of its kind in the remaining British colonies. Britain itself in 1833 passed the Slavery Abolition Act, dismantling enslavement throughout its Caribbean colonies and making Canada a free land for African Americans who escaped slavery in the U.S. The law helped make possible the Underground Railroad, the fights about the Fugitive Slave Act, and the dynamics that eventually led to the Civil War.

As to universal manhood suffrage, there the United Kingdom moved slowly. In 1832, Britain introduced the first of what would eventually be three 19th-century Reform Acts. This act had different rules for those living in counties versus towns. In towns, men who occupied property with an annual rent of at least 10 pounds could vote. That still left six out of seven men without voting rights. Britain adopted another reform measure in 1867 and one more in 1884. The third Reform Act gave the vote to all male house owners and all males paying rent of 10 pounds or more a year—leaving out 40 percent of men and of course 100 percent of women. These changes were accomplished without a bloody internal war.

The U.S. gave the vote to all male citizens regardless of skin color or former condition of servitude only with the Fifteenth Amendment, in 1870. Until that point, African Americans as well as some white men in states that made tax payment a prerequisite had been denied the right to vote. These changes required a bloody civil war, and even they were still partial. Pennsylvania and Rhode Island maintained tax-paying qualifications into the 20th century; women and Native Americans did not yet have suffrage. In both Britain and the United States, true universal

suffrage was not adopted until well into the 20th century, and fights for voting rights persist.

In other words, the Constitution did not earn an earlier release from bondage or promote universal suffrage for men much faster than was accomplished under Britain's constitutional monarchy. Nor much faster than was achieved in Canada, a country we can look to for an answer to the question of what might have happened had the North American colonies that came to form the United States failed in their bid for freedom.

What did accelerate the march of freedom for all was abolitionism, a social movement that crystallized in both the United States and the United Kingdom in the years immediately following the revolutionary break between the two. Moral leadership made this difference. Freedom flows from the tireless efforts of those who proclaim and pursue protection of the equal human dignity of all.

SO WHY, THEN, do I love the Constitution? I love it for its practical leadership. I love it because it is the world's greatest teaching document for one part of the story of freedom: the question of how free and equal citizens check and channel power both to

protect themselves from domination by one another and to secure their mutual protection from external forces that might seek their domination.

Why do we have three distinct aspects of power—legislative, executive, and judicial—and why is it best to keep them separate and yet intermingled? A typical civics lesson skates over the deep philosophical basis for what we glibly call "separation of powers" and "checks and balances." Those concepts rest on a profound reckoning with the nature of power.

The exercise of power originates with the expression of a will or an intention. The legislature, the first branch, expresses the will of the people. Only after the will is expressed can there be execution of the desired action. The executive branch, the second branch, is responsible for this. The judiciary comes third as a necessary media-

tor for addressing conflicts between the first and second branches. The three elements of power—will, execution, and adjudication—are separated to improve accountability. It is easier to hold officials accountable if they are limited in what they are permitted to do. In addition, the separation of powers provides a mechanism by which those who are responsible for using power are also always engaged in holding one another accountable.

James Madison, in *The Federalist Papers*, a series of newspaper opinion pieces written by Madison, Alexander Hamilton, and John Jay in 1787 and 1788 in support of the proposed Constitution, put it this way:

If men were angels, no government would be necessary. If angels were to govern men, neither external nor internal controls on

**I MUCK THE STALLS.
I FIND A DIAMOND.
I CLEAN IT OFF AND
KEEP IT. I DO NOT
ABANDON IT BECAUSE
OF WHERE I FOUND IT.**

government would be necessary. In framing a government which is to be administered by men over men, the great difficulty lies in this: You must first enable the government to control the governed; and in the next place, oblige it to control itself. A dependence on the people is no doubt the primary control on the government; but experience has taught mankind the necessity of auxiliary precautions.

To ensure that power could be held accountable, the designers of the Constitution broke power into its component parts. They assigned one power to each of three branches. Then they developed rules and procedures that would make it possible for officers in each branch to not only exercise their own powers but also, to some extent, check and counterbalance the use of power by others. The point of giving each branch ways of slowing down the other branches was to ensure that no branch would be able to dominate and consolidate complete power.

The rules and procedures they devised can also be called “mechanisms”—procedures that in themselves organize incentives and requirements for officeholders so that power flows in good and fair ways.

We all use mechanisms to limit power and achieve fairness in our ordinary lives. A good example is the kind of rule parents use for helping children share desserts. If I’ve got a cake, and I need to divide it up between two children, the easiest way for me to achieve a fair outcome is if I let one child slice while the other child gets first pick. The child who slices has an incentive to slice as fairly as possible, knowing that the second child will surely choose the bigger slice if the slices are not equal. Parenting books do not generally cite “Federalist No. 51,” in which Madison advised, “Ambition must be made to counteract ambition.”

The U.S. Constitution is full of mechanisms like this to structure the incentives of officeholders to make sure power operates in fair ways. Here is a smattering of my favorite examples, courtesy of the identification in *The Federalist Papers* of the highest and best features of the Constitution:

Each branch should have as little agency as possible in the appointment of the members of the other, which means no branch can surreptitiously come to control another by populating its personnel and staff.

Each branch should be as little dependent as possible on the others for emoluments annexed to their offices, which means no branch falls under the sway of another by virtue of hoping for a raise.

No double-office holding is permitted, which means that trying to play a role in more than one branch at the same time is strictly off-limits.

The executive has a veto over legislation, but it can be overruled by a two-thirds vote of the Senate, which means that an executive decision (on legislation) emanating from support of a bare majority of the people cannot overrule a view emanating from a supermajority of the country.

The executive can propose the draft of treaties, but ratification requires senatorial advice and consent, which prevents treaties from being struck as personal deals with benefits to the executive and thereby hinders corruption.

The Senate must approve Supreme Court appointments made by the president, but the Court has the power of review over laws passed by Congress, which means Congress can be overruled by justices to whose appointment the legislative branch has itself consented.

The Constitution is the law of the land and establishes powers of enforcement, but it can be changed through a carefully articulated amendment process, by the people’s standing legislative representatives or by representatives to conventions especially elected for the purpose—which means the final power always rests with the people.

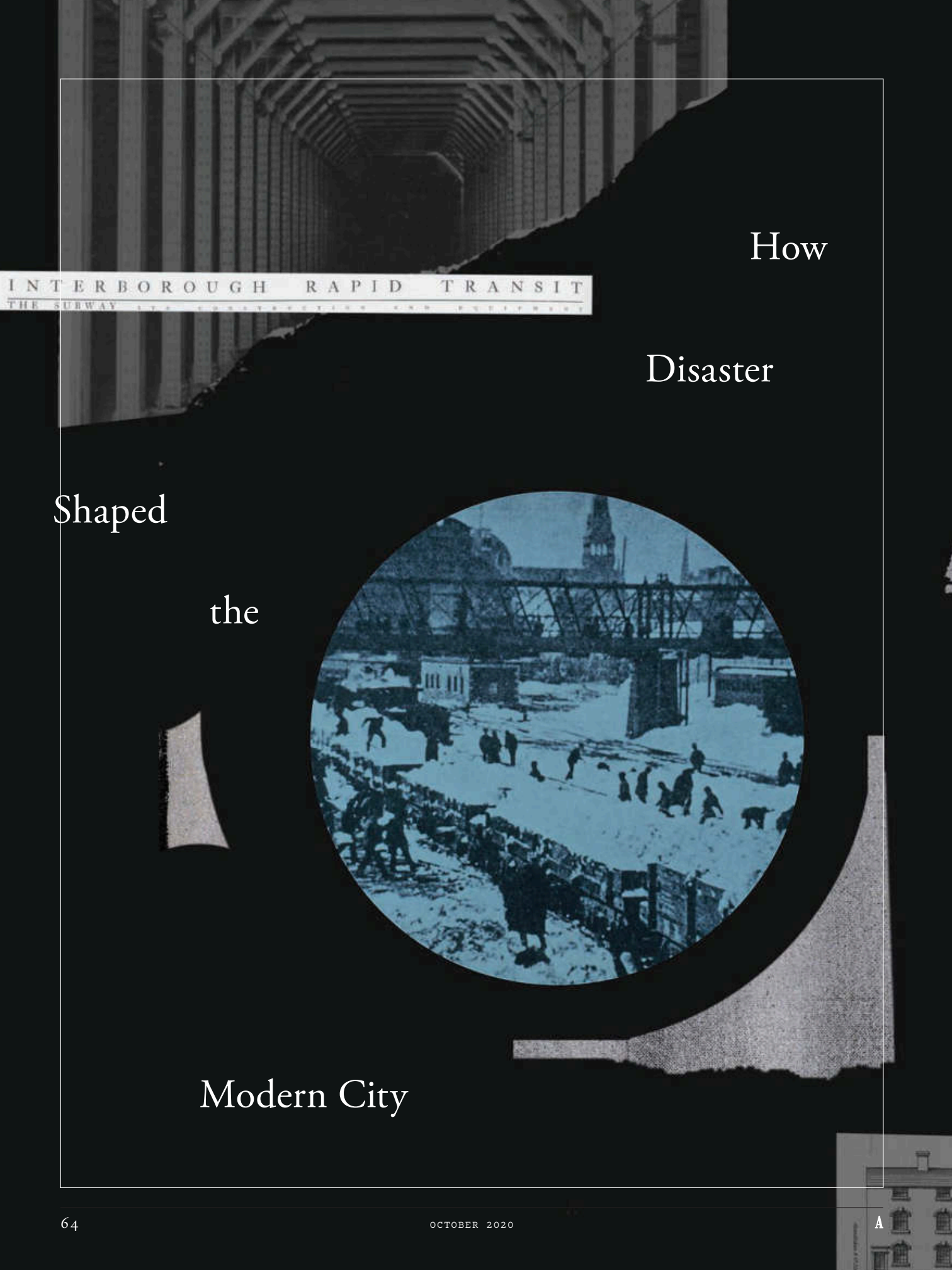
I **DELIGHT** in the cleverness of these mechanisms. There are many more. Instituting a bicameral legislature—having a Senate and a House of Representatives—is itself a check on monolithic legislative power. I marvel at the Constitution’s insight into the operations of power. I respect the ambition of the people who sought to design institutions and organize the government with the goal of ensuring the safety and happiness of the people. I see its limits, but I love its avowal—by stipulating the process for amendment, to date exercised 27 times—of its own mutability. Remarkably, the Constitution’s slow, steady change has regularly been in the direction of moral improvement. In that regard, it has served well as a device for securing and stabilizing genuine human progress not only in politics but also in moral understanding. This is what figures like Franklin and Wilson anticipated (or at least hoped for).

It would be a mistake to think that Britain’s own slow march toward the expansion of freedom was in no way prodded along by the example across the Atlantic and domestic pressures flowing from that example, just as Britain’s earlier abolition of enslavement generated pressures that drove the march of freedom forward here at home.

The Constitution is a work of practical genius. It is morally flawed. The story of the expansion of human freedom is one of shining moral ideals besmirched by the ordure of ongoing domination. I muck the stalls. I find a diamond. I clean it off and keep it. I do not abandon it because of where I found it. Instead, I own it. Because of its mutability and the changes made from generation to generation, none but the living can own the Constitution. Those who wrote the version ratified centuries ago do not own the version we live by today. We do. It’s ours, an adaptable instrument used to define self-government among free and equal citizens—and to secure our ongoing moral education about that most important human endeavor. We are all responsible for our Constitution, and that fact is empowering.

That hard-won empowerment is why I love the Constitution. And it shapes my native land, which I love also simply because it is my home. The second love is instinctual. The first comes with open eyes. *A*

Danielle Allen is a political philosopher and the James Bryant Conant University Professor at Harvard. Her books include Talking to Strangers (2004), Our Declaration (2014), and Cuz (2017). She was a co-chair of the bipartisan Commission on the Practice of Democratic Citizenship of the American Academy of Arts and Sciences.



INTERBOROUGH RAPID TRANSIT
THE SUBWAY THE CONSTRUCTION AND EQUIPMENT

How

Disaster

Shaped

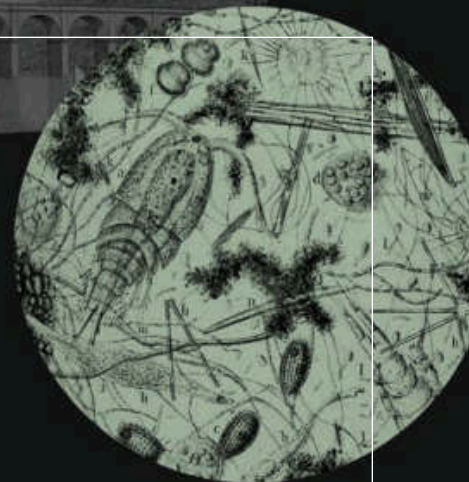
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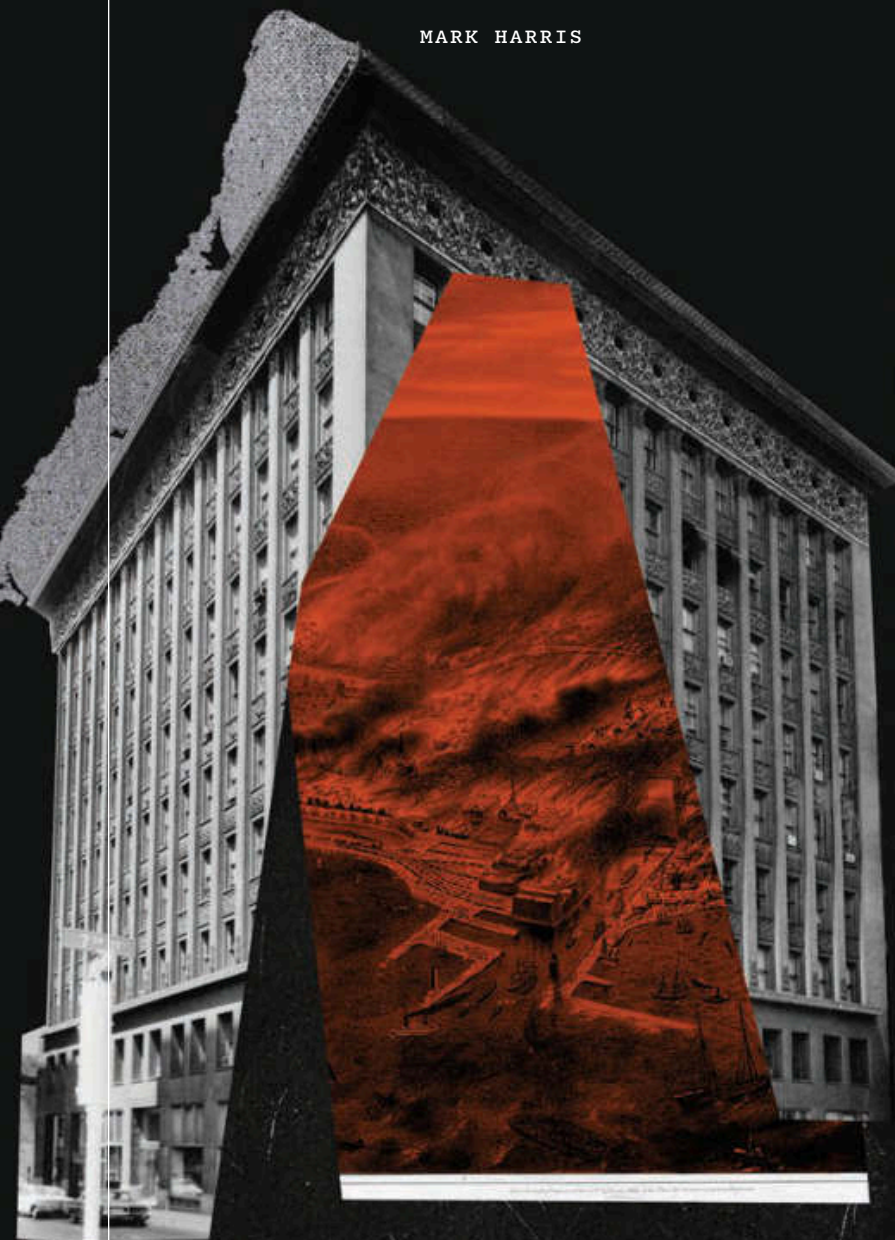
Modern City

ILLUSTRATIONS BY

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*The lessons
of history
are clear:
Visionary
responses to
calamities
have changed
urban life for
the better.*



THE GREAT CONFLAGRATION OF CHICAGO.

OCTOBER 8th and 9th, 1871.

By Derek Thompson

On December 16, 1835, New York's rivers turned to ice, and Lower Manhattan went up in flames. Smoke had first appeared curling through the windows of a five-story warehouse near the southern tip of Manhattan. Icy gales blew embers into nearby buildings, and within hours the central commercial district had become an urban bonfire visible more than 100 miles away.

Firefighters were helpless. Wells and cisterns held little free-flowing water, and the rivers were frozen solid on a night when temperatures plunged, by one account, to 17 degrees below zero. The fire was contained only after Mayor Cornelius Lawrence ordered city officials to blow up structures surrounding it, starving the flames of fuel.

A new Manhattan would grow from the rubble—made of stone rather than wood, with wider streets and taller buildings. But the most important innovation lay outside the city. Forty-one miles to the north, New York officials acquired a large tract of land on both sides of the Croton River, in Westchester County. They built a dam on the river to create a 400-acre lake, and a system of underground tunnels to carry fresh water to every corner of New York City.

The engineering triumph known as the Croton Aqueduct opened in 1842. It gave firefighters an ample supply of free-flowing water, even in winter. More important, it brought clean drinking water to residents, who had suffered from one waterborne epidemic after another in previous years, and kick-started a revolution in hygiene. Over the next four decades, New York's population quadrupled, to 1.2 million—the city was on its way to becoming a fully modern metropolis.

The 21st-century city is the child of catastrophe. The comforts and infrastructure we take for granted were born of age-old afflictions: fire, flood, pestilence. Our tall buildings, our subways, our subterranean conduits, our systems for bringing water in and taking it away, our building codes and public-health regulations—all were forged in the aftermath of urban disasters by civic leaders and citizen visionaries.

Natural and man-made disasters have shaped our greatest cities, and our

ideas about human progress, for millennia. Once Rome's ancient aqueducts were no longer functional—damaged first by invaders and then ravaged by time—the city's population dwindled to a few tens of thousands, reviving only during the Renaissance, when engineers restored the flow of water. The Lisbon earthquake of 1755 proved so devastating that it caused Enlightenment philosophers such as Jean-Jacques Rousseau to question the very merits of urban civilization and call for a return to the natural world. But it also led to the birth of earthquake engineering, which has evolved to make San Francisco, Tokyo, and countless other cities more resilient.

America's fractious and tragic response to the COVID-19 pandemic has made the nation look more like a failed state than like the richest country in world history. Doom-scrolling through morbid headlines in 2020, one could easily believe that we have lost our capacity for effective crisis response. And maybe we have. But a major crisis has a way of exposing what is broken and giving a new generation of leaders a chance to build something better. Sometimes the ramifications of their choices are wider than one might think.

The Invention of Public Health

As Charles Dickens famously described, British cities in the early years of the Industrial Revolution were grim and pestilential. London, Birmingham, Manchester, Leeds—they didn't suffer from individual epidemics so much as from overlapping, never-ending waves of disease: influenza, typhoid, typhus, tuberculosis. They were also filled with human waste. It piled up in basements, spilled from gutters, rotted in the streets, and fouled rivers and canals. In Nottingham—the birthplace of the Luddite movement, which arose to protest textile automation—a typical gallon of river water contained 45 grams of solid effluent. Imagine a third of a cup of raw sewage in a gallon jug.

No outbreak during the industrial age shocked British society as much as the cholera epidemic in 1832. In communities of 100,000 people or more, average life expectancy at birth fell to as low as 26 years. In response, a young government official



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named Edwin Chadwick, a member of the new Poor Law Commission, conducted an inquiry into urban sanitation. A homely, dyspeptic, and brilliant protégé of the utilitarian philosopher Jeremy Bentham, Chadwick had farsighted ideas for government. They included shortening the workday, shifting spending from prisons to “preventive policing,” and establishing government pensions. With a team of researchers, Chadwick undertook one of the earliest public-health investigations in history—a hodgepodge of mapmaking, census-taking, and dumpster diving. They looked at sewers, dumps, and waterways. They interviewed police officers, factory inspectors, and others as they explored the relationship between city design and disease proliferation.

The final report, titled “The Sanitary Conditions of the Labouring Population of Great Britain,” published in 1842, caused a revolution. Conventional wisdom at the time held that disease was largely the result of individual moral shortcomings. Chadwick showed that disease arose from failures of the urban environment. Urban disease, he calculated, was creating more than 1 million new orphans in Britain each decade. The number of people who had died of poverty and disease in British cities in any given year in the 1830s, he found, was greater than the annual death toll of any military conflict in the empire’s history. The cholera outbreak was a major event that forced the British government to reckon with the costs of industrial capitalism. That reckoning would also change the way Western cities thought about the role of the state in ensuring public health.

The source of the cholera problem? All that filthy water. Chadwick recommended that the government improve drainage systems and create local councils to clear away refuse and “nuisance”—human and animal waste—from homes and streets. His investigation inspired two key pieces of national legislation, both passed in 1848: the Public Health Act and the Nuisances Removal and Diseases Prevention Act. A new national Board of Health kept the pressure on public authorities. The fruits of engineering (paved streets, clean water, sewage disposal) and of science (a better understanding of disease) led to healthier lives, and longer ones. Life expectancy reached 40 in England and Wales in 1880, and exceeded 60 in 1940.

Chadwick’s legacy went beyond longevity statistics. Although he is not often mentioned in the same breath as Karl Marx or Friedrich Engels, his work was instrumental in pushing forward the progressive revolution in Western government. Health care and income support, which account for the majority of spending by almost every developed economy in the 21st century, are descendants of Chadwick’s report. David Rosner, a history and public-health professor at Columbia University, puts it simply: “If I had to think of one person who truly changed the world in response to an urban

crisis, I would name Edwin Chadwick. His population-based approach to the epidemics of the 1830s developed a whole new way of thinking about disease in the next half century. He invented an entire ethos of public health in the West.”

Why We Have Skyscrapers

Everyone knows the story: On the night of October 8, 1871, a fire broke out in a barn owned by Patrick and Catherine O’Leary in southwest Chicago. Legend blames a cow tipping over a lantern. Whatever the cause, gusty winds drove the fire northeast, toward Lake Michigan. In the go-go, ramshackle era of 19th-century expansion, two-thirds of Chicago’s structures were built of timber, making the city perfect kindling. In the course of three days, the fire devoured 20,000 buildings. Three hundred people died. A third of the city was left without shelter. The entire business district—three square miles—was a wasteland.

On October 11, as the city smoldered, the *Chicago Tribune* published an editorial with an all-caps headline: CHEER UP. The newspaper went on: “In the midst of a calamity without parallel in the world’s history, looking upon the ashes of thirty years’ accumulations, the people of this once beautiful city have resolved that CHICAGO SHALL RISE AGAIN.” And, with astonishing speed, it did. By 1875, tourists arriving in Chicago looking for evidence of the fire complained that there was little to see. Within 20 years, Chicago’s population tripled, to 1 million. And by the end of the century, the fire-flattened business district sprouted scores of buildings taller than you could find anywhere else in the world. Their unprecedented height earned these structures a new name: *skyscraper*.

The Chicago fire enabled the rise of skyscrapers in three major ways. First, it made land available for new buildings. The fire may have destroyed the business district, but the railway system remained intact, creating ideal conditions for new construction. So much capital flowed into Chicago that downtown real-estate prices actually rose in the first 12 months after the fire. “The 1871 fire wiped out the rich business heart of the city, and so there was lots of money and motivation to rebuild immediately,” Julius L. Jones, an assistant curator at the Chicago History Museum, told me. “It might have been different if the fire had just wiped out poor areas and left the banks and business offices alone.” What’s more, he said, the city used the debris from the fire to extend the shoreline into Lake Michigan and create more land.

Second, a combination of regulatory and technological developments changed what Chicago was made

Calamity forces people to ask fundamental questions: What is a community for? How is it put together? What are its basic needs? How should we provide them?

of. Insurance companies and city governments mandated fire-resistant construction. At first, Chicago rebuilt with brick, stone, iron. But over time, the urge to create a fireproof city in an environment of escalating real-estate prices pushed architects and builders to experiment with steel, a material made newly affordable by recent innovations. Steel-skeleton frames not only offered more protection from fire; they also supported more weight, allowing buildings to grow taller.

Third, and most important, post-fire reconstruction brought together a cluster of young architects who ultimately competed with one another to build higher and higher. In the simplest rendition of this story, the visionary architect William Le Baron Jenney masterminded the construction of what is considered history's first skyscraper, the 138-foot-tall Home Insurance Building, which opened in 1885. But the skyscraper's invention was a team effort, with Jenney serving as a kind of player-coach. In 1882, Jenney's apprentice, Daniel Burnham, had collaborated with another architect, John Root, to design the 130-foot-tall Montauk Building, which was the first high steel building to open in Chicago. Another Jenney protégé, Louis Sullivan, along with Dankmar Adler, designed the 135-foot-tall Wainwright Building, the first skyscraper in St. Louis. Years later, Ayn Rand would base *The Fountainhead* on a fictionalized version of Sullivan and his protégé, Frank Lloyd Wright. It is a false narrative: "Sullivan and Wright are depicted as lone eagles, paragons of rugged individualism," Edward Glaeser wrote in *Triumph of the City*. "They weren't. They were great architects deeply enmeshed in an urban chain of innovation."

It is impossible to know just how much cities everywhere have benefited from Chicago's successful experiments in steel-skeleton construction. By enabling developers to add great amounts of floor space without needing additional ground area, the skyscraper has encouraged density. Finding ways to safely fit more people into cities has led to a faster pace of innovation, greater retail experimentation, and more opportunities for middle- and low-income families to live near business hubs. People in dense areas also own fewer cars

and burn hundreds of gallons less gasoline each year than people in nonurban areas. Ecologically and economically, and in terms of equity and opportunity, the skyscraper, forged in the architectural milieu of post-fire Chicago, is one of the most triumphant inventions in urban history.

Taming the Steampunk Jungle

March 10, 1888, was a gorgeous Saturday in New York City. Walt Whitman, the staff poet at *The New York Herald*, used the weekend to mark the end of winter: "Forth from its sunny nook of shelter'd grass—innocent, golden, calm as the dawn / The spring's first dandelion shows its trustful face." On Saturday evening, the city's meteorologist, known lovingly as the "weather prophet" to local newspapers, predicted more fair weather followed by a spot of rain. Then the weather prophet went home and took Sunday off.

Meanwhile, two storms converged. From the Gulf of Mexico, a shelf of dark clouds soaked with moisture crept north. And from the Great Lakes, a cold front that had already smothered Minnesota with snow rolled east. The fronts collided over New York City.

Residents awoke on Monday, the day Whitman's poem was published, to the worst blizzard in U.S. history. By Thursday morning, the storm had dumped more than 50 inches of snow in parts of the Northeast. Snowdrifts were blown into formations 50 feet high. Food deliveries were suspended, and mothers ran short on milk. Hundreds died of exposure and starvation. Like the Lisbon earthquake more than a century before, the blizzard of 1888 was not just a natural disaster; it was also a psychological blow. The great machine of New York seized up and went silent. Its nascent electrical system failed. Industries stopped operating. "The elevated railways service broke down completely," the *New York Weekly Tribune* reported on March 14:

The street cars were valueless; the suburban railways were blocked; telegraph communications were cut; the

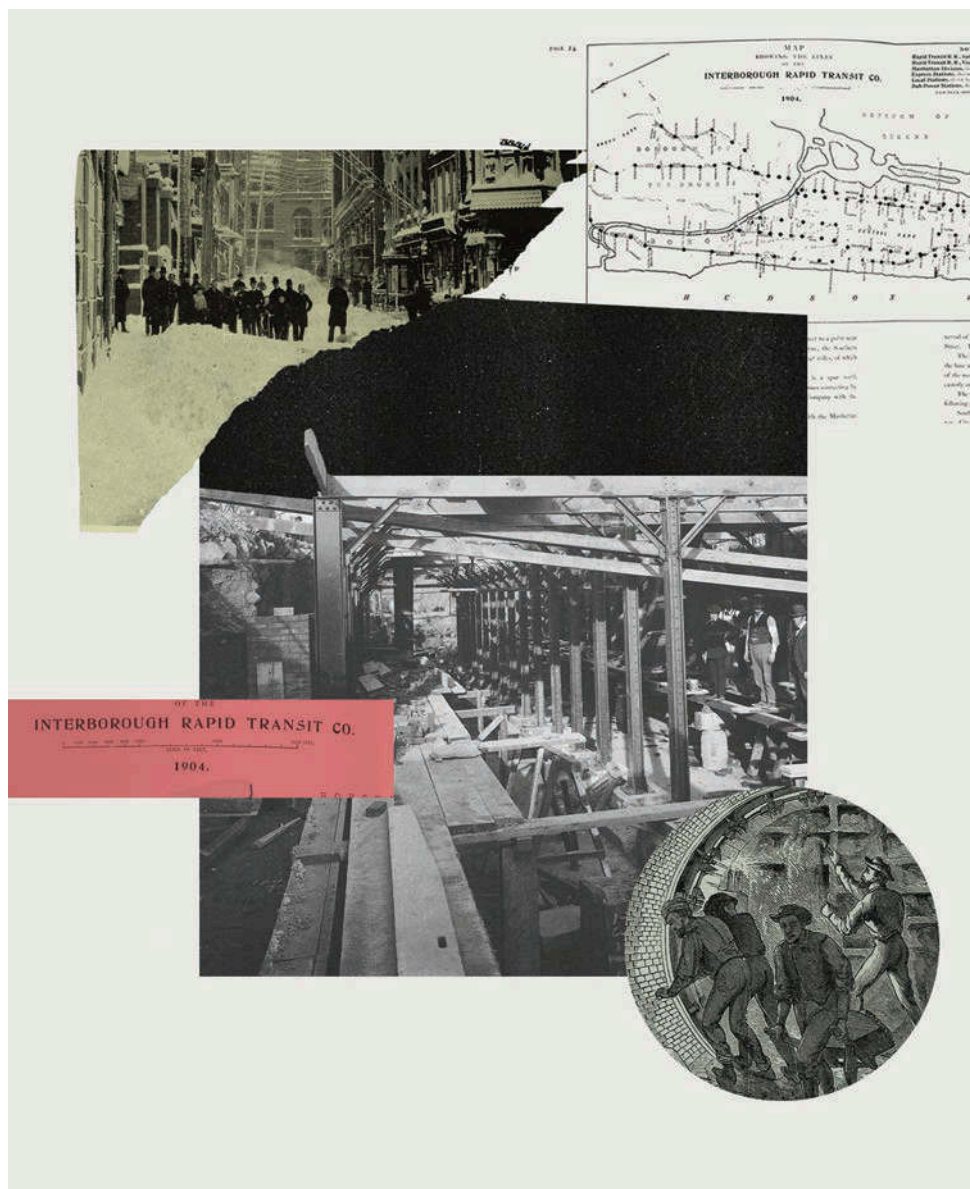
Exchanges did nothing; the Mayor didn't visit his office; the city was left to run itself; chaos reigned.

The New York now buried under snow had been a steampunk jungle. Elevated trains *clang-clanged* through neighborhoods; along the streets, electrical wires looped and drooped from thousands of poles. Yet 20 years after the storm, the trains and wires had mostly vanished—at least so far as anyone aboveground could see. To protect its most important elements of infrastructure from the weather, New York realized, it had to put them underground.

First, New York buried the wires. In early 1889, telegraph, telephone, and utility companies were given 90 days to get rid of all their visible infrastructure. New York's industrial forest of utility poles was cleared, allowing some residents to see the street outside their windows for the first time. Underground conduits proved cheaper to maintain, and they could fit more bandwidth, which ultimately meant more telephones and more electricity.

Second, and even more important, New York buried its elevated trains, creating the country's most famous subway system. "An underground rapid transit system would have done what the elevated trains could not do," *The New York Times* had written in the days after the blizzard, blasting "the inadequacy of the elevated railroad system to such an emergency." Even without a blizzard, as Doug Most details in *The Race Underground*, New York's streets were becoming impassable scrums of pedestrians, trolleys, horses, and carriages. The year before the blizzard, the elevated rails saw an increase of 13 million passengers. The need for some alternative—and likely subterranean—form of transportation was obvious. London had opened the first part of its subway system several decades earlier. In New York, the blizzard was the trigger.

"New York is built on disasters," Mitchell L. Moss, a professor of urban policy and planning at NYU, told me recently. "There's the 1835 fire, and the construction of the Croton Aqueduct. There's the 1888 blizzard, and the construction of the subway. There's the Triangle Shirtwaist fire, which killed 146 workers in Manhattan. Frances Perkins would say, 'The New Deal



started with the factory fire,' because it was the disaster that led to a New York State commission on labor conditions, which in turn led to the eight-hour workday. In all of these physical disasters, New York City has responded by changing for the better."

In October 1904, after years of political fights, contractor negotiations, and engineering challenges, New York's first subway line opened. In a lightning-bolt shape, it ran north from city hall to Grand Central Station, hooked west along 42nd Street, and then turned north again at Times Square, running all the way to 145th Street and Broadway, in Harlem. Operated by the Interborough Rapid Transit Company, the 28-stop subway line was

known as the IRT. Just months later, New York faced a crucial test: another massive winter storm. As the blizzard raged, the IRT superintendent reported "446,000 passengers transported," a record daily high achieved "without a single mishap."

Finding Our Inner Chadwick

Not all calamities summon forth the better angels of our nature. A complete survey of urban disasters might show something closer to the opposite: "Status-quo bias" can prove more powerful than the need

for urgent change. As U.S. manufacturing jobs declined in the latter half of the 20th century, cities like Detroit and Youngstown, Ohio, fell into disrepair, as leaders failed to anticipate what the transition to a postindustrial future would require. When business districts are destroyed—as in Chicago in 1871—an influx of capital may save the day. But when the urban victims are poor or minorities, post-crisis rebuilding can be slow, if it happens at all. Hurricane Katrina flooded New Orleans in 2005 and displaced countless low-income residents, many of whom never returned. Some cataclysms are not so much about bricks and mortar as they are about inequality and injustice. "Natural disasters on their own don't do anything to stem injustice," observes Keeanga-Yamahtta Taylor, a professor of African American studies at Princeton. "Without social movements or social upheaval, the recognition of inequities never progresses beyond an acknowledgment that 'We have a long way to go.'"

Still, catastrophes can fix our minds on a common crisis, pull down political and regulatory barriers that stand in the way

of progress, and spur technological leaps, bringing talent and money together to solve big problems. "Disasters reveal problems that already existed, and in doing so, create an opportunity to go back and do what you should have done the first time," Mitchell Moss said. New York City didn't have to suffer a devastating fire in 1835 to know that it needed a freshwater source. Nonetheless, when Lower Manhattan burned, city leaders were persuaded to act.

Normal times do not offer a convenient news peg for slow-rolling catastrophes. When we look at the world around us—at outdated or crumbling infrastructure, at inadequate health care, at racism and poverty—it is all too easy to cultivate an

attitude of small-minded resignation: *This is just the way it has always been.* Calamity can stir us from the trance of complacency and force us to ask first-principle questions about the world: What is a community for? How is it put together? What are its basic needs? How should we provide them?

These are the questions we should be asking about our own world as we confront the coronavirus pandemic and think about what should come after. The most important changes following past catastrophes went beyond the catastrophe itself. They accounted fully for the problems that had been revealed, and conceived of solutions broadly. New York did not react to the blizzard of 1888 by stockpiling snow shovels. It created an entire infrastructure of subterranean power and transit that made the city cleaner, more equitable, and more efficient.

The response to COVID-19 could be similarly far-reaching. The greatest lesson of the outbreak may be that modern cities are inadequately designed to keep us safe, not only from coronaviruses, but from other forms of infectious disease and from environmental conditions, such as pollution (which contributes to illness) and overcrowding (which contributes to the spread of illness). What if we designed a city with a greater awareness of all threats to our health?

The responses could start with a guarantee of universal health care, whatever the specific mechanism. COVID-19 has shown that our survival is inextricably connected to the health of strangers. Because of unequal access to health care, among other reasons, many people—especially low-income and nonwhite Americans—have been disproportionately hard-hit by the pandemic. People with low incomes are more likely than others to live in multigenerational households, making pathways of transmission more varied. People with serious preexisting conditions have often lacked routine access to preventive care—and people with such conditions have experienced higher rates of mortality from COVID-19. When it comes to infectious diseases, a risk to anyone is a risk to everyone. Meanwhile, because of their size, density, and exposure to foreign travelers, cities initially bore the brunt of this pandemic. There is no reason to think the pattern will change. In an age of pandemics, universal health care is not just a safety net; it is a matter of national security.

City leaders could redesign cities to save lives in two ways. First, they could clamp down on automotive traffic. While that may seem far afield from the current pandemic, long-term exposure to pollution from cars and trucks causes more than 50,000 premature deaths a year in the United States, according to a 2013 study. Respiratory conditions aggravated by pollution can increase vulnerability to other illnesses, including infectious ones. The pandemic shutdowns have shown

us what an alternative urban future might look like. Cities could remove most cars from downtown areas and give these streets back to the people. In the short term, this would serve our pandemic-fighting efforts by giving restaurants and bars more outdoor space. In the long term, it would transform cities for the better—adding significantly more room for walkers and bicycle lanes, and making the urban way of life more healthy and attractive.

Second, cities could fundamentally rethink the design and uses of modern buildings. Future pandemics caused by airborne viruses are inevitable—East Asia has had several this century, already—yet too many modern buildings achieve energy efficiency by sealing off outside air, thus creating the perfect petri dish for any disease that thrives in unventilated interiors. Local governments should update ventilation standards to make offices less dangerous. Further, as more Americans work remotely to avoid crowded trains and poorly ventilated offices, local governments should also encourage developers to turn vacant buildings into apartment complexes, through new zoning laws and tax credits. Converting empty offices into apartments would add more housing in rich cities with a shortage of affordable places to live, expand the tax base, and further reduce driving by letting more families make their homes downtown.

Altogether, this is a vision of a 21st-century city remade with public health in mind, achieving the neat trick of being both more populated and more capacious. An urban world with half as many cars would be a triumph. Indoor office and retail space would become less valuable, outdoor space would become more essential, and city streets would be reclaimed by the people.

“Right now, with COVID, we’re all putting our hopes in one thing—one cure, one vaccine—and it speaks to how narrow our vision of society has become,” says Rosner, the Columbia public-health historian. His hero, Chadwick, went further. He used an existential crisis to rewrite the rules of modern governance. He shaped our thinking about the state’s responsibility to the poor as much as he reshaped the modern city. We should hope that our response to the 2020 pandemic is Chadwickian in its capacity to help us see the preexisting injustices laid bare by this disease.

One day, when COVID-19 is a distant memory, a historian of urban catastrophe might observe, in reviewing the record, that human beings looked up, to the sky, after a fire; looked down, into the earth, after a blizzard; and at last looked around, at one another, after a plague. *A*

Derek Thompson is a staff writer at The Atlantic and the host of the technology podcast Crazy/Genius. He is the author of the book Hit Makers (2017).

New York did not react to the blizzard of 1888 by stockpiling snow shovels. It created an entire infrastructure of subterranean power and transit.

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TOBY DORR'S

GREAT ESCAPE

BY MICHAEL J. MOONEY



TOBY DORR

never ran a red light, never rolled through a stop sign, never got so much as a speeding ticket. As a kid, she was always the teacher's pet, always got straight A's. Her parents never bothered to give her a curfew, because she never stayed out late. She married the only boy she'd ever dated, raised a family, built a career, went to church. She did everything she was supposed to do.

She's in her early 60s now, just over 5 feet tall, and with her wry smile and auburn curls, she could be your neighbor, your librarian, your aunt. But people in Kansas City remember Toby's story. She's been stared at in restaurants, pointed at on sidewalks. For more than a decade, people here have argued about whether what she did was stupid and selfish or brave and inspirational. In the papers, she was known as the "Dog Lady" of Lansing prison, but that moniker barely hints at why she made headlines.

Looking back now, it all seems surreal to Toby, like a dream or a movie. Watching news clips from that time in her life makes her sick to her stomach. She has to turn away. She says the woman in those videos is another person entirely. She can hardly remember what she was thinking.

"I was a rule follower for sure," she says with a sweet Kansan lilt. Then she catches herself. "I mean," she says, "except the one time."

WE LOVE TO tell the world how happy we are. Our relationships, our children, our jobs: #blessed. But from time to

time, it's only natural to imagine a different life. What it might be like to escape our responsibilities, to get away, to start over. Of course, for most of us, that's just a fleeting thought.

Growing up on the Kansas side of Kansas City in the early 1960s, Toby Phalen was the oldest of seven children—five girls, two boys—in a middle-class Catholic family. When she was 5, her father was burning willow branches in their backyard and the fire flared in his face. She saw him come into the house. His ears were gone and his flesh looked like it was rolling down his shoulders and arms, "like it was my mom taking off her pantyhose at night," she recalls.

He was hospitalized for eight months, and Toby felt it was her responsibility as the eldest child to help take care of her younger siblings. Even then, she wanted to solve whatever problem was in front of her. She changed diapers, packed lunches, tried to provide stability in a stressful time. "She was less like a sister than like a third parent," one of her siblings would later tell *The Wall Street Journal*.

Her father eventually came home, and although he could barely move his arms, he started working again as a machinist at the railroad. He had a big family to feed. Every day, he'd crawl under the engines and spend hours reaching up to service the equipment, stretching his scalded skin. And he never complained. "Deal with what life gives you," Toby's dad would say whenever he heard one of his kids whining. It became the family mantra.

Toby internalized the lesson. She was a perfectionist, the type who spoiled the curve for her younger siblings. She never got drunk, never tried drugs. In high school, she was the president of the pep club and dated the star of the baseball team.

She tried not to question her circumstances. She tried to be positive and just go along. She doesn't remember how her high-school boyfriend proposed, for example: "It was probably something like 'We might as well get married.'" She said yes because she thought that was what she was supposed to do. They got married at 20, bought a house not far from her parents, and had three kids in four years. The middle child, their only daughter, died a few hours after birth.

Toby dealt with the pains of life by staying busy and ignoring whatever hurt. Her husband was a firefighter, and Toby worked at a utility company. Her sons played baseball, basketball, football, soccer. She tried not to miss a single game. On top of everything else, Toby attended college at night. She graduated summa cum laude with a double major in accounting and business administration.

In 1987, when she was 30 years old, she started working at Sprint. She was a project manager specializing in systems development. There was always a new problem to solve, a more efficient way to do something, and she'd work relentlessly to figure it out. But her 14-year career ended with the dot-com bust of 2001.

She started working part-time at a veterinary clinic, assisting with procedures, answering phones, scheduling appointments. She'd always loved animals. As a girl, she'd sometimes wander out into the woods and stand there, listening to the sounds of nature, watching the spiders on a tree.

In 2004, Toby asked one of the vets about a lump on her neck, and the vet told her she needed to see a doctor immediately. It turned out to be thyroid cancer. It was treatable, but she was 47, and it got her thinking about how much time she might or might not have left. "I decided I wanted to do something to make the world a better place," she says.

In the fog of cancer treatments, she spent a lot of time watching television, especially the Animal Planet reality show *Cell Dogs*. Each episode focuses on a different prison's dog-adoption program, following inmates as they train unruly shelter dogs and prepare the animals to be sent to new homes. Toby decided that's what she wanted to do: start a prison dog program.

Her husband dismissed the idea, she recalls. "Toby, that's just TV," she remembers him saying. "People don't do that in real life." So she tried to do the closest thing possible, and started a dog-fostering program. She made a website, and within a week she heard from someone at the Lansing Correctional Facility, a state prison in Leavenworth County, Kansas, asking if she'd have any interest in starting a program there.

"I was like, 'Yes! Oh my gosh, yes, that's my dream!'"

Two days later, she drove to the prison and gave the executive staff a presentation. Two days after that, on August 13, 2004, she brought seven shelter dogs into the prison, and the Safe Harbor Prison Dog Program was born.

The idea was to let inmates who qualified with good behavior house dogs in their cells. With Toby's guidance, they would prepare the dogs for adoption. A lot of these men had gone years—some, decades—without the affectionate touch of a human. But a prisoner could hug a dog, lie in bed with a dog, tell the dog his troubles—and the dog would look back with nothing but love.

The program changed the atmosphere in the prison. During the day, there were dogs in the yard, dogs walking down the halls with their handlers. "Anybody who wanted to come up and pet a dog could do so," Toby says. "It softened everybody up."

More inmates wanted dogs. And more people in the community started calling Toby when they found abandoned dogs. She quit working at the vet clinic and turned the barn behind her house into a kennel, where she kept the dogs before they were assigned to an inmate. Soon she was working from 6 a.m. to midnight every day: organizing adoptions, shuttling dogs back and forth to vet clinics for spaying and neutering, letting all the dogs in her barn out to run and play a few times a day.

She also spent several hours a day helping inmates train their dogs. Before Safe Harbor, she'd never been inside a prison, didn't even know anyone who'd served time. Now there were weeks when she was at Lansing every day, more than some of the guards.

In 18 months, she facilitated about 1,000 adoptions. In the local news, she posed for photos with dogs and inmates outside their cells. She started getting donations—money for dog food, leashes, vet visits—from across the country. She sent a weekly newsletter to thousands of subscribers.

Toby says her husband resented the program. Though she didn't admit it to anyone at the time, not even herself, when she looks back now she sees that she was unhappy in her marriage from

the beginning. She says that her husband would sometimes disappear to play golf. A few months after they were married, Toby decided she'd take lessons, so they could play together. But when she told her husband, he said that before she took lessons, she should find someone to golf with.

"Well," she said, "I thought I would golf with you."

"No," she remembers him saying. "I golf with my friends."

The affirmation she wasn't getting at home, she now got from the dogs, who adored her. When prison officials and guards noticed the mood in the prison improving, she became popular with them, too. And the dog handlers? They seemed to love Toby most of all.

THE FIRST TIME Toby met John Manard, the sun was behind him and it looked like a halo. Other inmates would approach her with some degree of hesitation, but Manard walked right up and told her she needed him in her program. "I'm probably the best dog handler you've ever met," he said.

His confidence captivated her. But she told him he'd have to get approved by the prison, just like everybody else.

He did, and a few weeks later he was among the prisoners gathered to receive their foster dogs. Most were happy with whatever dog they got, just glad to have a companion. But not Manard. He evaluated each dog. He petted them, examined them, then took a second or two to contemplate. When he finally made a selection—a pit bull mix, Toby recalls—she was amused by the whole interaction. She'd never seen anything like it.

Manard was 6 foot 2 and lean, with close-cropped red hair and an assortment of tattoos. The one arching over his navel read **HOOLIGAN**. He walked with a swagger. "There was just something different about him," Toby says.

She learned that he was serving a life sentence for his participation, at age 17, in a carjacking that resulted in a man getting fatally shot. Manard said he wasn't the one who pulled the trigger, and even the prosecutor said he believed that—but nonetheless, Manard had committed a felony that led to someone's death, so he was convicted of first-degree murder. Toby didn't think that seemed fair; Manard appeared capable of redemption. He was 25 when he met Toby. She was 47.

THEY SPENT HOURS A DAY
TOGETHER BUT WEREN'T
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NO PHYSICAL CONTACT,
THAT WAS THE RULE.

A few months after starting the dog program, Toby heard some inmates making sexual comments about her. When she informed prison officials, she says, she was told to keep some of the dog handlers she'd gotten to know with her when she was inside the prison.

One day she was with two handlers when another inmate threatened her. He wanted his girlfriend to adopt the dog he'd fostered, but she lived a few hours away and was having trouble getting a ride to the prison. It had been eight weeks. When Toby asked the inmate about it, he started yelling at her, swearing and raising his fists. Toby turned to the other handlers for help, but they were looking down, unwilling to challenge the man. She was certain she was about to get hit when she saw Manard walking toward her. She could feel the relief deep in her chest.

Manard told the man to go back to his cell. "Nobody was going to mess with John Manard," Toby says.

He walked her out to the prison gate. As soon as she got to her van, she collapsed in tears. She could barely keep her hands from shaking long enough to call her contact at the prison, to inform him that she was never going back inside. She said she'd keep running the program, but only from outside the prison walls.

That was a Sunday. The next day, she says, she got a call back: Her contact in the warden's office told her she could have Manard paged whenever she arrived, and he would meet her at the front gate and walk her to her appointments. He was only supposed to escort her through the prison, but Manard stayed with her during her training sessions. Soon they were spending hours together every day.

Later, the warden disputed the idea that Toby ever had an assigned escort. In an interview with *The Kansas City Star*, she said that she could go wherever she needed to in the prison alone. Of course, Toby was married, religious, such a responsible citizen—nobody at the prison could have anticipated what eventually happened.

One morning, Manard noticed that Toby looked distraught and asked her what was wrong. She'd been at the hospital all night, she explained. Her father had Stage 4 bladder cancer and had needed

surgery. She'd come to the prison straight from the intensive-care unit.

"Well," Manard said. "Thank God your husband was there to drive you."

"He wasn't there," she recalls telling Manard. "He said there's no sense in both of us not getting a good night's sleep."

Manard shook his head.

"Toby, why are you married to him?"

She thought about it for a moment and didn't have an answer. She thought about it later that day, too, when she left the prison. She thought about it all that night and the next day. She knew it shouldn't be such a hard question—she'd been married for close to three decades—but she couldn't come up with an answer.

"That's when I realized, *This isn't a marriage. This is a convenient house-sharing arrangement*," she says. "Once you open your mind and you think those things, you can't stop them."

She says that she'd told her husband 10 years earlier that she was thinking about leaving, but that he'd dismissed the idea. She had no reason for a divorce: He didn't hit her, he didn't cheat on her, he wasn't an alcoholic, and he had a good job at the fire department. Besides, her family loved him—her siblings considered

Toby's husband their own brother—and they would never want her to divorce him.

"I did believe him that my family would talk me into staying," she says. "I didn't see any way out."

But now she felt someone notice her. She felt someone recognize that she had needs.

"If someone had flirted with me at a gas pump when I was pumping gas, I would have just not even responded to them and I would have gotten in my car and drove away," she says. But Manard's flirting seemed safer, harmless. He was in prison, after all. Nothing could come of it. She allowed herself to think about Manard more and more. The way he'd compliment the color of her eyes and tell her how much he liked her hair.

"You deserve someone who wants to make you the center of their world," he said.

She'd never heard anything like this. Looking back, she says it was "like pouring water on a dying plant."

THEY SPENT HOURS a day together but weren't allowed to touch. No physical contact, that was the rule. Sometimes, though, she'd part a dog's fur for a tick

IT ALL STILL FELT LIKE
A GAME. TOBY WASN'T
PLOTING TO HELP A
CONVICTED MURDERER ESCAPE
FROM PRISON. SHE WAS
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TO NEW PROBLEMS.

treatment and Manard would lean over to help, and their hands would brush against each other and linger for a moment.

"It was so insanely desirous," Toby says. "It was something you wanted so bad and it was so off-limits. So it just made the chemistry even more sparky." Sitting in her kitchen, thinking about it 15 years later, she sighs. "It was just so intense."

The electricity between them built over weeks, months. Once, Manard asked her if she'd be with him if he weren't in prison. She thought about this hypothetical scenario. "I believe I would," she said.

He told her he loved her. And that he wanted to escape and be with her. At first she laughed it off. That would break so many rules! But he brought it up again and again. Sometimes, as she was driving around town, she'd see a FOR RENT sign and think: *If he was out of prison, I would get this little apartment.*

Manard would later say in an interview that the question about being with him had been sort of a joke, but when Toby said yes, he became obsessed with the notion. He'd toss out ideas for how to escape. Maybe he could put himself in a box and have it mailed out? Maybe he could sneak out on the truck that delivered food to the kitchen? At one point he contemplated just climbing the fences in the yard.

"There were a lot of bad ideas," Toby says. It became a puzzle, a game.

The prison was full of 18-by-36-inch cardboard boxes; the inmates used them to carry their belongings when they moved to a different cell. Manard set about trying to fit himself into one of these boxes. Every time, the box either collapsed or burst. He lost more than 20 pounds in a few weeks to make himself fit. Then one day he told Toby that he'd dreamed of a certain way of pretzeling himself in. When he woke up, he tried it, and it worked.

Then one of the unit leaders at the prison asked Toby to remove some old equipment that had been sitting around: bowls, leashes, and a big wire dog crate. A crate big enough to fit an 18-by-36-inch box inside. Piece by piece, it felt like they were solving an abstract problem together.

Around the same time, Manard told Toby he wanted a cellphone, so that they could talk anytime. She remembers him

saying he knew someone who could get him one, but it would cost \$500. She liked the idea of being able to talk anytime, but the price seemed exorbitant. Toby didn't get searched going into the prison, so she snuck in a phone and gave it to him.

"That was one line crossed," she says. "And then the next lines just got bigger."

Over the course of a few weeks, they talked on the phone for 12,000 minutes—200 hours. One morning, Toby's husband found a text message that read: "good morning, baby. I love you." Toby told him it was a wrong number. He said he didn't think she was capable of cheating. "My naive thought was that if she wasn't having relations with me," he would later say, "then she wouldn't be having them with anyone else either."

Toby took more than \$40,000 out of her 401(k). She bought a used truck for \$5,000 and parked it in a storage unit between her house and the prison. When she first stopped in to look at the storage facility, she was told that because the building was new, it didn't have security cameras yet—which seemed perfect.

It all still felt like a game. She wasn't plotting to help a convicted murderer escape from prison. She was just figuring out solutions to new problems. Then, suddenly, they were setting a date—Sunday, February 12, 2006—and going over details. Manard told her he would get in the box, and that the box would be inside the crate when it was loaded onto a farm wagon and transferred into Toby's van, along with some dogs she was taking to an adoption event that day. She went to Walmart and bought men's clothes and enough food to last a month.

Toby says Manard assured her that she wouldn't get in trouble, that everyone would think he'd manipulated her. She says she never thought she'd be gone forever. She figured she'd come home in a couple of months, tops. She convinced herself that her family would hardly notice: Her sons were 21 and 25 by then and had left home, and she already felt invisible to her husband.

Looking back, Toby says a lot of what would have been reasonable questions were crowded out by an all-consuming

desire to be with this man she'd now known for a year but had never kissed, never hugged, barely even touched. Instead of thinking through all the foreseeable consequences of their plan, she spent a lot of time imagining what it might be like to hold Manard's hand, to hug him, to, as she puts it, "live like real people."

The night before the escape was both terrifying and exhilarating. Toby was in the living room, finishing that week's Safe Harbor newsletter. Her husband was in the recliner, watching TV. He got up and told her he was going to bed. She said she still had work to do.

"Okay, goodnight," he said as he ascended the stairs.

Instead of saying "Goodnight" back to him, though, Toby accidentally said "Goodbye."

As she heard the word leaving her mouth, she panicked. She could feel a twisting dread in her chest.

"I thought, *Holy crap! What if he asks me why I said goodbye?*"

He didn't.

TOBY DIDN'T SLEEP that night. She kept going over all the things she needed to do. She worried she'd forget something, say something awkward, do the wrong thing.

The temperature the next morning was in the teens, and the wind was spitting snow. When she pulled her van up to the prison gate, she could see the dog handlers lined up, stomping their feet to stay warm while they waited for her to take their dogs. But there was no farm wagon, no wire dog crate. So she went into the officers' shack to make small talk and wait.

As the minutes passed, she figured the wagon wasn't coming. She was almost relieved. She could just go to the adoption event and go back to her life. But then she saw the farm wagon come around the corner.

Suddenly it all seemed real. She saw how flat the wagon's tires were, how it just *looked* like it was carrying something much heavier than a few bowls and leashes. But nobody else seemed to notice. She asked the guards to open the gate.

She opened the back of her van for the dogs. She remembers an officer patting one

of the dogs and saying, “Well, I hope you get adopted today!” As the dogs were loaded into the back, she opened the side door, so the inmates could load the crate. Once it was in, she quickly slid the door closed.

Driving away from the prison, she thought maybe Manard wasn’t in the box after all. She called back behind her: “John, are you there? Are you in the crate?”

There was no answer. Again, she felt relieved. Planning the escape had been fun, but she was glad to be going to the adoption event. Then an arm burst out of the box, and she heard Manard laughing.

He told her he was hyperventilating and asked her to let him out, so she pulled over to open the crate. In the back of the van, he changed into the clothes she’d brought him. “Drive, Toby, drive!” Manard said. She headed toward her house, to put the dogs back in their kennels. Manard said they’d save time if she just let them out in a field, but she insisted. “I was not about to drop these dogs out in the field,” she says.

At her place, while Toby put the dogs in the barn, Manard went into the house and took two pistols. Toby never liked guns, but Manard told her they’d be carrying a lot of cash, and this would scare away anyone who tried to mess with them.

Then they went to the storage facility. He drove the truck out and she backed the van in. She locked the unit, hopped into the truck, and off they went.

The plan was to take a circuitous route to a lakeside cabin in Tennessee that Manard had reserved under a fake name, using the cellphone Toby had given him. They wanted to stay off interstates and big highways. First they headed north, then east toward the Great Smoky Mountains. Manard was talking so fast, Toby could barely keep up. He kept giggling.

“Look, Toby! I’m driving! It’s been 10 years and I can still drive!”

He was eating the snacks he’d asked her to buy, little chocolate donuts and Twizzlers. She sort of expected there to be a moment when they’d stop and maybe kiss for the first time. But he told her they needed to drive. They needed to get away.

A few hours later they stopped at a rest stop. They came out of their respective bathrooms at the same time. That’s when he

leaned down and kissed her. In front of the rest-stop bathrooms. It was the first time she’d kissed a man other than her husband. It was what everything had been building toward. It was a moment of pure elation.

She doesn’t remember how long it lasted, but she remembers that the next thing he did was ask her to give him her cellphone so he could throw it in a lake.

As he drove, Toby navigated with a road map. It would have been a 10-hour drive if they’d taken the most direct route, but because they stuck to back roads, the trip lasted nearly 24 hours. After not sleeping the night before the escape, and not sleeping during the drive—and after such an emotional, nerve-racking experience—Toby was exhausted. So much so that, as they got close to the cabin and she opened her laptop to find the directions she’d downloaded, she couldn’t remember what she’d named the file.

“This isn’t a game, Toby,” she recalls Manard saying. “What did you name it?”

She suggested that they pull over at a diner and ask for directions.

“He just went ballistic,” Toby says. He started screaming, driving erratically, hitting the steering wheel. “He said, ‘I don’t even know why I brought you, anyway. I should just throw you out of this truck right now and just keep on going. I don’t need you!’”

She’d never seen him act like this. It dawned on her that she didn’t have her phone. She’d given him all her cash. She didn’t even know where she was. She started crying.

Then, as quickly as his anger came, he was calm again. He told her he’d pull into the diner and she could ask for directions. She was confused, uneasy. But he was back to normal.

When they finally got to the cabin, they—well, they did exactly what you’d expect two lovers on the run to do. “It wasn’t awkward,” she says, looking back. “That was probably the best part of our relationship, honestly.” Then they fell asleep in each other’s arms.

WHEN TOBY WOKE UP, it took her a second to remember where she was and what they’d done. She’d brought a mandolin, and Manard played her “Brown Eyed Girl.” He bought her a box of chocolates

(using her cash) and they spent hours in the cabin, holding each other and talking. It was the best Valentine’s Day she’d ever had.

Manard was, she says, very romantic. He’d fill the tub with bubbles, light candles around the room, then tell her to take a bath and relax. Every day, when she got dressed, he complimented her. “Wow,” he’d say. “That outfit looks so nice!” When she cooked dinner, he would tell her how great it was, how she was the best cook in the world, how he’d never had fried chicken that good.

They’d planned to lay low for a few weeks, but Manard wanted to go out. There were so many things he wanted to see, so many foods he hadn’t had in 10 years. So nearly every day, they went somewhere and did something.

She’d wanted to take some of her dogs with them, but he’d told her they couldn’t, and she missed having a pet. One day they went to a pet store. He said he wanted to buy her a parakeet. She liked a tiny yellow one she saw, but he said he was getting her a blue one instead.

“I’m buying this parakeet, not you,” she remembers him saying. “Don’t think you can tell me what to do. I’m not your fucking husband.”

She left the store and waited by the truck. He gave her the blue parakeet and told her he wanted to name it Lynyrd, after Lynyrd Skynyrd, because the band sang the song “Free Bird”—and that’s what he was, a free bird.

She said she didn’t like that name.

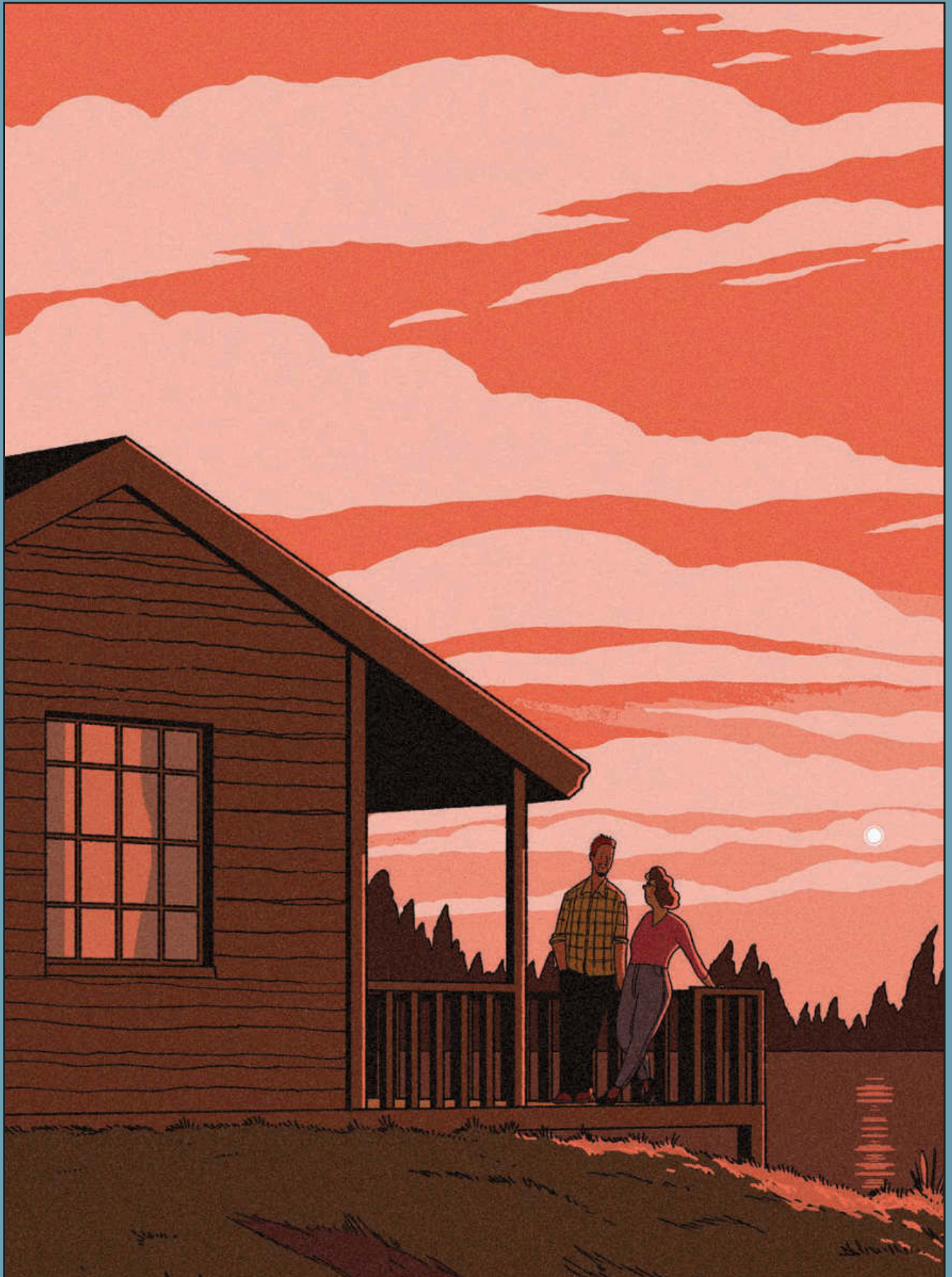
“You’re not naming this bird,” he told her. “I’m naming it. Its name is Lynyrd.”

She stuck her finger in the cage, and the bird bit her.

On their fourth or fifth day, they went to Nashville and saw the movie *Walk the Line*, about Johnny Cash’s pursuit of and eventual marriage to then-married June Carter.

“John just loved it,” Toby says. “He loved Johnny Cash; he loved all the songs and the music in it. And he’d say, ‘That movie’s about us. I never thought I could have you, and look what I’ve got.’”

They went to a guitar store, where Manard went down the row, trying out guitar after guitar. He asked to play one in a glass case, priced at \$10,000. She says he was “in heaven,” and she loved watching him play.



That day for lunch they went to a McDonald's drive-through. She had her computer with her, and opened it up while they were in line. McDonald's had Wi-Fi, and when her browser loaded, she saw a headline that said something like "Dog Lady Implicated in Escape."

She screamed.

"You said that they'd think you manipulated me!" She pointed at her screen. "Look at this! I'm in trouble!"

He slammed the laptop shut. This, he told her, was why they hadn't turned on the TV in the cabin.

He told her they weren't going to get caught. And if they did, the authorities would blame him. It's not like she would end up in prison or anything. This calmed her, but she wasn't hungry anymore.

One evening, Manard said he'd make her a fire in the fireplace back at the cabin and they could sleep next to the glowing

flames. "Wouldn't that be romantic?" he said.

But by the time they got back to the area, it was late and there was no place to buy firewood.

"He got so mad," Toby says. "Like the whole world was against him having a fire that night."

Snow was falling, and as they drove along the winding mountain roads, Manard jerked the wheel back and forth, causing the truck to slide and fishtail.

"I can't believe we can't find any fucking firewood," she remembers him saying. "I'm just going to drive this truck off of a cliff."

As the dark mountain sky skidded past and they teetered near cliffs, Toby wondered for the first time how she was going to get out of all this.

ON THEIR 12TH DAY, they woke up, put on wigs, and drove a few hours to

Chattanooga. Manard had never been to an IMAX theater, and a mall there had one. He'd wanted to see a documentary about sharks. But when they got to the theater, they realized that Chattanooga is in a different time zone, and the shark movie had already started. They went to see a movie about lions instead.

At the concession stand, they noticed a woman buying snacks for a group of kids, and Manard offered to help her carry the food into the theater. When he sat down, he wondered aloud what the woman would think if she knew an escaped convict was carrying snacks for her kids. Toby loved Manard, but by now she was constantly trying to gauge his mood. She was relieved that he liked the lion movie.

Afterward, they went to a barbecue restaurant—and he got upset when he stained his white shirt. Then he wanted to see the snake exhibit at the zoo. But by the time they found the zoo, it was closed. "Then he was mad because he couldn't see this big snake exhibit," Toby says.

They went to Sears so he could buy a GPS—he blamed her for not being able to find the zoo. She went to use the restroom, and when she came out, he had disappeared. She looked around the store, but couldn't find him anywhere. She began to panic. She was all alone. No phone. No money. Then he jumped out from behind a display and scared her.

"He thought it was so funny," she says. "I didn't think it was funny at all."

Leaving the mall, they walked by two U.S. marshals without realizing it.

It was getting dark as they cruised down the interstate. Toby was staring out the window, thinking about the mess she'd gotten herself into, when she saw an incredibly bright light in the distance. So bright that it looked like daylight. She thought there must be construction ahead.

As they got closer, she saw traffic backed up along the service road and a sideways police car blocking the ramp.

"Toby," Manard said. "This is for us."

She turned to look at him.

"What's for us?"

Before he could respond, she understood. Through the windshield, she could see what looked like 50 police cars. She



Toby Dorr and John Manard at the Lansing Correctional Facility before she helped him escape.

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remembers thinking, *Who do they think we are that they need 50 police cars?*

“What do you want me to do, baby?” Manard asked.

“Well,” she said. “If they turn on their lights and tell you to pull over, you have to pull over. That’s the law!”

He told her he would. But then a police car came from behind and swerved in front of them, and Manard got angry.

“They’re trying to kill us,” she remembers him saying.

He told her he’d drive until they ran out of gas, then he floored it. She looked at the gas gauge and saw that they had three-quarters of a tank. He was weaving around other cars, driving on the shoulder. Toby watched 18-wheelers fly by, inches from her face.

At one point, Manard pulled off the highway and drove across the median, dodging pine trees and bushes and shrubs as the truck bounced along. They popped back out on the other side of the highway, now headed in the opposite direction.

Though they were going more than 100 miles an hour, Toby felt like the world was moving in slow motion. And she couldn’t hear a thing. Not sirens. Not

squealing tires. Not Manard. It was just cars and trees and flashing lights slowly passing by.

Manard was driving on the shoulder again, then through the grass alongside the highway. When he pulled back onto the pavement, the tires locked up and he lost control of the truck. They turned and sped straight toward a tree. As she saw the tree approaching, Toby prayed that God would let her die in the wreck.

“I wanted to be done,” she says.

Then they hit the tree.

Suddenly, she could hear again. Manard was asking her over and over, “Are you okay?” She had shards of glass in her hair and cuts on her head. She couldn’t get enough air to speak. Steam was pouring out of the hood of the truck.

Manard told her he didn’t want to leave her, but that if he didn’t get out of the truck, the police would start shooting. She remembers seeing him get out with his hands up. Then a man with what she recalls as “a black machine gun” started yelling at her to get out of the vehicle.

She tried to explain that her seat belt was stuck and that her door was caved in, but she couldn’t catch her breath to talk. She

remembers the officer grabbing her, pulling her out through the window, and throwing her on the ground. Then she had a gun to the back of her head as she was handcuffed.

When she looked up, she saw Manard coming around the back of the pickup truck, handcuffed and dragging several officers.

“Are you okay, baby?” he shouted through the chaos. “Are you okay?”

She said she was.

DESPITE MANARD’S PROMISES that she wouldn’t get in trouble, Toby was charged with aiding and abetting aggravated escape, taking contraband into a prison, and providing firearms to a felon. She was sentenced to 27 months. She later learned that authorities had tracked them to the cabin because Toby had used that address for the paperwork for the truck.

“It turns out, I’m not a good criminal,” Toby says.

Her first endeavor into lawbreaking divided her family. For nearly two weeks, they’d feared the worst. Toby’s father, who had already been sick, died eight weeks after her arrest. Her mother and some of her siblings believed Toby’s felonious behavior and subsequent arrest hastened his death. But her mother loved her unconditionally, and came to visit her in prison almost every week. Toby stayed in contact with her two brothers, but she never reestablished a relationship with her four sisters. Their family had always been private. Having their lives exposed this way was embarrassing and painful. Her sons refused to speak to her. Her husband filed for divorce, and it was finalized the day before she went to prison.

In an email, Toby’s ex-husband, Pat Young, said he doesn’t remember many of the incidents Toby describes from their marriage, or remembers them differently. But he said he never tried to squash her dreams. Even though he wasn’t a fan of the dog program, for instance, he’d helped her convert the barn into a kennel. “She was very accustomed to doing what she wanted to do,” he said, adding that her crime created ripples of suffering for their family. “It affected me physically, mentally, and monetarily.” And it was especially hard on their sons, “who had to say, ‘Yeah, that’s my mom.’”



Young is remarried now; he and his wife like to play golf together. Of Toby, he said: “She is of no consequence to me.”

TOBY KNEW THE men’s prison in Lansing was violent. Women’s prison, she learned, wasn’t like that. There were rivalries and gossip—“high-school drama on steroids,” she says—but prison is also where she formed the strongest friendships of her life. For the first time, she felt like the people around her would do anything to help her. And with no responsibilities, she had time to think about all the things she’d been avoiding her whole life.

Manard got 10 years added to his sentence. He wasn’t supposed to communicate with Toby, but he figured out where she was and wrote to other women there with notes to give to her. He sent her drawings and song lyrics and letters describing their love.

But the more she talked with her new friends in prison, and the more she reflected on everything that had led up to the escape, the more those letters from Manard began to seem a little immature. He would say things like “I’m your knight in shining armor and you’re trapped in this tower and I wish I could ride in on my horse and rescue you.”

“I got that and I thought, *This is so not realistic*,” she says. “I just decided I have to be done with this.” It was like she was slowly waking up from a dream.

When she got out, she moved in with her mother, but everyone in Kansas City knew what she had done, and she felt uncomfortable in public. She found a web-design job in Boston, and decided to move. But she returned to Kansas City several months later, on Christmas Eve 2008.

Toby’s younger son had been diagnosed with Hodgkin’s lymphoma. During most of

the treatment, Toby gave her sons space. But as her younger son’s condition worsened, she decided to go to the hospital to see him.

“I can’t tell you why I did what I did,” Toby told him. “I haven’t figured it out yet myself. But I want you to know I’ve never stopped loving you.”

He looked at her and said he knew that.

She asked to give him a hug.

He said no.

She asked if she could come back and see him again.

He said no.

She came back anyway, two weeks later. He was in a coma. She touched his face and held his hand and told him he’d fought long enough, and that it was okay for him to go. Then she kissed him and left. He died soon after.

SIX MONTHS LATER, in October 2009, Toby got married again, in a simple



courthouse ceremony. Her husband's name is Chris, and he makes her feel safe and supported. He didn't balk when he first learned her story. He even encouraged her to reach back out to John Manard. Toby and Manard started exchanging letters and talking on the phone. Toby sent him a Christmas basket. Then Toby and Chris went to visit him in prison.

"It was so good for all three of us," she says.

Toby and Manard haven't communicated in a few years now, and attempts to reach him for this story were unsuccessful. But in a letter he wrote to *The Kansas City Star* in 2018, he said he'd loved Toby. "Why did I stay with her once I was out if I was just manipulating? I NEVER manipulated her in the least!" he wrote. "I loved Toby with all that I was."

These days, Toby is trying to help other women. She's made workbooks to help

women in prison process their feelings and circumstances, to break the destructive cycles that put them behind bars.

She's also started telling her own story in public. She's given just a handful of speeches, but each time she's been met with a line of women coming up to her afterward, confessing their own secret desire to escape. Her story resonates, she says, because so many women wonder if they wouldn't do the same thing. They feel pressure to smile and pretend their life is fine, even when trapped in a bad relationship or a bad job or any number of circumstances that seem beyond their control. Toby thinks these women are inspired by her not only because she had the guts to leave, but also because she tells her story without shame.

Toby is still a rule follower. She always wears her seat belt. She's always on time. She says she "freaks out" if Chris turns the

car around in someone else's driveway. She certainly never wants to get arrested again. But she says she's come to realize that some rules—like keeping a redeemable person locked up for life—aren't just.

Sometimes she's asked if she regrets what she did: leaving her family, helping a felon escape, living on the run for two weeks. She always says regrets are a waste of time.

"You can't change the past," she says. "I like the person I am today, and I wouldn't be the person I am today if I hadn't gone through all that."

Would she do it over again?

She lets out a sweet, rueful laugh.

"No way." *A*

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Culture & Critics

OMNIVORE

Was Charlotte Dod the Greatest Athlete Ever?

The remarkable career of a Victorian athletic phenom—and the legacy that wasn't

By Helen Lewis

Charlotte Dod was only 16 when she challenged a man to single combat—three men, in fact. It was the summer of 1888, and the British prodigy had already won two Wimbledon titles, earning her the nickname “Little Wonder.” But Dod was always eager for another victory, and three singles matches, each against a top-ranked male tennis player, would attract plenty of publicity. Two of the men knew her already, having partnered with her in mixed doubles. One of them, Ernest Renshaw, even had prior



experience in taking on a woman—Dod's great rival, Blanche Bingley. (On a dare, he had worn cumbersome women's clothing to do so; he won the match.)

The men allowed Dod to start at 30–0, and she could request replays of up to three points in each set. But the advantages did not all run one way: Dod wore a long, high-necked dress; a corset; thick stockings; and heavy leather shoes. And, like most women at the time, she habitually served underhand. Renshaw lost the first set, and upped his game. One commentator remarked that once he realized “he had no ordinary lady opponent ... every stroke was keenly contested.” He recovered to win the match narrowly (2–6, 7–5, 7–5), but the other two men were beaten by a girl. Eighty-five years before Billie Jean King and Bobby Riggs fought the “battle of the sexes,” a Victorian teenager showed what women could do.

Dod's story is all the more extraordinary because, after winning three more Wimbledon victories, she abandoned tennis in the mid-1890s, feeling that she had nothing left to prove. She went on to represent England in field hockey, win an Olympic silver medal in archery, and become an accomplished mountaineer, expert horseback rider, skilled ice-skater, champion golfer, and daredevil tobogganist.

A sensation in England at the end of the 19th century, a time of feminist ferment, Dod was all but forgotten when she died in 1960—“a Victorian relic in a nuclear age,” as the journalist Sasha Abramsky wistfully puts it. In *Little Wonder: The Fabulous Story of Lottie Dod, the World's First Female Sports Superstar*, he sets out to write her back into the historical record. In doing so, he joins a well-established feminist project—the rediscovery of lost pioneers of all kinds. Researchers have not yet settled on the athletic equivalent of the playwright Aphra Behn or the mathematician Ada Lovelace. Could Lottie Dod be that figure?

Working out where Dod fits in the pantheon of sporting, and female, greatness is its own sort of feat. After all, she played against a limited pool of amateur opponents, drawn from the upper and middle classes, while wearing clothes chosen for modesty rather than performance. Taking stock of her remarkable versatility is tricky, too. Her omnicompetence now seems like diletantism, but it might also reflect changing models of success. The current formula for athletic stardom is the “Tiger path,” mimicking Tiger Woods's early and unwavering hyper-focus, but in his book *Range: Why Generalists Triumph in a Specialized World*, David Epstein instead endorses the more eclectic “Roger path”—following Roger Federer, who loved skateboarding, skiing, and wrestling as a child, and settled on tennis only as a teenager.

The “Lottie path” is an extreme variation of that approach, and it has now fallen firmly out of fashion. Still, Dod's story does shed light on women's

quest to claim their place in sports, a realm that has always been dominated by men—as players, officials, coaches, and viewers. Women were banned from competing in the ancient Olympics; in Dod's time, the president of the International Olympic Committee pronounced women's sports “against the laws of nature.” Sports were not, however, against Dod's nature. Born in 1871 in the village of Lower Bebington, she had the advantage not just of upper-middle-class comforts (among them a tennis court at home) but of a physically gifted family, with three siblings who also excelled athletically. Early on, her elder sister, Ann, was her doubles partner and chaperone; later, her brothers accompanied her on outdoor adventures.

To the Victorians, the highest aspiration for women's sports was respectability. Was it “unfeminine” to exert oneself in public? To aspire to beat the competition and seize glory for yourself? To train hard to excel, instead of resigning yourself to life as a supporting actor in someone else's story? The answer was obvious, which didn't stop Dod from hitting the ball with “sheer ferocity,” according to Abramsky, or from crushing more ladylike opponents, or from disdaining women who “merely frivol at garden parties” with a racket in their hands. Feminine modesty didn't deter her from keeping a fat scrapbook of press clippings, either, though she was well aware of the patronizing spirit of plenty of the coverage—praising her for being “healthy, ruddy, and as strong as a man,” for example, while noting that she “has not lost a particle of her womanliness.”

We get a rare glimpse into the inner fire that made Dod such a fierce competitor in a seven-page magazine essay on tennis that she wrote when she was just 18. Abramsky cites passages in which the teenager described a world of commentators who presumed that “no lady could understand tennis scoring.” She attacked the editor of a popular journal, depicting him as being “invested with the prerogative of an irresponsible despot” and arguing that the quality of female competitors had “conclusively disproved” his prejudices against them.

She was also outspoken on the subject of one particular disadvantage faced by female athletes of the time. “How can they ever hope to play a sound game when their dresses impede the free movement of every limb?” she remarked to a journalist. “A suitable dress is sorely needed, and hearty indeed would be the thanks of puzzled lady-players to the individual who invented an easy and pretty costume.” Entering competitions as a young teenager, Dod benefited from being able to at least wear skirts above the ankle, but soon enough she was trussed up and weighed down by more restrictive garments. (For an insight into the daily life of Victorian women, remember that the rational-dress movement, which emerged in the mid-19th century,

On the tennis court, Dod wore a long, high-necked dress; a corset; thick stockings; and heavy leather shoes.

called for reducing the weight of undergarments from as much as 14 pounds to a still-hefty seven.)

AS I READ *Little Wonder*, I kept thinking of Serena Williams, whose career has unfolded in the shadow of the same issues more than a century later. Ideas about femininity conferring respectability still persist in women's sports. In 2018, the French Tennis Federation president, Bernard Giudicelli, said that the sleek black catsuit worn by Williams at the French Open went "too far," adding: "You have to respect the game and the place." A gentle reminder: The French Open is played on courts plastered with the names of airlines and investment banks, not in the state rooms of the Élysée Palace. Why impose a formal dress code on athletes sharing space with a 50-foot banner reading FLY EMIRATES? Like Dod before her, Williams was being urged to play in an outfit that did not cost her "a particle of her womanliness."

Williams's huge fan base is the exception: Women's sports are often still treated as inferior by both male players and viewers, a second-class status commonly justified by market appeal. Novak Djokovic once declared that prize money should be determined by "who attracts more attention, spectators, and who sells more tickets." But the greater popularity of men's sports right now is not the result of some natural law, like gravity or the diminishing quality of Radiohead albums. Around the world, women's sports are underfunded and underpromoted. That is why Title IX, which prohibits sex-based discrimination in American education programs, has been such an important and contentious piece of legislation. Since its enactment in 1972, women's participation in college sports has increased by 545 percent; the number of girls playing high-school sports has surged by 990 percent. Fairness in competitive opportunities or financial prospects has yet to follow, however. (For example, the U.S. women's basketball team, which has won six Olympic gold medals in a row, had to fight publicly to secure paid training sessions for its stars to prepare for the now-postponed Tokyo Games.)

It would be wrong, though, to see Dod as a passive victim of condescending attitudes. She was lucky to have supportive siblings and other companions in her youth. In Abramsky's telling, the men she challenged did not see their matches as a way to put women in their place, as Bobby Riggs did. And in her post-tennis life, her holidays in the ski-resort town of St. Moritz granted her a social circle where her athleticism was admired and encouraged. She encountered men who took her seriously, and were ready to devote time to coaching an obviously exceptional athlete. After passing a stringent ladies' test in ice-skating, she trained for the much more rigorous men's exam, spurred on by the example of her friend Elizabeth Main, the first woman to pass it.

LITTLE
WONDER: THE
FABULOUS
STORY OF
LOTTIE DOD,
THE WORLD'S
FIRST FEMALE
SPORTS
SUPERSTAR

Sasha Abramsky

AKASHIC BOOKS

This relationship sustained Dod. In the Irish-born Main—rich, twice-widowed, and charismatic—Dod had finally met a woman who could rival her for athleticism and daring. The two women took to climbing mountains together, accompanied by a Bernese mountain dog named Pluto, tackling difficult peaks in Switzerland and Norway. Main showed Dod how to use an ax to carve ridges in the rock; they slept in mountain huts and raced at dawn for the summits. And then, after five years of adventuring together, for reasons Abramsky says are "lost to time," they fell out.

Wondering whether they had a romantic quarrel—whether Main may have been more than a friend to Dod, who never married—is not mere prurience. Many Victorian social reformers, such as Sophia Jex-Blake and Octavia Hill, were lesbians. They had no husbands or children to tie them to the domestic sphere, and perhaps their sexuality made them aware early in life that they would never fit into conventional society. In Dod—as in other tennis trailblazers such as Billie Jean King and Martina Navratilova—were gender, social, and sexual nonconformity somehow linked?

Abramsky cannot be blamed for failing to settle questions like these, given that one of the problems of writing women's history is a lack of primary sources. Dod's letters are few, and she left no revealing personal diary to plunder for insights. That said, I wish the book included more of that essay Dod wrote at 18—and less irrelevant historical context (the evocation of Queen Victoria's golden-jubilee parade, in 1887, drags on like the procession itself). Here and there, *Little Wonder* is padded like an American football player.

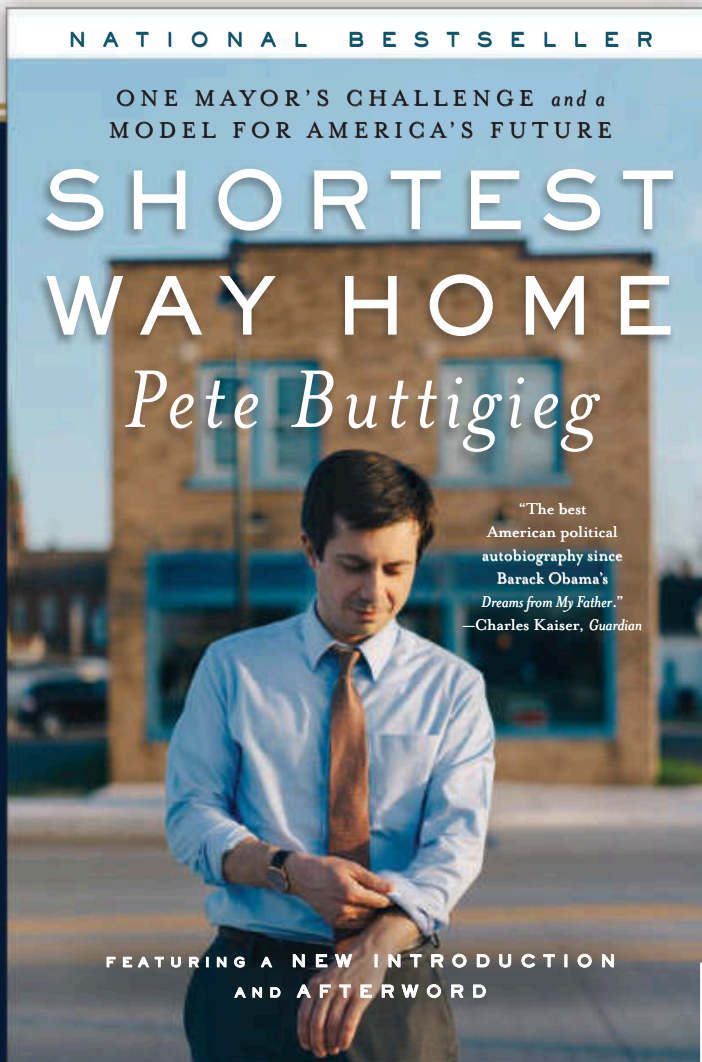
Wisely, however, Abramsky's contribution to the feminist genre of "lost lives" wears its politics lightly. Dod was a pioneer, eager to achieve one female "first" after another. But she wasn't a natural activist, even if she did persuade the Royal North Devon Golf Club "to allow ladies to use their facilities from October through May of each year." Nor was she a suffragette, bombing and burning, although the daredevil mountaineer and tobogganer never lacked courage: She volunteered as a nurse during World War I, despite her painful sciatica. If Abramsky's biography feels rather slight, it is because he refuses to co-opt her into an uplifting parable of women's liberation. Instead, he celebrates her as a brave and talented and determined original. In sports, the battle of the sexes is far from over, but Dod won more than a few break points simply by living her own life to the fullest. *A*

Helen Lewis is a London-based staff writer at The Atlantic and the author of Difficult Women: A History of Feminism in 11 Fights.

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Pete Buttigieg, born in Indiana in 1982, is former mayor of South Bend and 2020 Democratic presidential candidate. A Rhodes Scholar and Navy veteran, Buttigieg was educated at Harvard and Oxford. He and his husband, Chasten Buttigieg, live in South Bend, Indiana.

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BOOKS

Marilynne Robinson's Lonely Souls

Her new novel, the latest installment of her Gilead series, explores the power of love and the legacy of race.

By Jordan Kisner

In a scene in *Home*, the second in Marilynne Robinson's sequence of novels known as the Gilead series, Glory Boughton, age 9, loses all patience with her older brother Jack. They've been playing a game with their six other siblings and Jack has disappeared, as usual.

When they were children he would slip away, leave the game of tag, leave the house, and not be missed because he was so quiet. Then someone would say his name, the first to notice his absence, and the game would dissolve. There was no point calling him. He came back when he came back. But they would look for him, as if the game now were to find him at mischief.

Glory, enraged at Jack's power to end games simply by disappearing, and mystified that he does so, storms up to him when he returns and shouts: "What right do you have to be so strange!" It's a scolding exchange, not just because Glory is furious but because she has spoken aloud the question common to everyone in their hometown of Gilead, Iowa. Jack is strange. Why? Who has given him the right?

Jack, the fourth and newest novel in the series, invokes characters who will be familiar to readers of *Gilead* (2004), *Home* (2008), and *Lila* (2014). The Reverends Robert Boughton and John Ames, boyhood best friends who grew up in Gilead in the early 20th century and became preachers together, are now old men near death; the father and godfather, respectively, of Jack, they await his return home before it's too late. Glory, the youngest Boughton daughter and the presiding perspective in *Home*, as well as Teddy, one of Glory and Jack's three brothers, hover on the periphery. But *Jack* focuses on, as its title would suggest, the character who has eluded, bedeviled, and grieved all the people who have ever loved him: the prodigal son.

In the previous books, Robinson offered Jack to readers through the eyes of others. A strange and destructive child, he didn't just vanish at inconvenient moments; he blew up mailboxes, stole things for the sake of stealing them, drank, skipped church, and was generally unbiddable. "There was an aloofness about him," Glory recalls. "More thoroughgoing than modesty or reticence. It was feral, and fragile." He is also, as a child and then as a man, intensely thoughtful, a voracious reader, gentle in his manner, oddly bewitching. He has been plagued from a very young age by a deep feeling of estrangement. For some reason no one can quite understand or articulate—himself least of all—he is set apart, unlike his family or neighbors.

Robinson has said, over the years, that she keeps returning to Gilead because she misses the characters, or wants to give some previously secondary figure the depth and attention afforded a protagonist. But in an interview with *The Paris Review* in 2008, after

publishing *Home*, she rejected the idea that Jack would be a candidate for further excavation. “I would lose Jack if I tried to get too close to him as a narrator,” she said. “He’s alienated in a complicated way. Other people don’t find him comprehensible and he doesn’t find them comprehensible.”

Robinson was prescient to predict that enlisting Jack as a primary protagonist would pose problems, and it is telling that she found him irresistible anyway. Robinson is a Calvinist, and over the course of these novels, Jack has stood out among her characters—troublesome, seductive, full of pathos—because he most represents a central theological question raised by the Calvinist doctrine of predestination: Can a person be damned to perdition? Or, to use non-Calvinist language: Can a person be irretrievably and miserably wrong, broken, no-good, unsalvageable? If he is, and he knows that he is, what is he then to do? Does he have anything he can hope for?

ROBINSON’S FICTION investigates, again and again, the connection between loneliness and perdition, between the soul’s isolation and its torment. Many of her novels feature thwarted love of different kinds between spiritual outsiders and insiders. She pairs Boughton, the preacher father, and his wayward son; Glory, the pious sister, and her atheist brother; Ames, the widowed preacher, and the transient woman, Lila, whom he loves—the ones who feel unhoused (Robinson’s trademark is the house as a metaphor for the soul) and the ones who wish to bring them in from the cold. This is the human drama and theological problem central to the Gilead novels as well as to *Housekeeping* (1980), Robinson’s fiction debut. *Jack*, in its way, represents the culmination of this exploration as she turns to the loneliest, most dispossessed soul in the world that she has spent the past 16 years making.

Living inside Jack’s head is not nice—which shouldn’t surprise us but does, given how compelling Robinson has made him in his appearances in previous books. “He knew he always looked better from a distance, even a little gentlemanly.” From the outside, he has a haunting allure; within, he’s steeped in recursive, debilitating self-loathing, which he dulls by getting drunk, though he knows it’s no salve. For most of his adult life, he’s been unemployed, shiftless, moving between flophouses in one or another state of disgrace. He “aspires to harmlessness,” as he says multiple times, the sole aim to which he can commit himself, yet one he regularly fails to achieve. He’s an admitted liar and occasional thief, but just as often he is lied to, stolen from, beaten, insulted, misunderstood, taken advantage of. He reaps what he supposes are the deserved punishments for one who doesn’t meet social expectations, though he is more pathetic than malicious. He lives in

Robinson’s fiction investigates, again and again, the connection between the soul’s isolation and its torment.

a mostly miserable haze, which in turn gives the book a hazy quality, ungrounded and restless.

Into this life comes, accidentally, a love. Jack sees a woman caught in the rain and offers her an umbrella; they get to talking; she invites him into her house for tea. Della is a schoolteacher and the daughter of a powerful minister, a respectable woman, and yet they share a sense of alienation. Hers is vague and hard to parse, as she acknowledges. Contemplating how uneasy and ill-adjusted she feels, she wonders aloud to Jack whether the problem really lies with her: “Maybe everything else is strange.”

“Well, this happened to be a thing his soul had said to him any number of times, wordlessly, it was true, but with a similar inflection, like an echo, like the shadow of a sound.” Theirs is fated love, inexorable and mystical. “Once in a lifetime, maybe, you look at a stranger and you see a soul, a glorious presence out of place in the world,” Della says to Jack. “And if you love God, every choice is made for you. There is no turning away. You’ve seen the mystery—you’ve seen what life is about. What it’s for.” It is a very Calvinist kind of love, in its way: a love that cannot be helped.

They might wish to help it. Della is a Black woman; Jack is white. In 1940s St. Louis, where they live, interracial relationships are punished with imprisonment. Jack is a danger to Della simply because he is white—not to mention a vagrant, a drunk, a man with jail time and dishonorable relationships in his past. She will lose her job, the support of her family, and any ability to remain a part of polite society, all vital protections against the racist systems that already render her survival and thriving precarious. Jack, whose intentions are now semi-reliably honorable, wants to do right by her, which is to say leave her alone. “He felt the warm chill of impulse, actually frightened himself a little with the thought that he could do harm so easily, so innocently really, except in the fact that he knew how grave and final the harm would be to her.” It’s almost too tidy a metaphor for Jack’s spiritual predicament: His love, the purest impulse of his soul, can only further alienate and cause harm.

WHAT TO MAKE OF this relationship as an object lesson or a metaphor, as one senses Robinson conceived it? They are clear foils: Della has religion; Jack does not. Della has a warm, welcoming home; Jack does not—though the mere idea that she could one day see his room at the boardinghouse where he lives inspires him, in one of the book’s most moving moments, to acquire a potted geranium. Della, who quietly and confoundingly persists in loving Jack’s soul despite his sorry trappings and upsetting behavior, appears to be a personification of Christian grace. Can it save him? In his eyes she becomes almost an abstraction, quietly omniscient:

Della was speaking to him sometimes in his thoughts, or she was quiet, simply there at the edge of his vision. In her gentle way she was making everything easier. What would she find becoming in him? That was what he did. And by putting himself in the way of survival, not to put too fine a point on it, he was doing as she had asked him to do, so forthrightly.

Yet the deep racism of the society they inhabit muddles any clean reading of Della and Jack as another Robinsonian insider-outsider duo. Della may be the educated and respected daughter of a powerful family in the Black Methodist community, but as a Black woman living in Jim Crow-era St. Louis, she is not even considered a full citizen deserving of equal rights. Jack, for all his outcast tendencies, can never share her estrangement—he can only deepen and complicate it. While they can provide each other companionship, comfort, even the mutual recognition of souls that Robinson suggests elevates romantic love to a kind of religious grace, neither can save the other.

That Jack doesn't fall in with the prevailing white-supremacist worldview is another of his inexplicable "deviances"—one of the only redeeming ones—and it's difficult to read Robinson's intentions regarding this plot point. Jack is hardly an anti-racist visionary or a noble political dissenter, though in the previous novels he has prodded family members to reevaluate their own prejudices. He doesn't examine with any acuity the bigotry of the world he lives in, or his failure to subscribe to it. Like so many of his personality traits, this, too, seems innate and immovable rather than learned or chosen. Yet why does the Blackness of his beloved, whose life has been marked by white supremacy, come up in his mind and in their conversations only insofar as it's a material obstacle to their shared happiness? Why does our sensitive protagonist fail to imagine that this difference between them may be spiritually substantial and worthy of his curiosity, not because their souls are racialized but because their lived experiences have been? Is it his failure to see complexly, or Robinson's? One begins to sympathize with Della's relatives in their frantic attempts to shield her from him. Their refusal to see Jack's love for her as at all moral or redemptive furthers the uneasy sense that if one is to root for these two characters, one would root for them to part, or for them to find, as Della says on one of their long nighttime walks, a world where only the two of them made the rules.

Because of the chronology of the Gilead series, Robinson has trapped Jack and Della in a kind of structural predestination: This book is set some years before the events of *Home* and *Gilead*, which means that we already know they come to grief. In *Gilead* and *Home*, we see Jack return to Iowa after he, Della, and their son were forced to leave their home in St. Louis when

threatened with miscegenation charges. She's taken their son to her parents in Memphis, and he thinks she has given up on him entirely. He writes letters; she does not respond. Eventually, after a suicide attempt, he leaves town, resigned to solitary perdition; she arrives with their son looking for him two days after he departs. With this as the prewritten outcome, *Jack* dramatizes the heart-break of predestination while suggesting that the details and contours of a life—or a love—matter even if, in the end, that life or love will seem to come to nothing.

Robinson here enters Jack into the tradition of tragic heroes. To render his often-sordid path in this way dignifies a character who is routinely deprived of his dignity, which feels like a kind of authorial grace. It also makes him archetypal, his existence a parable. Likewise, Della and Jack seem designed to enact the parable of redemptive love undermined by a fallen world; they are undone by America's "original sin."

Because large portions of this book occur in dialogues between Della and Jack—their voices drifting toward each other in the dark—and because Jack's senses are often dulled or confused by misery or alcohol, *Jack* lacks some of the lush materiality of Robinson's past novels. Here, as Robinson predicted, Jack proves an imperfect vehicle. Robinson's signature is her suffusion of love and poetry into the everyday business of human beings. No one has ever written age spots or July wind or the process of making a pie or the speech patterns of children with more attention to what she has called "a visionary quality to all experience." Each of her novels has celebrated the fact that the ineffable is inseparable from the quotidian, and rendered the ineffable, quotidian world back to us, peculiar, luminous, and precise. If *Jack* feels somehow less like a world and more like a morality tale or thought experiment than her other novels, that is perhaps because its central character is so ill-tethered to the world.

Still, there are passages when Jack's eye glimmers so clearly on the moment, when his dream logic feels so apt, that the whole world Robinson has illuminated with such care and attention reappears, and we are returned to the prophetic everyday.

Then she said nothing, and he said nothing, and the crickets chanted, or were they tree toads. It had seemed to him sometimes that, however deep it was, the darkness in a leafy place took on a cast, a tincture, of green. The air smelled green, of course, so the shading he thought he saw in the darkness might have been suggested by that wistfulness the breeze brought with it, earth so briefly not earth. All the people are grass. *A*

Jordan Kisner is the author of 'Thin Places: Essays From In Between.'

JACK

Marilynne
Robinson

FARRAR, STRAUS
AND GIROUX



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BOOKS

Why Is the West So Powerful— And So Peculiar?

Cultural evolutionary theory has a startling answer: a marriage policy first pursued by the Catholic Church a millennium and a half ago.

By Judith Shulevitz



Around 597 A.D., Pope Gregory I dispatched an expedition to England to convert the Anglo-Saxon king of Kent and his subjects. The leader of the mission, a monk named Augustine, had orders to shoehorn the new Christians into Church-sanctioned marriages. That meant quashing pagan practices such as polygamy, arranged marriages (Christian matrimony was notionally consensual, hence the formula “I do”), and above all, marriages between relatives, which the Church was redefining as incest. Augustine wasn’t sure who counted as a relative, so he wrote to Rome for clarification. A second cousin? A third cousin? Could a man marry his widowed stepmother?

He could not. Pope Gregory wrote back to rule out stepmothers and other close kin not related by blood—another example was brothers’ widows. He was lax about second and third cousins; only the children of aunts and uncles were off-limits. By the 11th century, however, you couldn’t get engaged until you’d counted back seven generations, lest you marry a sixth cousin. The taboo against consanguineous family had expanded to include “spiritual kin,” who were, mostly, godparents. (It went without saying that you had to marry a Christian.) Pope Gregory and Augustine’s letters document a moment in a prolonged process—begun in the fourth century—in which the Church clamped down, and intermittently loosened up, on who could marry whom. Not until 1983 did Pope John Paul II allow second cousins to wed.

You might assume that this curious story of how the Church narrowed the criteria for marriageability would be relegated to a footnote—a very interesting footnote, to be sure—but Joseph Henrich puts the tale at the center of his ambitious theory-of-everything book, *The WEIRDest People in the World: How the West Became Psychologically Peculiar and Particularly Prosperous*. Consider this the latest addition to the Big History category, popularized by best sellers such as Jared Diamond’s *Guns, Germs, and Steel: The Fates of Human Societies* and Yuval Noah Harari’s *Sapiens: A Brief History of Humankind*. The outstanding feature of the genre is that it wrangles all of human existence into a volume or two, starting with the first hominids to rise up on their hind legs and concluding with us, cyborgish occupants of a networked globe. Big History asks Big Questions and offers quasi-monocausal answers. Why and how did humans conquer the world? Harari asks. Cooperation. What explains differences and inequalities among civilizations? Diamond asks. Environment, which is to say, geography, climate, flora and fauna. Henrich also wants to explain variation among societies, in particular to account for the Western, prosperous kind.

Henrich's first cause is culture, a word meant to be taken very broadly rather than as referring to, say, opera. Henrich, who directs Harvard's Department of Human Evolutionary Biology, is a cultural evolutionary theorist, which means that he gives cultural inheritance the same weight that traditional biologists give to genetic inheritance. Parents bequeath their DNA to their offspring, but they—along with other influential role models—also transmit skills, knowledge, values, tools, habits. Our genius as a species is that we learn and accumulate culture over time. Genes alone don't determine whether a group survives or disappears. So do practices and beliefs. Human beings are not "the genetically evolved hardware of a computational machine," he writes. They are conduits of the spirit, habits, and psychological patterns of their civilization, "the ghosts of past institutions."

One culture, however, is different from the others, and that's modern WEIRD ("Western, educated, industrialized, rich, democratic") culture. Dealing in the sweeping statistical generalizations that are the stock-in-trade of cultural evolutionary theorists—these are folks who say "people" but mean "populations"—Henrich draws the contrasts this way: Westerners are hyper-individualistic and hyper-mobile, whereas just about everyone else in the world was and still is enmeshed in family and more likely to stay put. Westerners obsess more about personal accomplishments and success than about meeting family obligations (which is not to say that other cultures don't prize accomplishment, just that it comes with the package of family obligations). Westerners identify more as members of voluntary social groups—dentists, artists, Republicans, Democrats, supporters of a Green Party—than of extended clans.

In short, Henrich says, they're weird. They are also, in the last four words of his acronym, "educated, industrialized, rich, democratic." And that brings us to Henrich's Big Question, which is really two linked questions. Starting around 1500 or so, the West became unusually dominant, because it advanced unusually quickly. What explains its extraordinary intellectual, technological, and political progress over the past five centuries? And how did its rise engender the peculiarity of the Western character?

GIVEN THE NATURE OF THE PROJECT, it may be a surprise that Henrich aspires to preach humility, not pride. WEIRD people have a bad habit of universalizing from their own particularities. They think everyone thinks the way they do, and some of them (not all, of course) reinforce that assumption by studying themselves. In the run-up to writing the book, Henrich and two colleagues did a literature review of experimental psychology and found that 96 percent of

subjects enlisted in the research came from northern Europe, North America, or Australia. About 70 percent of those were American undergraduates. Blinded by this kind of myopia, many Westerners assume that what's good or bad for them is good or bad for everyone else.

Henrich's ambition is tricky: to account for Western distinctiveness while undercutting Western arrogance. He rests his grand theory of cultural difference on an inescapable fact of the human condition: kinship, one of our species' "oldest and most fundamental institutions." Though based on primal instincts—pair-bonding, kin altruism—kinship is a social construct, shaped by rules that dictate whom people can marry, how many spouses they can have, whether they define relatedness narrowly or broadly. Throughout most of human history, certain conditions prevailed: Marriage was generally family-adjacent—Henrich's term is "cousin marriage"—which thickened the bonds among kin. Unilateral lineage (usually through the father) also solidified clans, facilitating the accumulation and intergenerational transfer of property. Higher-order institutions—governments and armies as well as religions—evolved from kin-based institutions. As families scaled up into tribes, chiefdoms, and kingdoms, they didn't break from the past; they layered new, more complex societies on top of older forms of relatedness, marriage, and lineage. Long story short, in Henrich's view, the distinctive flavor of each culture can be traced back to its earlier kinship institutions.

The Catholic Church changed all that. As of late antiquity, Europeans still lived in tribes, like most of the rest of the world. But the Church dismantled these kin-based societies with what Henrich calls its "Marriage and Family Program," or MFP. The MFP was really an anti-marriage and anti-family program. Why did the Church adopt it? From a cultural evolutionary point of view, the why doesn't matter. In a footnote, Henrich skates lightly over debates about the motivations of Church leaders. But his bottom line is that the "MFP evolved and spread because it 'worked.'" (Henrich's indifference to individual and institutional intentions is guaranteed to drive historians nuts.)

Forced to find Christian partners, Christians left their communities. Christianity's insistence on monogamy broke extended households into nuclear families. The Church uprooted horizontal, relational identity, replacing it with a vertical identity oriented toward the institution itself. The Church was stern about its marital policies. Violations were punished by withholding Communion, excommunicating, and denying inheritances to offspring who could now be deemed "illegitimate." Formerly, property almost always went to family members. The idea now took hold that it could go elsewhere. At the same time, the Church urged the wealthy to ensure their place in heaven by bequeathing

As of late antiquity, Europeans still lived in tribes, like most of the rest of the world. But the Church dismantled these kin-based societies.

their money to the poor—that is, to the Church, benefactor to the needy. In so doing, “the Church’s MFP was both taking out its main rival for people’s loyalty and creating a revenue stream,” Henrich writes. The Church, thus enriched, spread across the globe.

Loosened from their roots, people gathered in cities. There they developed “impersonal prosociality”—that is, they bonded with other city folk. They wrote city charters and formed professional guilds. Sometimes they elected leaders, the first inklings of representative democracy. Merchants had to learn to trade with strangers. Success in this new kind of commerce required a good reputation, which entailed new norms, such as impartiality. You couldn’t cheat a stranger and favor relatives and expect to make a go of it.

By the time Protestantism came along, people had already internalized an individualist worldview. Henrich calls Protestantism “the WEIRDest religion,” and says it gave a “booster shot” to the process set in motion by the Catholic Church. Integral to the Reformation was the idea that faith entailed personal struggle rather than adherence to dogma. Vernacular translations of the Bible allowed people to interpret scripture more idiosyncratically. The mandate to read the Bible democratized literacy and education. After that came the inquiry into God-given natural (individual) rights and constitutional democracies. The effort to uncover the laws of political organization spurred interest in the laws of nature—in other words, science. The scientific method codified epistemic norms that broke the world down into categories and valorized abstract principles. All of these psychosocial changes fueled unprecedented innovation, the Industrial Revolution, and economic growth.

If Henrich’s history of Christianity and the West feels rushed and at times derivative—he acknowledges his debt to Max Weber—that’s because he’s in a hurry to explain Western psychology. The bulk of the book consists of data from many disciplines other than history, including anthropology and cross-cultural psychology, to which he and colleagues have made significant contributions. Their Kinship Intensity Index, for instance, helps them posit a dose-response relationship between the length of time a population was exposed to the Catholic Church’s Marriage and Family Program and the WEIRDness of its character. Henrich gets amusingly granular in his statistics here. “Each century of Western church exposure cuts the rate of cousin marriage by nearly 60 percent,” he writes. A millennium of the MFP also makes a person less likely to lie in court for a friend—30 percentile points less likely. Henrich anticipates a quibble about what he calls “the Italian enigma”: Why, if Italy has been Catholic for so long, did northern Italy become a prosperous banking center, while southern Italy stayed poor and was plagued by mafiosi? The answer, Henrich

declares, is that southern Italy was never conquered by the Church-backed Carolingian empire. Sicily remained under Muslim rule and much of the rest of the south was controlled by the Orthodox Church until the papal hierarchy finally assimilated them both in the 11th century. This is why, according to Henrich, cousin marriage in the boot of Italy and Sicily is 10 times higher than in the north, and in most provinces in Sicily, hardly anyone donates blood (a measure of willingness to help strangers), while some northern provinces receive 105 donations of 16-ounce bags per 1,000 people per year.

To go further afield: While Europe was first compiling its legal codes, China was punishing crimes committed against relatives more harshly than those against nonrelatives; especially severe penalties were reserved for crimes against one’s elders. As recently as the early 20th century, Chinese fathers could murder sons and get off with a warning; punishments for patricide, by contrast, were strict. Asymmetries like these, Henrich writes, “can be justified on Confucian principles and by appealing to a deep respect for elders,” even if the WEIRD mind finds them disturbing.

THE WEIRDEST
PEOPLE IN THE
WORLD: HOW THE
WEST BECAME
PSYCHOLOGICALLY
PECULIAR AND
PARTICULARLY
PROSPEROUS

Joseph Henrich

FARRAR, STRAUS
AND GIROUX

HENRICH’S MOST CONSEQUENTIAL—and startling—claim is that WEIRD and non-WEIRD people possess opposing cognitive styles. They think differently. Standing apart from the community, primed to break wholes into parts and classify them, Westerners are more analytical. People from kinship-intensive cultures, by comparison, tend to think more holistically. They focus on relationships rather than categories. Henrich defends this sweeping thesis with several studies, including a test known as the Triad Task. Subjects are shown three images—say, a rabbit, a carrot, and a cat. The goal is to match a “target object”—the rabbit—with a second object. A person who matches the rabbit with the cat classifies: The rabbit and the cat are animals. A person who matches the rabbit with the carrot looks for relationships between the objects: The rabbit eats the carrot.

You have to wonder whether the Triad Task really reflects fundamentally different cognitive bents or differences in subjects’ personal experience. Henrich cites a Mapuche, an indigenous Chilean, who matched a dog with a pig, an “analytic” choice, except the man then explained that he’d done so for a “holistic” reason: because the dog guards the pig. “This makes perfect sense,” Henrich muses. “Most farmers rely on dogs to protect their homes and livestock from rustlers.” Exactly! A Western undergraduate, probably not having grown up with dogs protecting her pigs, sees dogs and pigs as just animals.

Henrich is more persuasive when applying his theory of cumulative culture to the evolution of ideas.

Democracy, the rule of law, and human rights “didn’t start with fancy intellectuals, philosophers, or theologians,” Henrich writes. “Instead, the ideas formed slowly, piece by piece, as regular Joes with more individualistic psychologies—be they monks, merchants, or artisans—began to form competing voluntary associations” and learned how to govern them. Toppling the accomplishments of Western civilization off their great-man platforms, he erases their claim to be monuments to rationality: Everything we think of as a cause of culture is really an effect of culture, including us.

Henrich’s macro-cultural relativism has its virtues. It widens our field of vision as we assess Western values—such as objectivity, free speech, democracy, and the scientific method—that have come under sharp attack. The big-picture approach soars above the reigning paradigms in the study of European history, which have a way of collapsing into narratives of villains and victims. (Henrich forestalls the obvious objections with this jarringly offhand remark: “I’m not highlighting the very real and pervasive horrors of slavery, racism, plunder, and genocide. There are plenty of books on those subjects.”) He refutes genetic theories of European superiority and makes a good case against economic determinism. His quarry are the “enlightened” Westerners—would-be democratizers, globalizers, well-intended purveyors of humanitarian aid—who impose impersonal institutions and abstract political principles on societies rooted in familial networks, and don’t seem to notice the trouble that follows.

It should be said, though, that Henrich can make a person feel pretty helpless, with his talk of populations being swept along by cultural riptides that move “outside conscious awareness.” Cultural evolutionary determinism may turn out to be as disempowering as all the other determinisms; a WEIRD reader may feel trapped inside her own prejudices. But perhaps some comfort lies in Henrich’s dazzling if not consistently plausible supply of unintended consequences. Who would have imagined that the Catholic Church would have spawned so many self-involved nonconformists? What else might our curious history yield? Henrich’s social-scientist stance of neutrality may also relieve Westerners of some (one hopes not all) of their burden of guilt. “By highlighting the peculiarities of WEIRD people, I’m not denigrating these populations or any others,” he writes. WEIRDos aren’t all bad; they’re provincial. Henrich offers a capacious new perspective that could facilitate the necessary work of sorting out what’s irredeemable and what’s invaluable in the singular, impressive, and wildly problematic legacy of Western domination. *A*

Judith Shulevitz is the author of The Sabbath World: Glimpses of a Different Order of Time.

My Industrial Work By Anonymous Poet From Room 8

At half past two in the afternoon
You can find me in twenty-eight room,
About three or four covers deep;
You turn them back and you’ll find me asleep.
And there I lie and patiently wait
For the final exams we have in Room Eight.
When the whistle blows at half past five,
Once more I am up and still alive.
Then I run down and wash my face,
Then comb my hair and I’m ready for grace.
In fifteen minutes there’s a bugle call,
The troops fall in and the roll is called.
Then out in front the troops all stand,
Saluting the flag with our hats in our hand.
While standing in the wind our hair gets wavy
But, just the same, we right face, and march to gravity.
Now this may sound like going a fishing,
But this is my only industrial position.

The Carlisle Indian Industrial School in Carlisle, Pennsylvania, was founded by Lieutenant Richard Henry Pratt in 1879 as a tool of assimilation. Describing his philosophy in 1892, Pratt infamously said, “Kill the Indian ... and save the man.” At least 8,000 children from more than 140 tribes ended up at the school. Many died from disease. This anonymous student poem was written in 1914.

This poem appears in When the Light of the World Was Subdued, Our Songs Came Through (W. W. Norton), a poetry anthology by writers of Native nations, edited by U.S. Poet Laureate Joy Harjo with LeAnne Howe, Jennifer Elise Foerster, and contributing editors.



BOOKS

Claudia Rankine's Quest for Racial Dialogue

Is her focus on the personal out of step with the racial politics of our moment?

By Ismail Muhammad

When Claudia Rankine's *Citizen: An American Lyric* arrived in the fall of 2014, shortly before a St. Louis County grand jury decided not to charge Darren Wilson for Michael Brown's murder, critics hailed it as a work very much of its moment. The book-length poem—the only such work to be a best seller on the *New York Times* nonfiction list—was in tune with the Black Lives Matter movement, which was then gathering momentum. How, Rankine asked, can Black citizens claim the expressive “I” of lyric poetry when a systemically racist state looks upon a Black person and sees, at best, a walking symbol of its greatest fears and, at worst, nothing at all? The book's cover, a picture of David Hammons's 1993 sculpture *In the Hood*, depicted a hood shorn from its sweatshirt—an image that evoked the 2012 murder of Trayvon Martin. Rankine's catalog of quotidian insults, snubs, and misperceptions dovetailed with the emergence of *microaggression* as a term for the everyday psychic stress inflicted on marginalized people.

In fact, Rankine was ahead of her time. *Citizen* was the result of a decade she had spent probing W. E. B. Du Bois's century-old question: How does it feel to be a problem? In answering that question, she deployed the same kaleidoscopic aesthetic on display in her earlier books, most notably 2004's *Don't Let Me Be Lonely*. Rankine's experimental poetics drew from first-person reportage, visual art, photography, television, and various literary genres, modeling fragmented Black personhood under the daily pressure of white supremacy. Meanwhile, starting in 2011, she had been inviting writers to reflect on how assumptions and beliefs about race circumscribe people's imaginations and support racial hierarchies. The project, which she collaborated on with the writer Beth Loffreda, culminated in the 2015 anthology *The Racial Imaginary*. If *Citizen* seemed uncannily well timed, that was because our politics had finally caught up with Rankine.

A lot has happened since 2014, for both the nation and Rankine. In 2016, she joined Yale's African American studies and English departments and was awarded a MacArthur genius grant. The fellowship helped fund an “interdisciplinary cultural laboratory,” which she christened the Racial Imaginary Institute, where scholars, artists, and activists have been expanding on the work of the anthology. Rankine also began exploring the ways in which whiteness conceals itself behind the facade of an unraced universal identity. Her new work, *Just Us: An American Conversation*, extends those investigations.

Yet this time, Rankine might seem less obviously in step with a newly zealous discourse on race. Employing her signature collagelike approach, she avoids polemics, instead earnestly speculating about the possibility of interracial understanding. She sets out to stage uncomfortable conversations with white

people—strangers, friends, family—about how (or whether) they perceive their whiteness. She wants to discover what new forms of social interaction might arise from such a disruption. She interrogates herself, too. Perhaps, she suggests, concerted attempts to engage with, rather than harangue, one another will help us recognize the historical and social binds that entangle us. Maybe there is a way to speak convincingly of a “we,” of a community that cuts across race without ignoring the differences that constitute the “I.” In contracting around the question of interpersonal intimacy, rather than structural change, *Just Us* puts Rankine in an unfamiliar position: Has the radical tone of our racial politics since this spring’s uprisings outpaced her?

RANKINE’S INTENT is not simply to expose or chastise whiteness. She has something more nuanced in mind: using conversation as a way to invite white people to consider how contingent their lives are upon the racial order—every bit as contingent as Black people’s are. “I was always aware that my value in our culture’s eyes is determined by my skin color first and foremost,” she says. The same is true for white people, of course, however unaware of that reality they may be. As she puts it, “To converse is to risk the unraveling of the said and the unsaid.”

Her experiments began in the fall of 2016, after she arrived at Yale. Unsure whether her students would be able to trace the historical resonances of Donald Trump’s anti-immigrant demagoguery, she wanted to help them “connect the current treatment of both documented and undocumented Mexicans with the treatment of Irish, Italian, and Asian people in the last century”: It was a way of exposing whiteness as a racial category whose privileges have emerged over the course of American history through the interaction with, and exclusion of, Black—and brown, and Asian—people, as well as European immigrants who have only recently become “white.”

In *Just Us*, Rankine the poet becomes an anthropologist. If her mode of discomfiting those whom she encounters strikes readers as unexpectedly mild, it might be because the strident urgency of racial politics in the U.S. escalated while her book was on its way toward publication. She chooses her words carefully as she engages, positioning herself in the minefield of her interlocutors’ emotions so that dialogue can happen. While waiting to board an airplane, for example, she initiates a conversation with a fellow passenger, who chalks up his son’s rejection from Yale to his inability to “play the diversity card.” Rankine has to resist pelting the man with questions that might make him wary of being labeled a racist and cause him to shut down. “I wanted to learn something that surprised me about this stranger, something I couldn’t have known beforehand.”

*“I wanted
to learn
something
that surprised
me about
this stranger,
something
I couldn’t
have known
beforehand.”*

Above all, she is curious about how he thinks, and how she can raise the issue of his privilege in a way that prompts more conversation rather than less.

In another airplane encounter, this time with a white man who feels more familiar, she is able to push harder. When he describes his company’s efforts to strengthen diversity and declares, “I don’t see color,” Rankine challenges him: “Aren’t you a white man? ... If you can’t see race, you can’t see racism.” She leaves the interchange satisfied that the two of them have “[broken] open our conversation—random, ordinary, exhausting, and full of longing to exist in ... less segregated spaces.” The book presents this exchange as an achievement—a moment of confrontation that leads to mutual recognition rather than to rupture.

But interactions with less rosy outcomes complicate Rankine’s optimism. She and a good friend, a white woman with whom she talks every few days and who “is interested in thinking about whiteness,” attend a production that “is interested in thinking about race,” Jackie Sibblies Drury’s Pulitzer Prize–winning 2018 play, *Fairview*. It builds to a climax in which white and Black audience members are asked to self-segregate, the white spectators going up onstage while the Black spectators stay put. Rankine’s friend doesn’t budge. Confounded and furious, Rankine tries to sort out her “own mounting emotion in the face of what I perceive as belligerence.” Is this “a friendship error despite my understanding of how whiteness functions? I thought we shared the same worldview, if not the same privileges. Be still my beating, breaking heart?” She probes her “unbearable feelings,” spools through her friend’s possible motives, and then shares the dialogue they eventually have, in the course of which her friend explains her unease with situations “manufactured specifically to elicit white shame, penance”: She resists the thrill of “riding the white emotional roller-coaster,” impatient with the notion that being chastised, as Darryl Pinckney once put it, constitutes actual learning—that it accomplishes anything.

Both Rankine and her friend are surprised, by the play and by Rankine’s anger. Their mutual surprise is productive: They emerge unsettled but still talking. The opposite happens during an encounter Rankine has at an otherwise all-white dinner party. In a conversation that turns to Trump’s racism, she feels herself becoming stereotyped as an angry Black woman, only to have another guest step in to steer everyone’s attention to dessert. When Rankine demands to know if she is being silenced, the party closes ranks around the woman. “Knowing that my silence is active in the room,” Rankine writes, “I stay silent because I want to make a point of that silence. Among white people, black people are allowed to talk about their precarious lives, but they are not allowed to implicate the present company in that precariousness.”

Rankine is wary of not only foreclosed conversations, but also the sclerotic language that prevents conversations from advancing understanding. Rankine's own husband—a white man—disappoints her when, in response to her reports of frustrating exchanges with strangers, he falls back on well-worn keywords. “‘They’re just defensive,’ he said. ‘White fragility,’ he added, with a laugh.” This diagnosis is not enough for Rankine.

This white man who has spent the past twenty-five years in the world alongside me believes he understands and recognizes his own privilege. Certainly he knows the right terminology to use, even when these agreed-upon terms prevent us from stumbling into moments of real recognition.

Yet Rankine herself defaults to Robin DiAngelo's concept on several occasions, which can't help feeling stale at a juncture when *White Fragility* is under fire as a book that coddles white readers. It substitutes consciousness-raising for concrete policy changes, critics argue, and in the process creates a caricature of Black people as hapless victims.

INDEED, THE VERY IDEA that drives *Just Us* forward—the notion that racial inequality can be challenged by fostering social intimacy and uncovering the reality of white privilege—risks seeming somewhat regressive. Why should one care about audience responses to a Black playwright's breaking of the fourth wall, for example, or about arguments over Trump's racism at a well-heeled dinner party? Unlike the Rankine of *Citizen*, this Rankine can often sound—at least to someone who's followed, and felt, the anger of the spring and summer—as though she's arriving on the scene of a radical uprising in order to translate it into language white readers will find palatable. Even Rankine confesses to a similar impatience as she sits in silence at that party, feeling shunned for shaming a fellow guest: “Let's get over ourselves, it's structural not personal, I want to shout at everyone, including myself.”

But Rankine's probing, persistent desire for intimacy is also daring at a time when anti-racist discourse has hardened into an ideological surety, and when plenty of us chafe at the work of “explaining” race to white people. As she goes on to write, after expressing that urge to shout about systemic racism:

But all the structures and all the diversity planning put in place to alter those structures, and all the desires of whites to assimilate blacks in their day-to-day lives, come with the continued outrage at rage. All the perceived outrage at me, the guest who brings all of herself to dinner, all of it—her body, her history, her fears, her furious fears, her expectations—is, in the end, so personal.

JUST US:
AN AMERICAN
CONVERSATION
Claudia Rankine

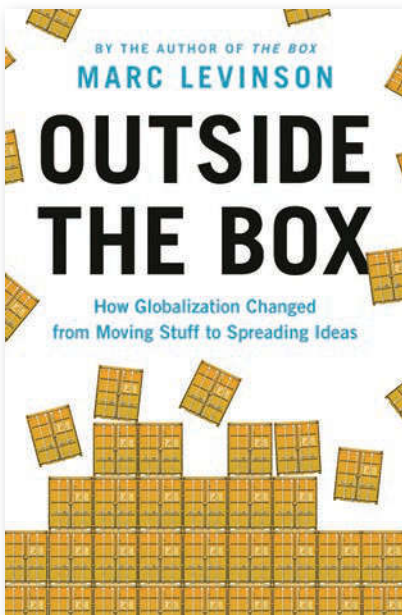
GRAYWOLF

The personal, Rankine suggests, is an unavoidable challenge along the path to structural change. It's not just her white interlocutors, after all, who are discomfited by the exchanges. Rankine is a Jamaican immigrant and first-generation college graduate who travels in largely white professional and communal spaces. In one essay, she slips into overidentifying with a wealthy, Mayflower-pedigreed friend's class identity, but catches herself: The two of them might have arrived at the same place, but they've traveled dramatically different routes. “I begin to remember all the turbulence and disturbances between us that contributed to the making of this moment of ease and comfort,” she writes, aware of how much she, too, responds to “the framework of white hierarchy . . . behind the making of a culture I am both subject to and within.”

Just Us is most interesting when Rankine leans into this self-examination. In these moments, she suggests that the myopia of “whiteness” is not necessarily an attribute limited to white people. It becomes a circulating ethos of willful ignorance, the right to live a life whose fundamental assumptions go unobserved. Upon meeting a Latina artist who contests Rankine's tidy narrative that Latino people are “breathless to distance themselves from blackness,” Rankine is forced to acknowledge her own blinkered perception as a woman who has ascended into the upper echelons of white culture. The artist proceeds to explain that “the Latinx assimilationist narrative is one constructed by whiteness itself.” The tension that Rankine perceives between Latino and Black people is born of a “monolithic focus on black-white relations in the United States” that has obscured more complex conceptions of race. She continues to “believe antiblack racism is foundational to all of our problems, regardless of our ethnicity.” Yet she's failed to recognize how Latino people's lived experiences are erased by America's narrow racial categories, the same categories that threaten to erase her.

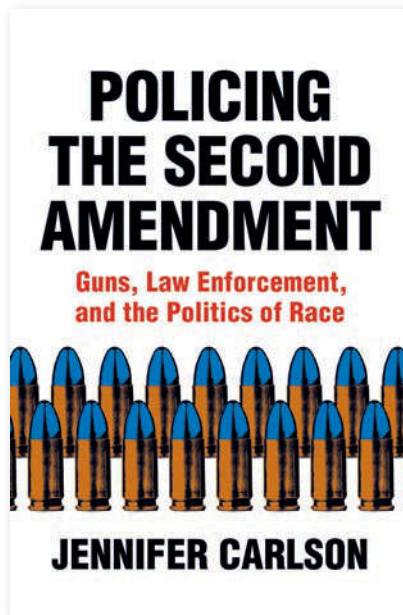
Rankine's readiness to live in the turmoil and uncertainty of that misunderstanding is what separates her from the ethos of whiteness. As the country confronts race in a newly militant spirit, her need to deal in the personal while public protest thrives may not seem cutting-edge. But tireless questioning is never out of date, and she freely faces up to the limits of her own enterprise, embracing a spirit of doubt, mingled with hope, that we would all do well to emulate. “Is understanding change?” Rankine asks toward the end of her book. “I am not sure.” *A*

Ismail Muhammad is the criticism editor at The Believer. His work has appeared in The New York Times and The Nation, among other places.



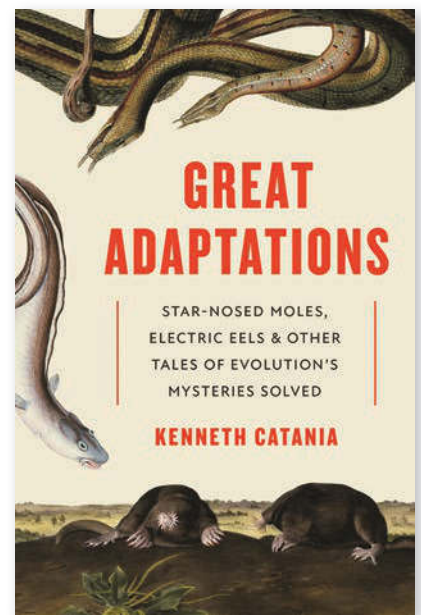
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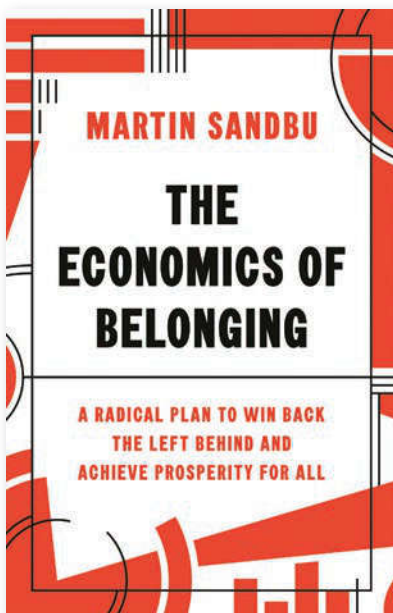
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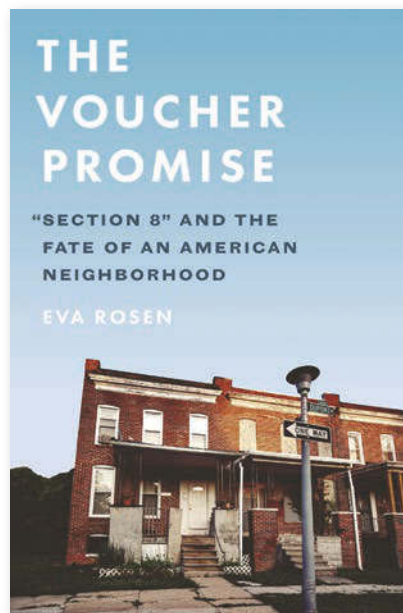
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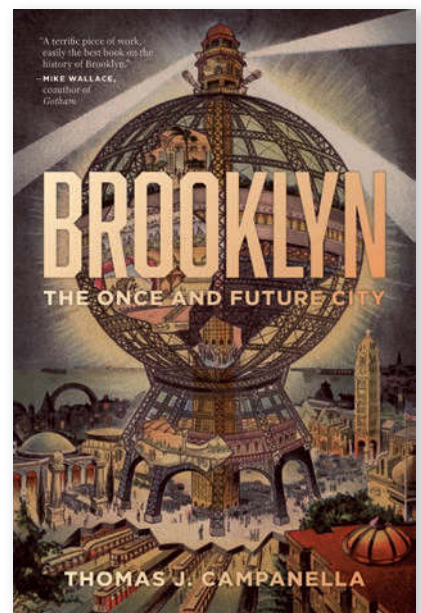
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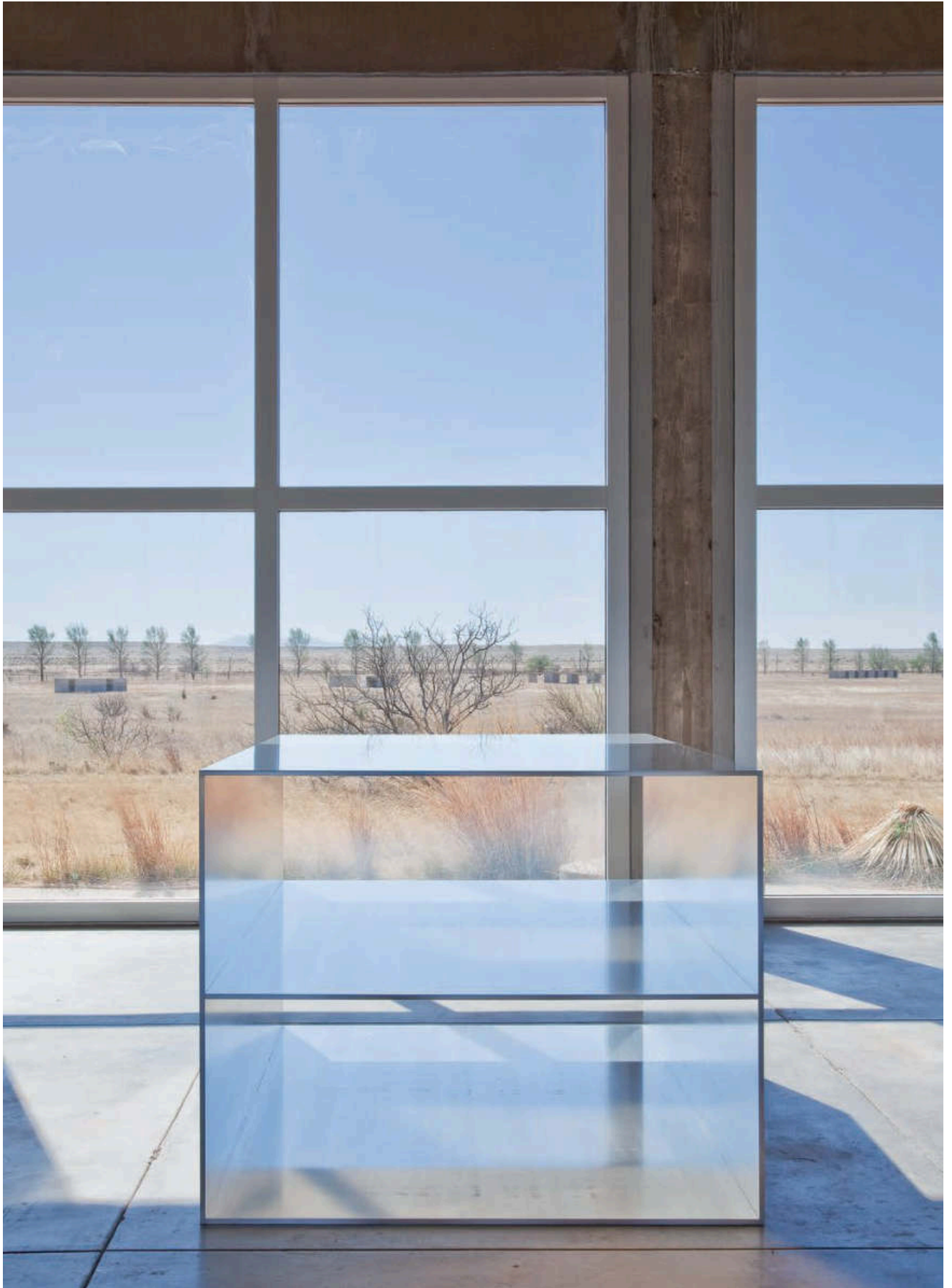
ESSAY

The Beating Pulse of Donald Judd

*I always thought
his work was
intimidatingly
austere, until
I discovered the
plenitude at its core.*

By
Leslie
Jamison

Bringing my toddler to the Donald Judd retrospective at the Museum of Modern Art when it opened last winter forced me to recognize the ways Judd's objects resemble playground equipment: the diagonal ladder of red-painted wood with its single purple rod, or the red-enameled iron tube that slyly evoked (at least to my toddler-adjacent eyes) an empty kiddie pool. When we visited



shortly after the show opened in February, my daughter wanted to climb on all the objects—or up them, or through them, or over them. *The objects*. I had trained myself not to call them sculptures, because Judd himself hadn't thought of them that way. And neither did my toddler! She wanted to crawl through the silver aluminum boxes lined with blue Plexiglas, to bang her tiny fists against a green-lacquered galvanized-iron slab. The one thing she didn't want to do was stay in her stroller.

Eternally intimidated by the stark, imposing presence of Judd's pieces, I was surprised to discover their fragility—that they are easily damaged, and have often been poorly protected. In an essay about Judd's vexed relationship with museums that appears in the exhibition catalog, Ann Temkin, the show's curator, writes:

Once his works entered the public realm, their flat tops and boxlike forms were often read as invitations to rest an elbow or set down a purse. Their rectilinear structures tempted children and adults alike, whether to squish their bodies between elements of a wall progression, climb inside a channel piece, or crouch beneath a single stack. Unbeknownst to most visitors, the surfaces of the materials they were touching—Plexiglas, aluminum, galvanized iron—were as fragile as parchment and often irreparable.

As my daughter and I made our way through four huge rooms—displaying work that spanned the three decades of Judd's career, which found its footing in the mid-1960s and ended with Judd's sudden death in 1994—I cringed at the thought of her splintering one of his plywood boxes with her tiny blue Velcro-fastened sneakers. Yet something about Judd's art also made me *want* to see its perfect lines dented, its stillness disrupted, its self-possession rattled; his work often made me feel inadequate and uncomprehending, vaguely excluded.

When Judd emerged as a central figure in the downtown New York art scene in the late '60s, people celebrated his art and were confounded by it. He broke away from abstract painting to start

creating three-dimensional objects that were embraced by many critics as part of an emerging minimalist movement. One crucial milestone in his career was his appearance in the 1966 "Primary Structures" group exhibition at the Jewish Museum in New York, along with his contemporaries Sol LeWitt, Dan Flavin, and Robert Morris, often understood as "minimalist" as well. (The poet John Ashbery's review in *ARTnews* was titled "Young Masters of Understatement.") But Judd himself always rejected the term *minimalist*, which seemed like another form of minimalism: His art was so minimalist that even the label was excess weight. If you clung to that category, you had already missed the point.

I'll confess, however, that *minimalist* was the word I reached for the first time I stood in front of his art—an installation of 15 plywood boxes at Dia: Beacon labeled, simply, *Untitled* (1976). Its refusal of a title (most of his work is untitled) struck me as yet another act of withholding. The installation seemed elusive and aloof, as if it were responding to my hunger to understand its meaning with a reticence close to silence. These boxes weren't figurative. They weren't narrative. They weren't embellished. They weren't even pretty. What *were* they, exactly? They were made of blond wood with a visible grain. Some were closed. Some were open. Others had recessed tops, like little roof decks, which made me picture tiny people lounging on top of them for summer barbecues, eating tiny hot dogs, and plunging into tiny hot tubs. Tiny hot tubs! I knew this imagined landscape wasn't the "right" reaction to be having.

I couldn't look at these plywood boxes without feeling reprimanded by the hypothetical specter of a more sophisticated eye than mine—a viewer who could appreciate Judd's art better, who didn't crave the entry point of narrative or figurative representation. The people satisfied by Judd's spare boxes were probably also people who might eat a single peach for dessert while listening to obscure electronica; I'm someone who wants to inhale an entire carton of ice cream while being flooded by the swelling riffs of a cheesy pop song. I've always felt tainted by this desire for excess in all forms, for naked sentiment and

surging sugar and the aesthetic comfort food of legible stories. Which is all to say: I was convinced that I had failed Judd's work by looking at it and feeling nothing, or by assuming that feeling something was the only way to have a meaningful experience with art.

In retrospect, I wonder if my conviction that I'd somehow failed Judd's work stemmed from an oblique kind of transference—from the way I experienced his work as the artistic equivalent of an aloof father figure, detached and opaque. I was alienated by what felt like a particular *maleness* at its core; its simplicity felt like withholding because it brought me back to my childhood dinner table, where I sat across from my father trying to decode his spare, inscrutable utterances—always grounded in logic and precision, rather than sentiment. It was as if Judd's art had become another impassive male face in which I was hunting for an aperture; as if I needed to devote myself fully—all my intelligence, all my stamina—to understanding what lay behind its impenetrable facades. My stubborn focus on emotion was missing the point.

When asked by the critic Bruce Glaser in 1964, "Are you suggesting an art without feeling?" Judd replied that he was specifically resisting a certain "kind of feeling," by which he meant an artist's "particular feeling at the time." Judd's work was instead invested in the formal existence of the object itself. "Already convinced that representational art was a thing of the past," Roberta Smith wrote in her obituary,

he became increasingly sure that even abstract art could not presume to describe human emotion. Instead, he began to believe in the autonomy of the art object, namely that the object's purpose was not to serve as a metaphor for human life, but to have a strong formal life of its own, something he frequently called specificity.

At MoMA, my daughter's eagerness to touch Judd's work—to bang it, climb it, crawl beneath it—was attuned to this "strong formal life." Driven by primal material curiosity, she was spellbound by the visceral force field of his art, undistracted by a search for embedded

meaning or latent feeling, an unwitting, squirming disciple of his famous pronouncement that “a work needs only to be interesting.” While I’d understood his work as stifflingly serious, she approached it with playful desire, sensing that it might want to give us something, that the art and its witnesses (the two of us!) might be engaging in an experiment together.

This tension—between understanding Judd’s art as reserved minimalism, and pushing back against that framing to excavate its exploratory vitality—recurs across the long arc of critical responses to his work. Critics love disagreeing about Judd, and they particularly love disagreeing about the question of his restraint. Early in his career, his work was featured in a group exhibition at Stockholm’s Moderna Museet exploring “space, silence, stillness, even emptiness and negation as means of expression,” and many critics saw his breakout 1968 solo exhibition at the Whitney as a high-water mark in the rising minimalist movement. But even then others balked at the label; the critic Elizabeth C. Baker praised an “over-all quality of sumptuousness” at the Whitney solo show, disputing the popular misunderstanding of Judd’s work as “baffling, impassive, harsh”; the critic Hilton Kramer called him a “closet hedonist.”

The very layout of the retrospective enacts a version of this ongoing critical dispute. Toward the start of the exhibition, viewers encounter the younger Judd’s spare, iconic objects, his emerging vocabulary of forms—his boxes on the ground; his “stacks,” consisting of boxes installed vertically against the wall, at even intervals between floor and ceiling, some made of galvanized iron painted with sea-green lacquer, others made of stainless steel and fitted with yellow Plexiglas; and his “progressions,” mounted objects with appendages arrayed according to numerical sequences (a purple-lacquered aluminum rod, for example, with angular attachments made of cold-rolled steel). But in the last gallery, viewers are faced with Judd’s more outrageously colorful works from the ’80s and early ’90s: multicolored objects made from enameled aluminum, their rectangular patchworks of deeply saturated hues—tangerine, cobalt, teal, flame—held together by visible bolts.

The “chromatic and material exuberance” of these later works, as Temkin writes, “emphatically contradicts the ‘Minimalist’ label that Judd had always rejected.”

Even as I assured myself that I would come back to the retrospective on my own—without the soundtrack of my toddler begging to get out of her stroller, and the distracting suspicion that we were distracting everyone else—I also understood that my daughter was teaching me something about Judd’s objects. She was training me to see the shimmer of their energy, the rough or polished or bolt-studded texture

*These boxes
weren’t figurative.
They weren’t narrative.
They weren’t embellished.
They weren’t even pretty.
What were they,
exactly?*

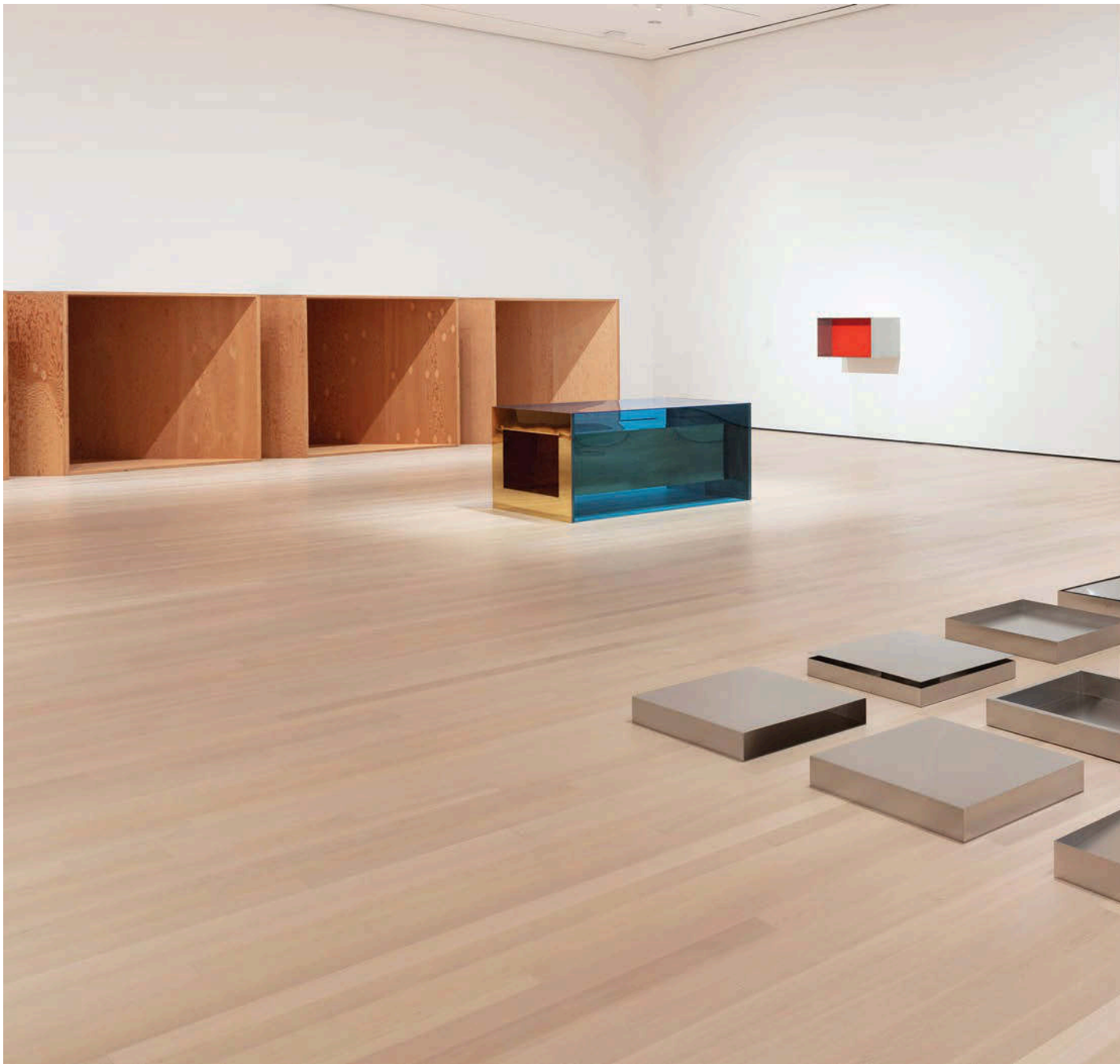
of their surfaces, the ways their stark lines vibrated against the white gallery walls.

When I spoke with Judd’s son, Flavin—now the artistic director of the Judd Foundation—he described his father’s art as committed to creating an experience of intensified presence. This sense of purpose was grounded in Judd’s awareness of the bounded nature of life; how precious and limited it is, how in this finitude it deserves and repays our attunement. Judd’s insistence on noticing—as a way of being in the world, and a daily practice—was also part of what it meant to grow up with him as a father. Flavin told me that “Don” (as both his children call him) was constantly urging them to pay closer attention to the world. It’s precisely what Judd’s art asks of us.

WHEN FLAVIN was a young child growing up at 101 Spring Street—the five-story cast-iron building in New York’s SoHo warehouse district that Judd converted in 1968 into a studio space and home—he didn’t notice his father’s art so much as he experienced it as an essential feature of his domestic landscape. Flavin joked to me that before he and his younger sister, Rainer, even learned to walk, they learned, “Don’t walk through the art.” And a few years later, as a 6-year-old, Flavin started drawing plans for objects of his own—not boxes, as his father made, but triangles. It was a way of accessing the art without touching it, perhaps.

The critic John Canaday once claimed that Judd’s work exemplified art “that rejects all connection with life of any kind,” but Temkin, in her introduction to the retrospective’s catalog, emphasizes the precise opposite—that Judd was “an artist deeply involved in the interrelation of art and life.” Flavin believes that for his father, making art, navigating daily life, and raising his kids were all informed by what he calls the same “philosophical stance”: a commitment to stripping away everything but the proximate—all the obfuscating myths and stories and abstractions—and a desire to pay attention to the world and to cultivate that attention in others. In Judd’s creative practice, this meant he wanted to dispense with much of the Western art tradition; in raising his kids—one named after an artist, the other after a dancer—this meant he took them not to church, but out into the desert, to look at the rocks and the stars.

Flavin described his father’s philosophy as infused with the ethos of a midwestern farmer, which Judd came by naturally. He was born in his grandparents’ rural farmhouse in Excelsior Springs, Missouri, in 1928, and believed in being efficient and practical: making use of things, not wasting anything. He also believed in respecting preexisting structures and materials, taking his cues from what he found. When he decided to leave his Spring Street property more or less intact, it was an aesthetic decision to respect the integrity of the space. “I thought the building should



The Donald Judd retrospective at the Museum of Modern Art spanned a career that took off in the mid-1960s and ended with the artist's death in 1994.

be repaired and basically not changed," he wrote years later, and emphasized that leaving the place alone had been "a highly positive act." For certain geniuses, the source of their brilliance lies in a gift and compulsion for reinvention and self-transformation, but for Judd, there was a striking constancy. He agreed with prior versions of himself more often than he didn't.

Judd had initially moved to Manhattan to study art history and philosophy at

Columbia, after serving with the U.S. Army from June 1946 until November 1947, mainly stationed as part of the Engineer Corps in Korea, where he was assigned to a unit that helped build an air base and a boiler plant. During the late '50s and early '60s, he supported himself as an art critic, devoting his own work mainly to painting, and as the 1960s got under way, he started making the three-dimensional objects for which he became famous. In 1973 Judd

began to purchase property in Marfa, Texas, seeking an alternative to the "harsh and glib situation within art in New York." He was determined to create permanent installations of his work, because he felt most temporary gallery exhibitions did the objects a great disservice. Judd was drawn to West Texas because "there were few people and the land was undamaged," and he chose the town of Marfa "because it was the best looking and the most practical." After he and



his wife, the dancer Julie Finch, separated in 1976, Judd brought Flavin and Rainer, then 9 and 6, to live with him in Texas, fighting for primary custody at the Presidio County Courthouse.

Flavin told me that Judd was “the only single father in Marfa making lunch for his kids every day,” though his exacting artistic sensibilities were present even in this daily act of parenting; he asked his kids to keep their milk cartons on the floor rather than

the table, because he couldn’t stand their design. “In Marfa our friends were cowboys and Border Patrol agents,” as Flavin put it, and in the same 2016 interview, Rainer described the powerful impact of the vast Texas landscape on her childhood psyche: “The fishbowl quality of the sky over hundred mile vistas became a teacher of sorts, giving me the simultaneous feeling of being both little and independent.” This was a far cry from SoHo, where Flavin

remembered “ducking under the loading docks on the way to school, the smell of Scotch and machine oil, laughter echoing through empty streets from open loft windows.” But as opposite as Marfa and SoHo were, Rainer said, “one thing in common was a feeling of being a pioneer. They were both village-size with few stores, one post office ... Both had a slightly abandoned, transitional quality.” In Marfa, they spent many weekends at the Ayala de Chinati ranch, where, Rainer recalled, “we’d sit by the fire and talk. It developed in me a wondering type of thinking, free to ask questions. Some parents take their kids hunting or to Disneyland. Driving to the land, making fires, and talking was his gift.”

The more I learned about Judd as a dad, the more I began to question why I’d responded to his work as if it were the aesthetic equivalent of a distant father. I began to wonder, in fact, if I’d been misunderstanding its simplicity all along—if I’d been reading restraint as withholding, when perhaps it was a form of offering. A 2015 visit to Judd’s home in downtown Marfa, a compound called La Mansana de Chinati, only deepened this sense that I’d been missing something crucial about the ethos of care that connected his life and work. La Mansana, known informally as “The Block,” struck me as an architectural embodiment of the continuities that had mattered most to him—between his artistic vision and his daily life, between daily living and daily making, between being an artist and being a father.

Judd created the Block from a cluster of three neglected buildings that he enclosed with an adobe wall. Two were warehouses that he salvaged from disrepair—broken windows, leaky roofs—and over time converted into hybrid spaces meant for living, working, and permanent art installations. He turned what had once been the offices of the U.S. Army’s Quartermaster Corps into the home he shared with his kids, describing it as having “the necessary domesticity” (though he removed its bathroom to make the interior layout more symmetrical, and built a freestanding adobe bathhouse nearby).

At first glance it didn’t look like a home that had ever been inhabited by children. The space was uncluttered and



The gleaming surfaces of this installation, 100 untitled works in mill aluminum, reflect the shifting moods of the Texas sky.



intentional—as if living were something that could happen without making a mess, as if one’s whole life, day by day, could become a kind of art object in its own right. But Judd *had* raised his children there. They’d lived in symmetrical rooms at the base of the stairs, their doors covered in stickers: MIGHTY SHORT HORNS OF MARFA and (more mysterious) WORMY PACKAGES. Each bedroom had a closet accessible only by ladder. On one side of the house, Judd built a concrete swimming pool and a shaded pergola, and “on the other side of the building, in line with my daughter’s room,” he wrote in an essay about the Block, “is an alley of green grass and seven plum trees with purple leaves.” By way of explanation, he wrote only, “She wanted a yard.”

AT CHINATI—the old cavalry fort on the outskirts of Marfa in which Judd placed a series of permanent art installations—I finally experienced Judd’s artistic vision in terms of abundance rather than reticence, as a plenitude I could feel in my nerves and my marrow. The compound invited me to surrender myself not only to the installations but to their entire world: the old barracks and warehouses, the desert beyond, the dry wind—all under blue skies so bright, they made my eyes ache.

Arguably the beating pulse of the entire compound is an installation—housed in two converted artillery sheds—that comprises 100 boxes made of mill aluminum, whose gleaming surfaces reflect the Texas sky in all its shifting moods. As I stood among them, the glinting lines and angles of the boxes conveyed the precision of their construction and their subtle variations. Some had open walls; some were entirely closed; some were sliced in half by partitions. But the effect of the entire installation was more sweeping, far less tightly controlled, almost dizzying.

These aluminum boxes weren’t just boxes. They held the weather itself: clouds swollen with rain, or a horizon painted by the burlesque of sunset. They were cubes made of sky; their faces carved the light into radiant squares. At the time, I was reading a biography of the writer Jean Rhys that described how she hated the “parceled up” landscape of England—the soggy

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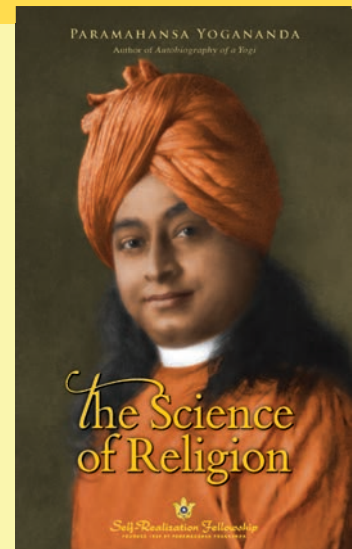
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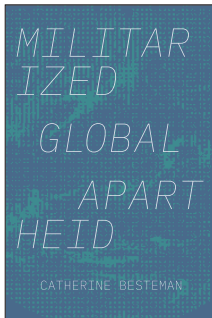


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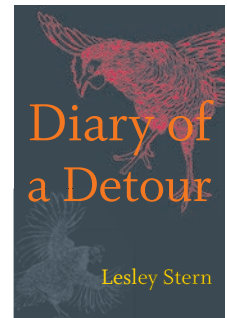
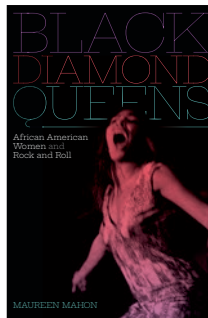
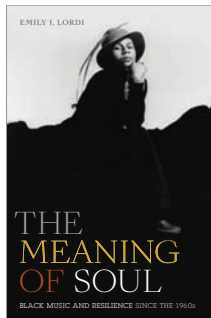
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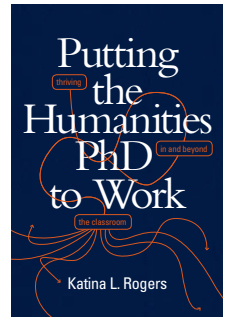
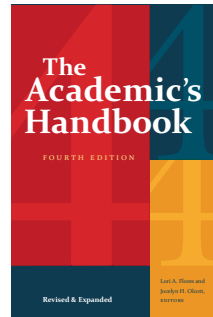
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countryside scored by walls, the ocean itself segmented by jutting wooden piers. Judd's installations revealed ways of carving up the world that could hold its infinitude rather than stifling it. That's what these boxes felt like, slices of infinitude, as if light were a creature, and this was one of its natural habitats.

The boxes were more dynamic than they appeared, expanding and contracting with changes in the temperature—almost as if they were alive, only in a way we couldn't see, could barely even recognize. Their sublimity lay on the other side of all my attempts to summon them with language—these habitats of light, cubes of sky, sustained by quiet, metallic respiration. “To see is to forget the name of the thing one sees,” the poet Paul Valéry once said, and those boxes made me forget their names. They brought my sight to life. They asked me to see absence in terms of presence.

Amid Judd's aluminum boxes, I started to entertain the possibility that the meaning of his art wasn't something that resided just beyond my grasp, but something that lay in the grasping itself. Perhaps the sense of yearning I felt whenever I looked at Judd's art wasn't a sign that I was failing to encounter it. Instead of expressing Judd's “particular feeling at the time,” these boxes made room for another kind of feeling instead—the energizing vertigo of figuring out how to approach beauty without the comfortable framework of a story line, of allowing it to speak to me subcutaneously, beneath the figurative skins of sense and symbolism.

Perhaps all the people who have tried to climb inside Judd's installations—squish themselves under stacks, or between slabs—are seeking some kind of footing, too. Straining to form a relationship with the art, without quite knowing how. Perhaps the yearning to understand Judd's art that I'd pathologized as a symptom of my daddy issues was better understood in terms of another kind of father figure. Judd's objects don't, of course, *represent* God, a misinterpretation that would almost certainly make Judd roll over in his grave. But the hunger they produce reminds me of what it's felt like to yearn for God, when some part of me

leans toward something beautiful that I can catch only in glimpses—the flash and flare and flicker of the sky in all those aluminum boxes, light coming off them like daggers.

Standing among those boxes, surrounded by their luminous surfaces, I was immersed in an experience so encompassing, it felt like being held. A guiding sensibility had arranged all their visual scales—the work, the buildings, the landscape—so I could experience them in concert. The art was nurturing mother and demanding father at once, caring for me by holding me in the grip of this awe.

IN THE END, I never returned to the Judd retrospective at MoMA—never got to wander alone among its objects. With the arrival of the coronavirus, the museum closed, and the exhibition catalog arrived in the mail just before I got sick myself. If Judd's work was all about intensified physical presence, how could I possibly experience it in the pages of a catalog? The only thing that felt more stingy than a Judd box in a gallery was a photograph of a Judd box in a gallery. But Judd's work ended up feeling strangely suited to the constrictions of quarantine, which—among other things—heightened my awareness of my immediate surroundings. If Judd's work was a lesson in finding plenitude in what I'd mistaken for scarcity, then quarantine was another version of this lesson: finding more richness than I'd believed possible in this stripped-down life.

My daughter would sometimes pull the heavy catalog off the coffee table and place it on the hardwood floor, saying, “Baby climb book!” and “Baby climb mountain!” Sometimes she would hastily turn its glossy pages, muttering, “Pictures, pictures, pictures.” Looking through the catalog with her, I found myself drawn to an installation (*Untitled*, 1976–1977) composed of 21 stainless-steel units, all shallow boxes of the same dimensions but detailed slightly differently. Some were open, others closed; some had thinner or thicker rims. This series of boxes started to remind me of our days: all the same in their contours and their constituent materials, but varying a bit in their particulars. During quarantine, robbed of any narrative arc, I considered

with deepened urgency the possibilities of variation as a different form of scaffolding, another source of momentum. Our days had no story line anymore, only a series of subtle changes.

In quarantine, I had to give up on the ideal of a pristine experience of Judd and settle into this partial, child-mediated engagement instead. This surrendering felt like another version of admitting to myself that what I'd always understood as an “ideal” creative practice—the artist as someone liberated from the drudgeries of daily living, someone who didn't spend her days being served wooden cups of make-believe tea—was actually an impossible, unforgiving, and ultimately inaccurate vision.

When I interviewed Flavin—over the phone during my daughter's nap, on a quarantine day without child care—I asked him whether he believed that his father's life as a parent had shaped his life as an artist. I was desperate for him—really, for anyone—to tell me that being a parent meant you could make art that wouldn't have been possible otherwise. I needed to believe that all this boiled zucchini, all these hours spent putting diapers on stuffed animals, all these dropped teacups were not obstacles to art but rather engines of it. I wanted to believe in a version of the creative impulse that lived with mess and disorder and chaos and distraction, rather than depending on their absence.

But Flavin was resistant to the idea. His father's art had a trajectory of its own, he told me. Parenting hadn't influenced the art-making; they were simply two practices inspired by the same philosophical stance, he insisted more than once. Still, I wondered if there were times when the system hadn't fit together so cohesively. When I asked Flavin whether he and his sister had ever made a mess when they were kids, he said, “Of course we did. All the time.” And I found it oddly reassuring to discover a photograph from the Spring Street days that showed Flavin watching television with his mother. I wondered whether these kids had ever found it exhausting to be raised by a father with such a demanding, rarefied conception of attention.

In a joint interview with Rainer and the filmmaker Joshua Homnick that Judd sat for in 1993, the year before he died, he

kept dismissing things that didn't matter—success, money, society—until Rainer asked him, “What do you think there should be a belief in? Don't you think there should be a belief in something?” Judd insisted, “I'm afraid it's a here-and-now situation. Or afraid and not afraid. It's pretty clear that nothing at all lasts forever. So why should people be upset about it?” Judd wasn't upset about it. He found grandeur in the concrete facts that others embellished with myth: “Do you know we

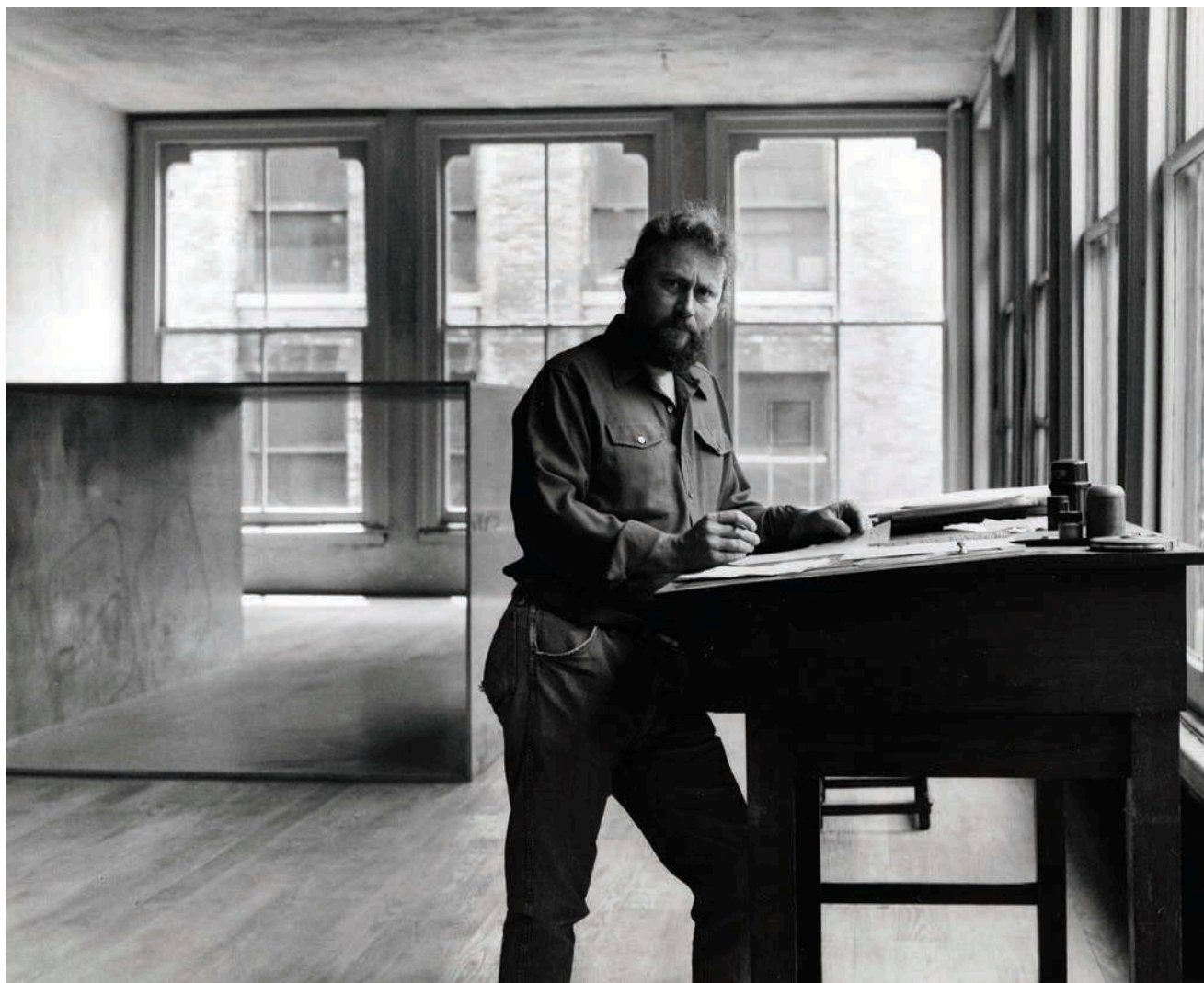
are all second-hand anyway, as an astronomical fact? ... We are all made of other suns, long gone. So think about that.”

For Judd, the knowledge that we are made of suns was enough. The existence of a box was enough. His art came from this belief in the sufficiency of the abundance already surrounding us—an abundance that deserves our attention, and to which we will all inevitably return. When Homnick asked him, “What [do] you believe metaphysically will happen to you personally

when you die?” Judd replied simply, “Bones on the land. Bones and rocks.” *A*

Leslie Jamison is the author of The Recovering: Intoxication and Its Aftermath; The Empathy Exams; and, most recently, Make It Scream, Make It Burn, out in paperback this fall.

As this issue was going to press, MoMA announced its reopening, and the continuation of the Judd show through January 9, 2021.



In converting a building in New York's SoHo warehouse district into a studio and home, Judd took care to leave the space basically unchanged.

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Small talk is rhetoric too. Americans in particular are small-talk artists. They have to be. This is a wild country. The most tenuous filaments of consensus and cooperation attach one person to the next. So the *Have a nice days*, the *Hot enough for you*s, the *How*

’bout those Metses—they serve a vital purpose. Without these emollient little going-nowhere phrases and the momentary social contract that they represent, the streets would be a free-for-all, a rodeo of disaster.

But that’s the negative view. Some of my most radiant interactions with other human beings have been fleeting, glancing moments of small talk. It’s an extraordinary thing. A person stands before you, unknown, a complete stranger—and the merest everyday speech-morsel can tip you headfirst into the blazing void of his or her soul.

I was out walking the other day when a UPS truck rumbled massively to the curb in front of me. As the driver leaped from his cab to make a delivery, I heard music coming out of the truck’s speakers—a familiar, weightless strain of blues-rock noodle. There was a certain spacey twinkle in the upper registers, a certain flimsiness in the rhythm section ... Yes. It had to be. The Grateful Dead, in one of their zillion live recordings. And I knew the song. It’s my favorite Dead song. “‘China Cat Sunflower?’” I said to the UPS guy as he charged back to his truck. A huge grin: “You got it, babel!”

The exchange of energy, the perfect understanding, the freemasonry of Deadheadness that flashed instantaneously between us, and most of all the honorific *babe*—I was high as a kite for the next 10 minutes, projected skyward on a pure beam of small talk. *A*

James Parker is a staff writer at The Atlantic.

ODE

— to —

SMALL TALK

By James Parker



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